

INTERNATIONAL

LAW

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INTERNATIONAL HUMANITARIAN LAW

International Humanitarian Law also known as the law of armed conflicts or the law of war is a branch of international law which regulates the conduct of warfare or armed conflicts as well as situations of military occupation. Until 1864, international humanitarian law was mostly a matter of customary international law. In 1864, International Humanitarian Law received its first codification when the Geneva Conventions were first adopted. These were subsequently revised in 1907 as the Hague Regulations and in 1949 as the Four Geneva Conventions and later in 1977 as the Additional Protocols to the Four Geneva Conventions.

International Humanitarian Law only applies in situations of armed conflict as defined in Article 2 Common to the Four Geneva Conventions as well as Article 3 common to the Geneva Conventions. International Humanitarian Law does not apply to any situation that does not involve an armed conflict.

International Humanitarian Law is only concerned with the rules that govern the conduct of warfare (*jus in bello*). It is not concerned with the rules that determine whether or not a state is entitled to go to war with another or to launch what is known as a just war (*jus ad bellum*). In other words, International Humanitarian Law applies both to just and unjust wars.

International Humanitarian Law imposes obligations on both states and non-state actors. This is because it applies to two kinds of armed conflicts namely international armed conflict (conflict that involves more than one state) as well as non-international armed conflicts (conflicts that involve a state actor and a non-state actor or conflict that involves one state actor against a non-state actor.)

The rules of International Humanitarian Law are intended to strike a balance between two broad imperatives namely; military necessity and humanitarian considerations.

Military necessity is a justification of measures necessary to achieve a military goal provided these measures comply with International Humanitarian Law while humanitarian considerations are aimed at alleviating death and injury to humans as well as destruction to civilian property. Within International Humanitarian Law this balance between military necessity and humanitarian considerations is expressed within the norms of;

- a. Distinction and
- b. Proportionality

The principle of **distinction** requires that parties to an armed conflict must distinguish at all times between civilians and combatants as well as between civilian objects and military objects. In addition, the principle requires that precautions be taken to spare the civilian population before and after an attack.

The principle of **proportionality** on the other hand prohibits the launch of an attack or the use of military means if such attack or such military means would result in loss of civilian life, injury to civilians or damage to civilian objects, that is, in excess of the anticipated direct military advantages. The principle also prohibits the infliction of unnecessary suffering or injury.



In summary, therefore, the principles of distinction and proportionality are aimed at achieving two broad principles; namely.

- i. Protecting persons who are not or are no longer participating in hostilities.
- ii. Limiting the methods and means of warfare deployed in conflict to those that distinguish between combatants and non-combatants.

The rules of International Humanitarian Law applicable to a conflict will vary depending on whether the conflict is of an international armed character or a non-international armed character. The specific set of rules applicable to an international armed conflict are found mainly in the Four Geneva Conventions and in Additional Protocol No.1 while those for a non-international armed conflict are found mainly in article 3 common to the Four Geneva Conventions as well as Additional Protocol No. 2.

The rules on situations of military occupations are found mainly in the 4 Geneva Conventions as well as Additional Protocol No. 1.

Broadly speaking, the rules on an international armed conflict are more detailed than those on a non-international armed conflict. For example, the distinction between prisoners of war and combatants is only found in the rules on an international armed conflict. In addition, the rules regulating the conduct of hostilities as well as humanitarian assistance are more detailed in an international armed conflict.

International Humanitarian Law prohibits terrorism and specifically Article 3 and 4 of the 4th Geneva Convention as well as Additional Protocols. International Humanitarian Law does not specifically mention drones but the consensus is that drones may be used provided they do not violate the principles of distinction and proportionality.

INTERNATIONAL ARMED CONFLICT; Jurisprudence.

International armed conflict is defined by common article 2 as “all cases of declared war or of any other armed conflict which may arise between two or more of the high contracting parties even if the state of war is not recognized by one of them.” In other words an international armed conflict can only occur between or more states.

Common article 2 also applies to the definition of an international armed conflict as to “all cases of partial or total occupation of the territory of the high contracting party even if the said occupation meets no armed resistance.”

In addition to common Article 2, Additional Protocol 1 extends the definition of an international armed conflict to include armed conflicts in which peoples are fighting against colonial domination, alien occupation, or racist regimes in the exercise of their

right to self-determination. (wars of national liberation).

The above definitions have been supplemented by the jurisprudence in the Tadic decisions as well as of eminent jurists and the practice of states as stated hereinbelow.



The International Criminal Tribunal for the former Yugoslavia (ICTY) has laid down a broad definition of an international armed conflict for purposes of International Humanitarian Law in its *Tadic decision*. In that decision, the court stated that “an armed conflict exists between whenever there is a resort to armed force between states.” This definition has since been accepted in International Humanitarian Law and in broader international law.

In addition, international legal scholars have argued that “the existence of an international armed conflict as defined in common article 2 can always be assumed when parts of the armed forces of two states clash with each other. Any kind of use of arms between the two states brings the conventions into effect.”

Other scholars explain that “any deployment of the armed forces by one state against the territory of another triggers the applicability of the Geneva Conventions between the two states. It is of no concern whether or not the party attacked resists. As soon as the armed forces of one state find themselves with wounded or surrendering members of the armed forces of another state on their hands or as soon as they detain prisoners or have actual control over a part of the territory of the enemy state, they must comply with the relevant conventions.”

Other countries similarly adopt this definition by noting that “an international armed conflict exists if one state uses force or arms against another state party. The use of military force by individual persons or groups of persons will not suffice.”

NON-INTERNATIONAL ARMED CONFLICT

The main definition of a non-international armed conflict in the Geneva Conventions is to be found in common Article 3 of all the 4 Geneva conventions as well as Article 1 of Additional Protocol 2.

Common Article 3 particularly refers to “armed conflicts not of an international character occurring in the territory of one of the high contracting parties.” This formulation is understood as applying to armed conflicts in which one or more non-governmental (non-state) armed groups are involved. The hostilities may therefore be between governmental forces and non-governmental armed groups or between such non-governmental armed groups only.

Since the Geneva Conventions have been ratified by almost every state in the world, the requirements that the armed conflict must take place on the territory of a state party (high contracting party) is now considered redundant in practice.

In order to distinguish an armed conflict within the meaning of common article 3 from less serious forms of violence such as riots, acts of banditry and other internal disturbances, the situation must attain a threshold of seriousness before International

Humanitarian Law can begin to apply. It has been generally accepted that the lower threshold found in Article 1(2) of Additional Protocol 2 which excludes internal disturbances and tensions from the definition of a non-international armed conflict also applies to common article 3.

Two criteria are typically applied here.



- i. First, the hostilities must attain a minimum level of intensity. This may be the case for example when hostilities are of a collective character or when the government is obliged to use military force against the insurgents instead of mere police forces.
- ii. Non- governmental groups involved in the conflict must be considered as parties to the conflict meaning that they possess organized armed forces. This means for example that these forces have to be under a certain command structure and must have the capacity to sustain military operations.

Within Additional Protocol 2, a more restrictive definition of a non-international armed conflict which goes beyond the all inclusive definition in common article 3 has been adopted. In particular Article 1 of the Additional Protocol 2 states that it applies to “armed conflicts which take place in the territory of a high contracting party between its armed forces and dissident armed forces or other organized groups which under responsible command, exercise such control over a part of its territory as to enable them carry out sustained and concerted military operations and to implement this protocol.”

This definition is much more restrictive than that found under common article 3 which simply refers to “an armed conflict not of an international character.”

First of all, this second definition of a non-international armed conflict under Article 1 of Additional protocol 2 introduces a requirement of territorial control by providing that non- governmental parties to the conflict must exercise such territorial control as “to enable them carry out sustained and concerted military operations.”

This requirement essentially requires that for a non-state armed group to be considered a party to an armed conflict within the meaning of International Humanitarian Law, it must demonstrate the capacity to conquer and hold territory in such a manner that the state government in question would hold the same territory. In other words the non-state armed group must exercise sufficient control over the territory in order to be held liable for any violations of International Humanitarian Law on such territory.

Secondly, Additional Protocol 2 expressly applies only to armed conflicts between state armed forces and dissident armed forces or other organized armed groups. Unlike common article 3 Additional protocol 2 does not apply to armed conflicts occurring between only non-state armed groups.

It must be observed that Additional Protocol 2 develops and supplements common Article 3 without modifying its existing conditions of application. This means that the

restrictive definition of a non-international armed conflict in Additional Protocol 2 is only relevant to an application of the provisions of Additional Protocol 2 by itself and does not extend to the broader law on non- international armed conflict that is found in the conventions as well as the ICC Statute.

The ICC statute for instance in Article 2(f) confirms the existence of a definition of non- international armed conflict that does not fulfil the criteria laid down in Additional Protocol 2.

Jurisprudence;



Just as the ICTY has provided important guidance on an international armed conflict, its *Tadic decision* also lays down important guidelines on what amounts to a non-international armed conflict. In *Tadic*, the court said that a non-international armed conflict exists whenever there is protracted armed violence between governmental authorities and organized groups or between such groups within a state.

The ICTY thus confirmed that the definition of a non-international armed conflict as adopted in common Article 3 encompasses situations where several factions confront each other without the involvement of governmental armed forces. Since that first ruling, every judgement of the ICTY has taken this definition as a starting point.

In addition, a number of eminent jurists have provided guidance on what amounts to a non- international armed conflict. Some jurists for instance have noted that non-international armed conflicts are armed confrontations that take place within the territory of a state between the government on one hand and insurgent groups on the other hand.

Another case of non-international armed conflict arises where all governmental authority crumbles within all or part of a state as a result of which various groups fight each other in a struggle for power.

One scholar observes that the hostilities have to be conducted by force of arms and must exhibit such intensity that as a rule, government is forced to deploy its armed forces against the insurgents instead of mere police forces. In addition, the hostilities have to be of a collective character in a sense that they have to be carried out not only by single groups. Thirdly the insurgents have to exhibit a minimum degree of organization and must be under a responsible command that enables to meet minimal International Humanitarian Law requirements.

Other international law scholars have suggested that common Article 3 refers to conflicts “occurring in the territory of one of the high contracting parties” whereas article 1 of Additional Protocol 2 refers to “those which take place in the territory of a high contracting party.”

According to the aim and purpose of International Humanitarian Law, this is understood as applying the two treaties only to their respective state parties. If this wording is accepted as implying that conflicts between states and no-state armed groups as well as conflicts that spreads over the territory of several states, some of which are not parties to the Conventions of Protocols were not non-international armed conflict, it would leave a huge gap in the protection against violations of International Humanitarian Law.

The bottom line is that all treaties are base on state consent and that violations of International Humanitarian Law will not be held against a state unless that state is a party to the relevant International Humanitarian Law instrument or unless the

violation in question is a matter of customary international law or a norm of jus cogens.

Summary

In summary, the consensus is that an international armed conflict exists whenever there is a resort to armed force between two or more states.



On the other hand, a non-international armed conflict exists whenever there is a protracted armed confrontation between governmental armed forces and the forces of one or more armed groups or between such armed groups operating on the territory of a state party to the conventions. The armed confrontation, however, must attain a minimum level of intensity and the parties involved in the conflict must show a minimum level of organization as well as a command structure.

Questions;

Two non-state armed groups are fighting on the territory of a state that has ratified the Geneva Conventions and the Additional Protocols; is this a non-international armed conflict (YES)

Assume that the two non-state armed groups are fighting on the territory of a state that has ratified the conventions but not the Protocols; would this be a non-international armed conflict? (YES)

A state that has ratified the Protocols but not the conventions is fighting a non-state armed group? What sort of armed conflict is this? (non-international armed conflict)

Two non-state armed groups are fighting on a territory of a state that has ratified the Protocols but not the conventions; What sort of armed conflict is this? (none of the relevant treaties apply but it maybe a A state that has ratified the Protocols but not the conventions is fighting a non-state armed group? What sort of armed conflict is this? Under customary international law)

States A and B have joined forces to fight two non-state armed groups on their territories. A and B have ratified the conventions and the Protocols; which conflict is this? (non-international armed conflict)

SAMPLE QUESTIONS;

Critically explore the concept of non international armed conflict as expressed in international law especially highlighting the different formulations within the Geneva Conventions, Additional Protocols, ICC Statute, as well as Jurisprudence and writings of eminent jurists.

Discuss the definition of International armed conflict as formulated in international law with specific reference to international humanitarian law that is Geneva Conventions, Additional Protocols as well as jurisprudence and writings of eminent jurists.

ENFORCEMENT OF INTERNATIONAL HUMANITARIAN LAW

The enforcement of International Humanitarian Law takes place at several levels. First of all, in keeping in the doctrine of *pact sunt servanda*, every high contracting party to the convention has an obligation to ensure that it prevents violations of International Humanitarian Law on its territory. In doing so, the state must undertake a number of measures including the following.



- i. Criminalizing violations of International Humanitarian Law within its domestic penal law.
- ii. Providing penalties and prosecuting violation of International Humanitarian Law on the basis of its domestic criminal law
- iii. In the case of grave breaches of the convention, prosecuting the perpetrators under the doctrine of universal jurisdiction or extraditing them to the next state party for prosecution.

In addition to these penal sanctions, the doctrine *pacta sunt servanda* imposes an obligation on states to ensure that there are militaries including the commanders, ranked soldiers are aware of the conventions and the protocols and specifically;

- a. The different categories of protected persons e.g civilians, prisoners of war , the wounded, the sick etc
- b. The appropriate treatment to be meted out to such protected persons
- c. The principles of distinction and proportionality and how they apply in different situations of armed conflicts.

NB; You are required to examine the 4 Geneva Conventions and the Additional Protocols and answer the following;

1. Which category of protected persons that the convention applies to?
2. Provisions that impose duties on states and non-state actors
3. The enforcement; what do the conventions say?
4. The definition of armed conflict in the conventions and additional protocols
5. What are the basic means of International Humanitarian Law concerning methods and rules of warfare?
6. What are the rules of International Humanitarian Law concerning precautionary measures during armed attack?
7. Who is a civilian under International Humanitarian Law?
8. What are the rules regarding attacks on cultural property and on journalists?
9. Can a party to an armed conflict attack a convoy of the ICRC?

The scope of protection under international humanitarian law

The rules of international humanitarian law seek to extend protection to a wide range of persons, but the basic distinction drawn has been between combatants and those who are not involved in actual hostilities. Common article 2 of the Geneva Conventions provides that the Conventions ‘shall apply to all cases of declared war or of any other armed conflict which may arise between two or more of the High Contracting Parties even if the state of war is not recognised by them . . . [and] to all cases of partial or total occupation of the territory of a High Contracting Party, even if

the said occupation meets with no armed resistance'. The rules contained in these Conventions cannot be renounced by those intended to benefit from them, thus precluding the possibility that



the power which has control over them may seek to influence the persons concerned to agree to a mitigation of protection.¹

The wounded and sick

The First Geneva Convention concerns the Wounded and Sick on Land and emphasises that members of the armed forces and organised militias, including those accompanying them where duly authorized, (article 13), 'shall be respected and protected in all circumstances'. They are to be treated humanely by the party to the conflict into whose power they have fallen on a non-discriminatory basis and any attempts upon their lives or violence to their person is strictly prohibited. Torture or biological experimentation is forbidden, nor are such persons to be wilfully left without medical assistance and care. (article 12)

The wounded and sick of a belligerent who fall into enemy hands are also to be treated as prisoners of war. (Article 14.) Further, the parties to a conflict shall take all possible measures to protect the wounded and sick and ensure their adequate care and to 'search for the dead and prevent their being despoiled'. (Article 15). The parties to the conflict are to record as soon as possible the details of any wounded, sick or dead persons of the adversary party and to transmit them to the other side through particular means. (Article 16 and see article 122 of the Third Geneva Convention)

This Convention also includes provisions as to medical units and establishments, noting in particular that these should not be attacked, (article 19)² and deals with the recognised emblems (i.e. the Red Cross, the Red Crescent and, after Protocol III, the Red Diamond).³

The Second Geneva Convention concerns the Condition of Wounded, Sick and Shipwrecked Members of Armed Forces at Sea and is very similar to the First Convention, for instance in its provisions that members of the armed forces and organised militias, including those accompanying them where duly authorised, and who are sick, wounded or shipwrecked are to be treated humanely and cared for on a non-discriminatory basis, and that attempts upon their lives and violence and torture are prohibited.⁴

The Convention also provides that hospital ships may in no circumstances be attacked or captured but respected and protected.⁵ The provisions in these Conventions were reaffirmed in and supplemented by Protocol I, 1977, Parts I and II. Article 1(4), for example, supplements common article 2 contained in the Conventions and provides that the Protocol is to apply in armed conflicts in which peoples are fighting against colonial domination and alien occupation and against racist

¹ See article 7 of the first three Conventions and article 8 of the fourth. Note that Security Council resolution 1472, adopted under Chapter VII on 28 March 2003, called on ‘all parties concerned’ to the Iraq conflict of March–April 2003 to abide strictly by their obligations under international law and particularly the Geneva Conventions and the Hague Regulations, ‘including those relating to the essential civilian needs of the people of Iraq’.

² Article 19, even if the personnel of the unit or establishment are armed or otherwise protected, article 22. Chapter IV concerns the treatment of medical personnel

³ Chapter VII.

⁴ Articles 12 and 13

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Chapter

III



regimes as enshrined in the UN Charter and the Declaration on Principles of International Law 1970.

Prisoners of war

The Third Geneva Convention of 1949 is concerned with prisoners of war, and consists of a comprehensive code centred upon the requirement of humane treatment in all circumstances. The definition of prisoners of war in article 4, however, is of particular importance since it has been regarded as the elaboration of combatant status. It covers members of the armed forces of a party to the conflict (as well as members of militias and other volunteer corps forming part of such armed force) and members of other militias and volunteer corps, including those of organised resistance movements, belonging to a party to the conflict providing the following conditions are fulfilled:

- a. being commanded by a person responsible for his subordinates;
- b. having a fixed distinctive sign recognisable at a distance;
- c. carrying arms openly;
- d. conducting operations in accordance with the laws and customs of war.

This article reflected the experience of the Second World War, although the extent to which resistance personnel were covered was constrained by the need to comply with the four conditions.

Since 1949, the use of guerrillas spread to the Third World and the decolonisation experience. Accordingly, pressures grew to expand the definition of combatants entitled to prisoner of war status to such persons, who as practice demonstrated rarely complied with the four conditions.

States facing guerrilla action, whether the colonial powers or others such as Israel, objected.

Articles 43 and 44 of Protocol I, 1977, provide that combatants are members of the armed forces of a party to an international armed conflict.⁶ Such armed forces consist of all organised armed units

under an effective command structure which enforces compliance with the rules of international law applicable in armed conflict.

Article 44(3) further notes that combatants are obliged to distinguish themselves from the civilian population while they are engaged in an attack or in a military operation preparatory to an attack. When an armed combatant cannot so distinguish himself, the status of combatant may be retained provided that arms are carried openly during each military engagement and during such time as the combatant is visible to the adversary while engaged in a military deployment preceding the launching of an attack.

Article 5 also provides that where there is any doubt as to the status of any person committing a belligerent act and falling into the hands of the enemy, ‘such person shall enjoy the protection of the present Convention until such time as their status has been determined by a competent tribunal’.

⁶ Article 1(4) of Protocol I includes as international armed conflicts ‘armed conflicts in which peoples are fighting against colonial domination and alien occupation and against racist regimes in the exercise of their right of self-determination’. Note that there is no provision for prisoner of war status in non- international armed conflicts:

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This formulation was changed somewhat in article 45 of Protocol I. This provides that a person who takes part in hostilities and falls into the power of an adverse party 'shall be presumed to be a prisoner of war and therefore shall be protected by the Third Convention'.

The term 'unlawful combatant', therefore, refers to a person who fails the tests laid down in articles 43 and 44, after due determination of status, and who would not be entitled to the status of prisoner of war under international humanitarian law. Such a person, who would thus be a civilian, would be protected by the basic humanitarian guarantees laid down in articles 45(3) and 75 of Protocol I and by the general principles of international human rights law in terms of his/her treatment upon capture. However, since such a person would not have the status of a prisoner of war, he would not benefit from the protections afforded by such status and would thus be liable to prosecution under the normal criminal law.

The framework of obligations covering prisoners of war is founded upon 'the requirement of treatment of POWs as human beings', while 'At the core of the Convention regime are legal obligations to keep POWs alive and in good health.' Article 13 provides that prisoners of war must at all times be humanely treated and must at all times be protected, particularly against acts of violence or intimidation and against 'insults and public curiosity'.⁷ This means that displaying prisoners of war on television in a humiliating fashion confessing to 'crimes' or criticising their own government must be regarded as a breach of the Convention.

Measures of reprisal against prisoners of war are prohibited. Article 14 provides that prisoners of war are entitled in all circumstances to respect for their persons and their honour.⁸ Prisoners of war are bound only to divulge their name, date of birth, rank and serial number. Article 17 provides that 'no physical or mental torture, nor any other form of coercion, may be inflicted .

. . to secure from them information of any kind whatever. Prisoners of war who refuse to answer may not be threatened, insulted, or exposed to unpleasant or disadvantageous treatment of any kind.' Once captured, prisoners of war are to be evacuated as soon as possible to camps situated in an area far enough from the combat zone for them to be out of danger,⁹ while article 23 stipulates that 'no prisoner of war may at any time be sent to, or detained in, areas where he may be exposed to the fire of the combat zone, nor may his presence be used to render certain points or areas immune from military operations'.

Prisoners of war are subject to the laws and orders of the state detaining them.(Article 82, Geneva Convention III). They may be punished for disciplinary offences and tried for offences committed before capture, for example for war crimes. They may also be tried for offences committed before capture against the law of the state holding them. (Articles 82 and 85)

Other provisions of this Convention deal with medical treatment, religious activities, discipline, labour and relations with the exterior. Article 118 provides that prisoners of war shall be released and repatriated without delay after the cessation of hostilities. The Convention on

⁷ See also article 11 of Protocol I.

⁸ See also article 75 of Protocol.

⁹ Article 19.

prisoners of war applies only to international armed conflicts, but article 3 (which is common to the four Conventions) provides that as a minimum ‘persons . . . including members of armed forces, who have laid down their arms and those placed *hors de combat* by sickness, wounds, detention, or any other cause, shall in all circumstances be treated humanely’.

Protection of civilians and occupation

The Fourth Geneva Convention is concerned with the protection of civilians in time of war and builds upon the Hague Regulations (attached to Hague Convention IV on the Law and Customs of War on Land, 1907).

This Geneva Convention, which marked an extension to the pre-1949 rules, is limited under article 4 to those persons, ‘who, at a given moment and in any manner whatsoever, find themselves, in case of a conflict or occupation, in the hands of a party to the conflict or occupying power of which they are not nationals’. The Convention comes into operation immediately upon the outbreak of hostilities or the start of an occupation and ends at the general close of military operations.(article 16) Under article 50(1) of Protocol I, 1977, a civilian is defined as any person not a combatant,¹⁰ and in cases of doubt a person is to be considered a civilian.

The Fourth Convention provides a highly developed set of rules for the protection of such civilians, including the right to respect for person, honour, convictions and religious practices and the prohibition of torture and other cruel, inhuman or degrading treatment, hostage-taking and reprisals.¹¹ The wounded and sick are the object of particular protection and respect¹² and there are various judicial guarantees as to due process.¹³

The protection of civilians in occupied territories is covered in section III of Part III of the Fourth Geneva Convention, but what precisely occupied territory is may be open to dispute. Article 42 of the Hague Regulations provides that territory is to be considered as occupied ‘when it is actually placed under the authority of the hostile army’ and that the occupation only extends to the territory ‘where such authority has been established and can be exercised’ while article 2(2) of the Convention provides

that it is to apply to all cases of partial or total occupation ‘of the territory of a High Contracting Party, even if the said occupation meets with no resistance’.

The International Court in the *Democratic Republic of the Congo v. Uganda* case noted that in order to determine whether a state whose forces are present on the territory of another state is an occupying power, one must examine whether there is sufficient evidence to demonstrate that the said authority was in fact established and exercised by the intervening state in the areas in question. The Court understood this to mean in practice in that case that Ugandan forces in the Congo were stationed there in particular areas and that they had substituted their own authority for that of the Congolese government.

¹⁰ As defined in article 4 of the Third Geneva Convention, 1949 and article 43, Protocol I, 1977,

¹¹ See articles 27–34. The rights of aliens in the territory of a party to a conflict are covered in articles 35–46.

¹² Article 16

¹³ See articles 71–6. See also article 75 of Protocol I, 1977.

Article 47 provides that persons protected under the Convention cannot be deprived in any case or in any manner whatsoever of the benefits contained in the Convention by any change introduced as a result of the occupation nor by any agreement between the authorities of the occupied territory and the occupying power nor by any annexation by the latter of the whole or part of the occupied territory.

Article 49 prohibits ‘individual or mass forcible transfers’ as well as deportations of protected persons from the occupied territory regardless of motive, while the occupying power ‘shall not deport or transfer parts of its own civilian population into the territory it occupies’¹⁴. Other provisions refer to the prohibition of forced work or conscription of protected persons, and the prohibition of the destruction of real or personal property except where rendered absolutely necessary by military operations, and of any alteration of the status of public or judicial officials.¹⁵ The occupying power also has the responsibility to ensure that the local population has adequate food and medical supplies and, if not, to facilitate relief schemes.¹⁶

Article 70 provides that protected persons shall not be arrested, prosecuted or convicted for acts committed or opinions expressed before the occupation, apart from breaches of the laws of war. In addition to the traditional rules of humanitarian law, international human rights law is now seen as in principle applicable to occupation situations. The International Court interpreted article 43 of the Hague Regulations to include ‘the duty to secure respect for the applicable rules of international human rights law and international humanitarian law, to protect the inhabitants of the occupied territory against acts of violence, and not to tolerate such violence by any third state’.

Further, the Court has stated that the protection offered by human rights conventions does not cease in case of armed conflict, unless there has been a relevant derogation permitted by the convention in question. The Court has also emphasised that many human rights treaties apply to the conduct of states parties where the state is exercising jurisdiction on foreign territory and that in such cases the matter will fall to be determined by the applicable *lex specialis*, that is international humanitarian law

In *Democratic Republic of Congo v. Uganda* the Court reaffirmed that ‘international human rights instruments are applicable “in respect of acts done by a state in the exercise of its jurisdiction outside its own territory”, particularly in occupied territories’.¹⁷ It was concluded that Uganda was internationally responsible for various violations of international human rights law

¹⁴ The International Court has stated that this provision prohibits ‘any measures taken by an occupying power in order to organize or encourage transfers of parts of its own population into the occupied territory’ and that ‘the Israeli settlements in the

Occupied Palestinian Territory (including East Jerusalem) have been established in breach of international law’,

Construction of a Wall, ICJ Reports, 2004, pp. 136, 183–4.

¹⁵ Articles 51, 53 and 54. Article 64 stipulates that penal laws remain in force, unless a threat to the

occupier’s security, while existing tribunals continue to function

¹⁶ Articles 55, 56, 59 and 60

¹⁷ ICJ Reports, 2005, pp. 168, 242–3. A series of international human rights instruments was listed as being applicable with regard to the Congo situation, including the International Covenants on Human Rights, the Convention on the Rights of the Child and the African Charter on Human and Peoples’ Rights

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and international humanitarian law, including those committed by virtue of failing to comply with its obligations as an occupying power.

The conduct of hostilities

International law, in addition to seeking to protect victims of armed conflicts, also tries to constrain the conduct of military operations in a humanitarian fashion. In analysing the rules contained in the 'Law of the Hague', it is important to bear in mind the delicate balance to be maintained between military necessity and humanitarian considerations.

A principle of long standing, if not always honoured in practice, is the requirement to protect civilians against the effects of hostilities. As far as the civilian population is concerned during hostilities, the basic rule (sometimes termed the principle of distinction) formulated in article 48 of Protocol I is that the parties to the conflict must at all times distinguish between such population and combatants and between civilian and military objectives and must direct their operations only against military objectives.

Military objectives are limited in article 52(2) to 'those objects which by their nature, location, purpose or use make an effective contribution to military action and whose total or partial destruction, capture or neutralisation, in the circumstances ruling at the time, offers a definite military advantage'. There is thus a principle of proportionality to be considered.

Judge Higgins, for example, in referring to this principle, noted that 'even a legitimate target may not be attacked if the collateral civilian casualties would be disproportionate to the specific military gain from the attack'¹⁸

Issues have arisen particularly with regard to so-called 'dual use' objects such as bridges, roads and power stations, and care must be taken to interpret these so that such objects are not indiscriminately attacked on the one hand, while ensuring that, on the other, such objects or facilities are not used by opposing military forces in an attempt to secure immunity from attack, with the inevitable result that civilians may be endangered.

Much will depend upon whether the military circumstances are such that they fall within the definition provided in article 52(2). This will require a balancing of military need and civilian endangerment. Article 51 provides that the civilian population as such, as well as individual civilians, 'shall not be the object of attack. Acts or threats of violence the primary purpose of which is to spread terror among the civilian population are prohibited.

Additionally, indiscriminate attacks¹⁹ are prohibited. Article 57 provides that in the conduct of military operations, 'constant care shall be taken to spare the civilian

population, civilians and

¹⁸ Dissenting Opinion, *Legality of the Threat or Use of Nuclear Weapons*

¹⁹ These are defined in article 51(4) as: (a) those which are not directed at a specific military objective; (b) those which employ a method or means of combat which cannot be at a specific military objective; or (c) those which employ a method or means of combat the effects of which cannot be limited as required by Protocol I; and consequently in each such case are of a nature to strike military objectives and civilians or civilian objects without distinction.



civilian objects’.

Although reprisals involving the use of force are now prohibited in international law (unless they can be brought within the framework of self-defence), belligerent reprisals during an armed conflict may in certain circumstances be legitimate. Their purpose is to ensure the termination of the prior unlawful act which precipitated the reprisal and a return to legality. They must be proportionate to the prior illegal act.

Modern law, however, has restricted their application. Reprisals against prisoners of war are prohibited by article 13 of the Third Geneva Convention, while article 52 of Protocol I provides that civilian objects are not to be the object of attack or of reprisals. Civilian objects are all objects which are not military objectives as defined in article 52(2). Cultural objects and places of worship are also protected,²⁰ as are objects deemed indispensable to the survival of the civilian population, such as foodstuffs, agricultural

areas for the production of foodstuffs, crops, livestock, drinking water installations and supplies, and irrigation works, so long as they are not used as sustenance solely for the armed forces or in direct support of military action.²¹

Attacks are also prohibited against works or installations containing dangerous forces, namely dams, dykes and nuclear generating stations.²²

The right of the parties to an armed conflict to choose methods of warfare is not unconstrained.⁹⁹ The preamble of the St Petersburg Declaration of 1868, banning explosives or inflammatory projectiles below 400 grammes in weight, emphasises that the ‘only legitimate object which states should endeavour to accomplish during war is to weaken the military forces of the enemy’, while article 48 of Protocol I provides that a distinction must at all times be drawn between civilians and combatants.

Article 22 of the Hague Regulations points out that the ‘right of belligerents to adopt means of injuring the enemy is not unlimited. This is repeated in virtually identical terms in article 35, Protocol I. while article 23(e) stipulates that it is especially prohibited to ‘employ arms, projectiles or material calculated to cause unnecessary suffering’²³

Quite how one may define such weapons is rather controversial and can only be determined in the light of actual state practice. The balance between military necessity and humanitarian considerations is relevant here. The International Court in its Advisory Opinion on the *Legality of the Threat or Use of Nuclear Weapons* summarised the situation in the following authoritative way:

The cardinal principles contained in the texts constituting the fabric of humanitarian law are the following. The first is aimed at the protection of the civilian population and civilian objects and establishes the distinction between combatants and non-combatants; states must never make civilians the object of

attack and must consequently never use weapons

²⁰ article 53

²¹ Article 54

²² Article 56.

²³ See article 35(2) of Protocol I



that are incapable of distinguishing between civilian and military targets. According to the second principle, it is prohibited to cause unnecessary suffering to combatants; it is accordingly prohibited to use weapons causing them such harm or uselessly aggravating their suffering. In application of that second principle, states do not have unlimited freedom of choice of means in the weapons they use.

The Court emphasised that the fundamental rules flowing from these principles bound all states, whether or not they had ratified the Hague and Geneva Conventions, since they constituted 'intransgressible principles of international customary law'. At the heart of such rules and principles lies the 'overriding consideration of humanity'.

Whether the actual possession or threat or use of nuclear weapons would be regarded as illegal in international law has been a highly controversial question, although there is no doubt that such weapons fall within the general application of international humanitarian law.

The International Court has emphasised that, in examining the legality of any particular situation, the principles regulating the resort to force, including the right to self defence, need to be coupled with the requirement to consider also the norms governing the means and methods of warfare itself. Accordingly, the types of weapons used and the way in which they are used are also part of the legal equation in analysing the legitimacy of any use of force in international law. The Court analysed state practice and concluded that nuclear weapons were not prohibited either specifically or by express provision. Nor were they prohibited by analogy with poisoned gases prohibited under the Second Hague Declaration of 1899, article 23(a) of the Hague Regulations of 1907 and the Geneva Protocol of 1925. Nor were they prohibited by the series of treaties concerning the acquisition manufacture, deployment and testing of nuclear weapons and the treaties concerning the ban on such weapons in certain areas of the world.¹¹² Nor were nuclear weapons prohibited as a consequence of a series of General Assembly resolutions, which taken together fell short of establishing the necessary *opinio juris* for the creation of a new rule to that effect.

In so far as the principles of international humanitarian law were concerned, the Court, beyond noting their applicability, could reach no conclusion. The Court felt unable to determine whether the principle of neutrality or the principles of international humanitarian law or indeed the norm of self-defence prohibited the threat or use of nuclear weapons. This rather weak conclusion, however, should be seen in the context of continuing efforts to ban all nuclear weapons testing, the increasing number of treaties prohibiting such weapons in specific geographical areas and the commitment given in 1995 by the five declared nuclear weapons states not to use such weapons against non-nuclear weapons states that are parties to the Nuclear Non-Proliferation Treaty.

Nevertheless, it does seem clear that the possession of nuclear weapons and their use *in extremis* and in strict accordance with the criteria governing the right to self-defence are not prohibited under international law. A number of specific bans on particular weapons has been imposed. Examples would include small projectiles under the St Petersburg formula of 1868, dum-dum bullets under the Hague Declaration of 1899 and asphyxiating and deleterious gases under the Hague Declaration of 189 and the 1925 Geneva Protocol. Under the 1980 Conventional Weapons Treaty, Protocol I, 1980, it is prohibited to use weapons that cannot be detected by X-rays, while Protocol II, 1980 (minimally amended in 1996), prohibits the use of mines and booby-traps against



civilians, Protocol III, 1980, the use of incendiary devices against civilians or against military objectives located within a concentration of civilians where the attack is by air-delivered incendiary weapons, Protocol IV, 1995, the use of blinding laser weapons and Protocol V, 2003, concerns the explosive remnants of war. In 1997, the Ottawa Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-Personnel Mines and on their Destruction was adopted.

Article 35(3) of Additional Protocol I to the 1949 Conventions provides that it is prohibited to employ methods or means of warfare which are intended, or may be expected, to cause widespread, long-term and severe damage to the natural environment. Article 55 further states that care is to be taken in warfare to protect the natural environment against such damage, which may prejudice the health or survival of the population, while noting also that attacks against the natural environment by way of reprisals are prohibited. The Convention on the Prohibition of Military or Any Other Hostile Use of Environmental Modification Techniques, 1977 prohibits such activities having widespread, long-lasting or severe effects as the means of destruction, damage or injury to any other state party.

Approach to International Humanitarian Law problem questions;

- i. Was there an armed conflict within the meaning given to that phrase by International Humanitarian Law?
- ii. Who are the actors in the armed conflict?
- iii. If so, was the armed conflict of an international or non-international character?
- iv. What is the relevant Geneva Convention and Additional Protocol?
- v. What if any, is the relevant Jurisprudence or case law? Structure of analysing Geneva Conventions and Additional Protocols.
- vi. Given the nature of the armed conflict; what are the specific obligations imposed on the actors?
- vii. Who are the protected persons involved in the armed conflict? Are there relevant provisions in the conventions and protocols regarding such protected persons?
- viii. Were there any violations of such provisions regarding protected persons and if so who was responsible for such violations?
- ix. What are the remedies available to the protected persons? And to what extent and in what manner can the responsible actors be held to account? Eg if the violations are grave breaches within the meaning given by the Geneva Conventions, to what extent are the responsible actors liable to prosecution under universal jurisdiction? Similarly where the breaches do not amount to grave breaches, to what extent may the responsible actors be

held to account under the domestic criminal jurisdictions of the states concerned?

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ATTEMPTED ANSWER

QUESTION; coursework 2017

“The rules of international law regarding armed conflict have been overtaken by the nature and complexity of contemporary armed conflicts, as well, as the kind of actors in those conflicts” Evaluate this statement with reference to international humanitarian law, international criminal law and illustrations from any armed conflict with which you are familiar.

In answering this question, first refer to the rules regarding armed conflict such as distinction and proportionality, protected persons and the kind of armed conflicts we have, then highlight the challenges with contemporary armed conflicts in applying the rules.

Excerpt from; *International Humanitarian Law And The Challenges Of Contemporary Armed Conflicts*; International Review Of The Red Cross; Volume 89 Number 867 September 2007

IHL developed at a time when the use of force was a lawful form of international relations, when states were not prohibited from waging war, when they, in fact, had the right to make war (i.e. when they had the “jus ad bellum”). Today the use of force between states is opposed by a peremptory rule of international law: the “jus contra bellum” amounting to an attempt to apply the principles of “jus in bello” (discrimination and proportionality) in order to negate the “jus ad bellum”.

The parties to a conflict must at all times distinguish between the civilian population and combatants in order to spare the civilian population and civilian property. Neither the civilian population as a whole, nor individual civilians, may be attacked. Attacks may be made solely against military objectives.

The use of weapons and means of warfare are inherently linked to fundamental principles of IHL

- the principles of distinction, proportionality, precaution and humanity.

1. IHL and terrorism

The question that is most frequently asked is whether IHL has a role to play in addressing terrorism and what that role is. IHL is the body of rules applicable when armed violence *reaches the level of armed conflict, and is confined only to armed conflict, whether international or non- international*. The relevant treaties are, of course, the four Geneva Conventions of 1949 and their two Additional Protocols of 1977, although IHL encompasses a range of other legally binding instruments and customary law as well. While IHL does not provide a definition of terrorism, it

explicitly prohibits most acts committed against civilians and civilian objects in armed conflict that would commonly be considered “terrorist” if committed in peacetime.

It is a basic principle of IHL that persons engaged in armed conflict must at all times distinguish between civilians and combatants and between civilian objects and military objectives. The principle of distinction is a cornerstone of IHL. Derived from it are specific rules aimed at



protecting civilians, such as the prohibition of deliberate or direct attacks against civilians and civilian objects, the prohibition of indiscriminate attacks and of the use of “human shields,” and other rules governing the conduct of hostilities that are aimed at sparing civilians and civilian objects from the effects of hostilities. IHL also prohibits hostage-taking, whether of civilians or of persons no longer taking part in hostilities.

IHL also specifically prohibits “measures of terrorism” and “acts of terrorism” against persons in the power of a party to the conflict. Thus, the Fourth Geneva Convention (Article 33) provides that “collective penalties and likewise all measures of intimidation or of terrorism are prohibited,” while Additional Protocol II (Article 4(2)(d)) prohibits “acts of terrorism” against persons not or no longer taking part in hostilities.

Additional Protocol I (Article 51(2)) and Additional Protocol II (Article 13(2)) stipulate that:

The civilian population as such, as well as individual civilians, shall not be the object of attack. Acts or threats of violence the primary purpose of which is to spread terror among the civilian population are prohibited.

The explicit prohibition of acts of terrorism against persons in the power of the adversary, as well as the prohibition of such acts committed in the course of hostilities – along with the other basic provisions mentioned above – demonstrate that IHL protects civilians and civilian objects against these types of assault when committed in armed conflict.

The question that remains is whether, taken together, all the acts of terrorism carried out in various parts of the world (outside situations of armed conflict such as those in Afghanistan, Iraq or Somalia) are part of one and the same armed conflict in the legal sense. In other words, can it be said that the bombings in Glasgow, London, Madrid, Bali or Casablanca can be attributed to

one and the same party to an armed conflict as understood under IHL? Can it furthermore be claimed that the level of violence involved in each of those places has reached that of an armed conflict? On both counts, it would appear not.

Moreover, it is evident that the authorities of the States concerned did not apply conduct of hostilities rules in dealing with persons suspected of planning or having carried out acts of terrorism, which they would have been allowed to do if they had applied an armed conflict paradigm. IHL rules would have permitted them to directly target the suspects and even to cause what is known as “collateral damage” to civilians and civilian objects in the vicinity as long as the incidental civilian damage was not excessive in relation to the military advantage anticipated. Instead, they applied the rules of law enforcement. They attempted to capture the suspects for later trial and took care in so doing to evacuate civilian structures in order to avoid all injury to persons, buildings and objects nearby.

The bottom line is that even if IHL prohibits terrorism, it is in the context of an armed conflict. However, the way terrorists operate these days can't be said to be an armed conflict hence making it impossible to apply IHL.

2. The conduct of hostilities

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A number of current and recent armed conflicts have placed questions relating to the conduct of hostilities high on the agenda of legal and military debate. These questions have also aroused growing public interest, not least because of the many pictures and news stories carried by the media of civilians killed or injured and civilian property destroyed in the course of military operations. The twin issues of targeting and the choice of weapons are at the heart of the debate.

In its report to the 28th International Conference in 2003, the ICRC presented a comprehensive survey of the main challenges for the law regulating the conduct of hostilities. The report highlighted the divergences in the interpretation of certain rules, such as those relating to the definition of a military objective, the principle of proportionality and the precautions in attack and against the effects of attacks. For the most part, this analysis remains pertinent today.

It is also worth noting that the concrete application of the treaty-based and customary rules that were identified in the 2003 ICRC report as requiring clarification are probably even more challenging in today's conflict environment, which is increasingly characterized by asymmetric warfare (in particular owing to the growing involvement of non-State armed groups) and by urban warfare

i. Asymmetric warfare²⁴

Asymmetric warfare is characterized by significant disparities between the military capacities of the belligerent parties. Its fundamental aim is to find a way round the adversary's military strength. Asymmetry often causes today's armed confrontations to take a more brutal turn, in which there is seemingly little place for the rule of law. While asymmetric warfare may have many facets, it specifically affects compliance with the most fundamental rules on the conduct of hostilities, namely the principle of distinction and the prohibition of perfidy. The following section focuses solely on challenges related to this facet, contains various illustrations and does not purport to be exhaustive.

When under attack, a belligerent party that is weaker in military strength and technological capacity may be tempted to hide from modern sophisticated means and methods of warfare. As a consequence, it may be led to engage in practices prohibited by IHL, such as feigning protected status, mingling combatants and military objectives with the civilian population and civilian objects, or using civilians as human shields. Such practices clearly increase the risk of incidental civilian casualties and damage.

Provoking incidental civilian casualties and damage may sometimes even be deliberately sought by the party that is the object of the attack. The ultimate aim may be to benefit from the significant negative impression conveyed by media coverage of such incidents. The idea is to "generate" pictures of civilian deaths and injuries and thereby to undermine support for the continuation of the adversary's military action.

Technologically disadvantaged States or armed groups may tend to exploit the protected status of certain objects (such as religious or cultural sites, or medical units) in launching attacks. Methods

²⁴ simply denotes a relationship characterized by inequality between the belligerents – in particular in terms of weaponry

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of combat like feigning civilian, noncombatant status and carrying out military operations from amidst a crowd of civilians will often amount to perfidy. In addition, the weaker party often tends to direct strikes at “soft targets” because, in particular in modern societies, such attacks create the greatest damage or else because the party is unable to strike the military personnel or installations of the enemy. Consequently, violence is directed at civilians and civilian objects, sometimes in the form of suicide attacks. Resort to hostage-taking is also a more frequent phenomenon.

The dangers of asymmetry also relate to the means of warfare likely to be used by the disadvantaged forces. It appears more and more likely that States or armed groups that are powerless in the face of sophisticated weaponry will seek to acquire – or construct – chemical, biological and even possibly nuclear weapons (in particular, the “dirty bomb scenario”), against which traditional means of defending the civilian population and civilian objects are inadequate.

In sum, military imbalances carry incentives for the weaker party to level out its inferiority by disregarding existing rules on the conduct of hostilities. Faced with an enemy that systematically refuses to respect IHL, a belligerent may have the impression that legal prohibitions operate exclusively for the adversary’s benefit. The real danger in such a situation is that the application of IHL will be perceived as detrimental by all the parties to a conflict (“spiral-down effect”) and this will ultimately lead to all-around disregard for IHL and thus undermine its basic tenets.

ii. Urban warfare

Similar challenges concerning the definition of a military objective and the interpretation of the principle of proportionality and of precautionary measures also arise from the spread of urban warfare. Military ground operations in urban settings are particularly complex: those resisting attack benefit from innumerable firing positions and may strike anywhere at anytime. The fear of surprise attacks is likely to reduce the attacker’s armed forces ability to properly identify enemy forces and military objectives and to assess the incidental civilian casualties and damages that may ensue from its operations. Likewise, artillery and aerial bombardments of military objectives located in cities are complicated by the proximity of those objectives to the civilian population and civilian objects.

The ICRC²⁵ believes that the challenges posed to IHL by asymmetric and urban warfare cannot a priori be solved by developments in treaty law. It must be stressed that in such circumstances, it is generally not the rules that are at fault, but the will or sometimes the ability of the parties to an armed conflict – and of the international community – to enforce them, in particular through criminal law.

The ICRC recognizes that today’s armed conflicts, especially asymmetric ones, pose serious threats to the rules derived from the principle of distinction. It is crucial to

resist these threats and to make every effort to maintain and reinforce rules that are essential to protecting civilians, who so often bear the brunt of armed conflicts. The rules themselves are as pertinent to “new” types of conflicts and warfare as they were to the conflicts or forms of warfare that existed at the time when they were adopted.

²⁵ International committee of the Red Cross



Asymmetric warfare has become one of the defining features of modern armed conflicts – with serious consequences for the civilian populations living in the affected areas. As many of these conflicts are fought in urban areas, civilian populations in towns and cities have been particularly affected.

Clearly, complex asymmetric conflicts seem to pose particular challenges for the implementation of IHL with opposition groups trying to avoid identification and defeat by moving underground, intermingling with the civilian population and engaging in various forms of guerilla warfare. As a result, military confrontations often take place in the midst of densely populated areas, which expose the civilian population to increased risks of incidental harm

Conflicts today are greater in complexity and numbers of actors, longer in duration, wider in their regional impact, broader in tactics and weapons used and, above all, more atrocious in the human suffering they cause. The ongoing conflict in Syria is a case in point if one considers its complexity, duration and the multiplicity of actors controlling the territory, making it difficult to respond to the enormous humanitarian needs.

3. The notion of “direct participation in hostilities”

As far as the conduct of hostilities is concerned, IHL essentially distinguishes between two generic categories of persons, namely members of the armed forces, who conduct the hostilities on behalf of the parties to an armed conflict, and civilians, who are presumed to be peaceful and must be protected against the dangers arising from military operations.

While it is true that, throughout history, the civilian population has always contributed to the general war effort to a greater or lesser degree, such activities were typically conducted at some distance from the battlefield. They included, for example, the production or provision of arms, equipment, food and shelter, as well as economic, administrative and political support. Traditionally, only a small minority of civilians became involved in the actual conduct of military operations.

Recent decades have seen this pattern change radically. There has been a continuous shift of military operations away from distinct battlefields into civilian population centres, as well as an increasing involvement of civilians in activities more closely related to the actual conduct of hostilities. Even more recently, there has been a trend towards the “civilianization” of the armed forces, by which is meant the introduction of large numbers of private contractors, as well as intelligence personnel and other civilian government employees, into the reality of modern armed conflict.

Moreover, in a number of contemporary armed conflicts, military operations have

attained an unprecedented level of complexity and have involved a great variety of interdependent human and technical resources, including remotely operated weapons systems, computer networks and satellite reconnaissance or guidance systems.

Overall, the increasingly blurred distinction between civilian and military functions, the intermingling of armed actors with the peaceful civilian population, the wide variety of tasks and activities performed by civilians in contemporary armed conflicts and the complexity of modern



means and methods of warfare have caused confusion and uncertainty as to how the principle of distinction should be implemented in the conduct of hostilities. These difficulties are further aggravated wherever armed actors do not distinguish themselves from the civilian population, such as during the conduct of clandestine or covert military operations or when persons act as “farmers by day and fighters by night.” As a result, peaceful civilians are more likely to fall victim to erroneous, unnecessary or arbitrary targeting, while members of the armed forces, unable to properly identify their adversary, run an increased risk of being attacked by persons they cannot distinguish from peaceful civilians – at the same time as they must, and should have been trained to, protect civilians.

The notion of “direct” or “active” participation in hostilities, which is derived from Article 3 common to the Geneva Conventions, is found in multiple provisions of IHL. However, despite the serious legal consequences involved, neither the Geneva Conventions nor their Additional Protocols provide a definition of what conduct amounts to direct participation in hostilities. Answers are therefore needed to the following three questions in relation to both international and non-international armed conflict:

Who is considered a civilian for the purpose of conducting hostilities? The answer to this question will delimit the circle of persons who are protected against direct attack “unless and for such time as they directly participate in hostilities.”

What conduct amounts to direct participation in hostilities? The answer to this question will define the individual conduct that entails the suspension of a civilian’s right to protection against direct attack.

What are the precise conditions under which civilians directly participating in hostilities lose their protection against direct attack? The answer to this question will elucidate issues such as the duration of the loss of civilian protection, the precautions and presumptions that apply in case of doubt, the restraints imposed by IHL on the use of force against lawful targets and the consequences of restoring civilian protection.

4. Regulating the use of cluster munitions

The use of cluster munitions is certainly not the only weapons-related issue of concern in the framework of contemporary armed conflict. However, it has recently come to the forefront of the international debate on means and methods of warfare. Given that the challenges posed by cluster munitions are closely linked to the core rules on the conduct of hostilities (distinction, prohibition of indiscriminate attacks, proportionality and precautions), the topic is addressed here.

a. Cluster munitions:

A persistent problem Cluster munitions have been a persistent problem for decades. In nearly every armed conflict in which they have been used, significant numbers of cluster. munitions have failed to detonate as intended. Long after the fighting has ended, they have continued to claim the lives and limbs of innumerable civilians, with tragic social and economic consequences for entire communities.

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In Laos and Afghanistan – for example – cluster munitions used in the 1970s and 1980s still kill and injure civilians today. Because they have contaminated large swathes of land, unexploded submunitions have also made farming a dangerous activity and hindered development and re- construction. In both countries, the clearance of these weapons and other explosive remnants of war has consumed scarce national and international resources.

Unfortunately, more recent conflicts have only added to the list of States already dealing with the consequences of these weapons. Eritrea, Ethiopia, Iraq, Lebanon, Serbia, and Sudan are examples of countries in which cluster munitions have been used in the last decade. Like Afghanistan and Laos, they are now having to deal with this deadly legacy of war.

The concerns raised by cluster munitions, however, are not limited to the post-conflict and long- term effects of unexploded submunitions. They include the dangers posed by these weapons during armed conflicts as well, even when they function as intended. Cluster munitions distribute large numbers of explosive submunitions over very wide areas. Some models will saturate a target area of up to 30,000 square metres. In addition, the accuracy of the released submunitions is often highly dependent on wind, weather conditions, and the reliability of complex delivery systems. As a result, it is difficult to control the effects of these weapons and there is a serious risk of significant civilian casualties, particularly where military objectives and civilians intermingle in a target area.

b. Concerns under international humanitarian law

No IHL treaty has specific rules governing cluster munitions. However, the characteristics and consequences of these weapons raise serious questions as to whether they can be used in accordance with fundamental rules of IHL. Some of the key questions are outlined below.

There are concerns as to whether cluster munitions may be used against military objectives in populated areas in accordance with the rules of IHL concerning distinction and the prohibition of indiscriminate attacks. These rules are intended to ensure that attacks are directed at specific military objectives and are not of a nature to strike military objects and civilians or civilian objects without distinction.

As indicated earlier, most cluster munitions are designed to disperse large numbers of submunitions over very wide areas. In addition, many types of submunitions are free-falling and use parachutes or ribbons to slow and arm themselves. This means that these explosives can be blown by the wind or diverted from their intended target when released at an incorrect airspeed or altitude. They can often land in areas other than the specific military objective targeted.

In addition, the wide-area effects of these weapons and the large number of unguided

submunitions released would appear to make it difficult, if not impossible, to distinguish between military objectives and civilians or civilian objects in a populated target area.

There are also concerns arising in relation to the rule of proportionality. This rule recognizes that civilian casualties and damage to civilian objects may occur during an attack against a legitimate military objective but requires, if an attack is to proceed, that the incidental impact on civilians not outweigh the military advantage anticipated. An attack that causes excessive incidental civilian casualties or damage in relation to the concrete and direct military advantage anticipated

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would be disproportionate and therefore prohibited.

The ICRC believes that the specific characteristics of cluster munitions, their history of causing severe problems from a humanitarian standpoint, particularly when used against military objectives in populated areas, and the questions raised above strongly argue for the development of specific rules to regulate these weapons.

c. New technology

The question frequently posed today is whether the current nature of developments in military technology constitutes a similarly seismic shift in the military paradigm. Will the development of unmanned systems in the land, air and maritime environments be recorded in history in the same revolutionary terms as those previously mentioned? Examples include unmanned aircrafts called drones, missiles etc

The autonomous system's ability to distinguish a military objective from a protected person or object, and its ability to weigh the proportionality test in a holistic manner, is yet to be adequately addressed. The existence of new military technology, possessing capabilities far beyond those anticipated when the LOAC²⁶ paradigm was first formally constructed in the nineteenth century, has resulted in calls that LOAC is no longer "fit for purpose" in fulfilling the role of regulating armed conflict and, in particular, providing protection to those it is designed to protect.

Conclusion.

While IHL aims to circumscribe certain behaviour in armed conflict, there will always be States, non-State armed groups and individuals who will not be deterred from violating the rules, regardless of the penalty involved. The increase in suicide attacks targeting civilians in and outside of armed conflict is just a current case in point. In other words, the law, if relied on as the sole tool for eliminating or reducing violence, must be understood to have limits. Political, economic, societal, cultural and other factors that influence human conduct just as decisively must also be taken into account when contemplating comprehensive solutions to any form of violence.

²⁶ Law of Armed Conflict

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INTERNATIONAL CRIMINAL COURT

You are advised to read the Statute of the ICC and find out about the following.

- a. Entry into force
- b. Jurisdiction
- c. Crimes under ICC
- d. Referrals
- e. Deferrals
- f. Immunity of persons
- g. Command responsibility
- h. Complementarity
- i. Admissibility
- j. Presence or absence of accused during trial
- k. Penalties
- l. Obligations of states to co-operate.
- m. Sentencing
- n. Appeal

Read the following decisions.

Thomas Kwoyelo v Attorney General Supreme Court.; find out the legal principles from the case. You may be asked to write short notes on it.

Pierre Bbemba ICC decision and compensation of victims.

Also what is the difference between the ICC from other international tribunals

- a. International Criminal tribunal for Rwanda
- b. International Criminal tribunal for Former Yugoslavia
- c. The Special Court of Sierra Leone... and the case of Charles Taylor..which court was he tried in?

THE INTERNATIONAL CRIMINAL COURT (ICC)

The International Criminal Court (ICC) is the first ever permanent, treaty-based, international criminal court. It was established to promote the rule of law and to ensure that the gravest international crimes do not go unpunished. The Rome Statute of the ICC was established by on 17 July 1998, when 120 States participating in the "United Nations Diplomatic Conference of Plenipotentiaries on the Establishment of an International Criminal Court" adopted the Statute. The Statute entered into force

on 1 July 2002.²⁷

²⁷ <http://www.haguejusticeportal.net/index.php?id=310>

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The ICC is a court of last resort. It will not act if a case is investigated or prosecuted by a national judicial system unless the national proceedings are not genuine, for example, if formal proceedings were undertaken solely to shield a person from criminal responsibility. In addition, the ICC only tries those accused of the gravest crimes.²⁸

History

The history of the ICC can be traced to Article VI of the Genocide Convention, 1948 which had provided for persons charged with genocide to be tried either by a court in the territory where the act had been committed or by an 'international penal tribunal' to be established. The International Law Commission was asked to study the possibility of the establishment of such an international court and a report was produced.²⁹ The matter was then transmitted to the General Assembly which produced a draft statute.³⁰ However, the question was postponed until a definition of aggression had been achieved and the draft Code of Offences completed. Due primarily to political reasons, no further progress was made until Trinidad and Tobago proposed the creation of a permanent international criminal court to deal with drug trafficking in 1989.

Given additional urgency by the developing Yugoslav situation in the early 1990s, the International Law Commission adopted a Draft Statute for an International Criminal Court in 1994.³¹ This draft statute proposed that an international criminal court be established with jurisdiction not only over genocide, war crimes, crimes against humanity and aggression, but also over certain 'treaty crimes' such as terrorism and drugs offences found in UN conventions. The draft statute was also less expansive than the International Criminal Court Statute proved to be in a number of ways, including not providing for the Prosecutor to initiate investigations on his or her own authority. However, the ILC draft proved very influential and a Preparatory Committee was convened in December 1995.³² The work of this Committee led to the Rome Conference in 1998, which produced after some effort the Rome Statute on the International Criminal Court on 17 July 1998. Sixty states were needed to ratify the Rome Statute in order for it to come into force and this duly happened on 1 July 2002.³³

Difference between the ICC from other international courts.

There is a difference between the ICC and other international tribunals. The ICC is a permanent autonomous court, whereas the *ad hoc* tribunals for the former Yugoslavia and Rwanda, as well as other similar courts established within the framework of the United Nations to deal with specific situations only have a limited mandate and jurisdiction. The ICC, which tries individuals, is also different from the International Court of Justice, which is the principal judicial organ of the United Nations for the settlement of disputes between States. The *ad hoc* tribunal for the former Yugoslavia and the International Court of Justice also have their seats in The Hague

²⁸ *ibid*

²⁹ See General Assembly resolution 260 (III) B and A/CN.4/15 and A/CN.4/20 (1950)

³⁰ UNGAOR A/2645

³¹ J. Crawford, 'The Making of the Rome Statute' in *From Nuremberg to The Hague: The Future of International Criminal Justice* (ed. P. Sands), Cambridge, 2003, p. 109.

³² General Assembly resolution 50/46. See also resolutions 51/207 and 52/160

³³ Schabas, *International Criminal Court*, pp. 18 ff



Unlike the two international criminal tribunals (for the former Yugoslavia and for Rwanda), the ICC is the product not of a binding Security Council resolution, but of an international treaty. This was essentially because states, while being prepared to accept the creation

of geographically limited and temporally constrained (in Rwanda's case) tribunals by Security Council action, were not willing to be so bound by the establishment of a permanent international criminal court with much more extensive jurisdiction without express consent. Secondly, it is to be noted that the range and content of the Rome Statute is far greater than those of the two international criminal tribunals. The Rome Statute contains 128 articles, while the ICTY Statute contains 34 articles and the ICTR Statute 32 articles³⁴

Jurisdiction and Referral

The Statute provides that the jurisdiction of the International Criminal Court is limited to the 'most serious crimes of concern to the international community as a whole', being genocide, crimes against humanity, war crimes and aggression,³⁵ and that a person who commits a crime within the jurisdiction of the Court 'shall be individually responsible and liable for punishment' in accordance with the Statute³⁶. In addition, article 9 provides for the preparation of Elements of Crimes to assist the Court in the interpretation and application of articles 6, 7 and 8. This was adopted on 9 September 2002 by the Assembly of States Parties, together with the Rules of Procedure and Evidence. However, jurisdiction cannot be exercised with regard to the crime of aggression until the Statute has been amended by its definition and the acceptance of conditions for jurisdiction.³⁷

The ICC only has jurisdiction with respect to crimes committed after the Statute came into force and with respect to states which have become parties to the Statute.³⁸ Under Article 11, however, a state may make a declaration under article 12(3) to permit the Court to exercise jurisdiction in the particular case as from 1 July 2002. Also that under article 124, a state may, upon ratification, decide not to accept the jurisdiction of the ICC over war crimes with regard to its nationals or to crimes committed on its territory for a period of seven years. In fact, only France and Colombia have taken advantage of this provision.³⁹

Further, jurisdiction may only be exercised provided either the state on the territory of which the conduct in question occurred (or if the crime was committed on board a vessel or aircraft, the state of registration of that vessel or aircraft) or the state of which the person accused of the crime is a national is a party to the Statute.⁴⁰ This means that the jurisdiction of the ICC is not universal, but

³⁴ Shaw; *International Law* pg 410

³⁵ Article 5. These provisions are further defined in detail in articles 6–8

³⁶ Article 25

³⁷ This was reviewed in the first Review Conference which took place in Kampala in 2010 and defined the crime of aggression and inserted Article 8bis by RC/Res.6 of 11 June 2010

³⁸ Article 11

³⁹ Shaw; *supra* 411

⁴⁰ Article 12(2).



territorial or personal in nature. It also means that the national of a state which is not a party to the Statute may be prosecuted where the crime is committed in the territory of a state which is a party.⁴¹

However, the Court may also have jurisdiction where a situation has been referred to the Prosecutor by the Security Council acting under Chapter VII of the Charter, which is thereby binding and in which case it is unnecessary that a relevant state be a party to the Statute.⁴² This has happened with regard to the situation in Darfur, Sudan, which was referred to the Prosecutor on 31 March 2005 by the Security Council in resolution 1593. After a preliminary examination of the situation, an investigation was opened on 1 June 2005 and after a twenty-month investigation into crimes allegedly committed in Darfur since 1 July 2002, the Prosecutor presented evidence to the judges and a summons to two named Sudanese individuals, one being a government minister and the other a military officer, to appear was issued with regard to charges alleging the commission of war crimes and crimes against humanity. Warrants of arrest were issued on 27 April 2007 against the two individuals by Pre-Trial Chamber I.⁴³

In addition to the Security Council referral, the ICC is also able to exercise its jurisdiction with regard to one or more of the crimes in question where the situation in which one or more of these crimes appears to have been committed has been referred to the Prosecutor by a state party to the Statute,⁴⁴ or the where Prosecutor has himself or herself initiated an investigation.⁴⁵ In the latter case, where the Prosecutor concludes, after having analysed the seriousness of the information received, that there is a reasonable basis to proceed to an investigation, a request for authorisation of an investigation, together with any supporting material collected, will be submitted to the Pre-Trial Chamber. Victims may also make representations to the Pre-Trial Chamber, in accordance with the Rules of Procedure and Evidence.

Where the Pre-Trial Chamber, upon examination of the request and the supporting material, considers that there is a reasonable basis to proceed with an investigation, and that the case appears to fall within the jurisdiction of the Court, it shall authorize the commencement of the investigation, without prejudice to subsequent determinations by the Court with regard to the jurisdiction and admissibility of a case. However, Article 15 provides that the refusal of the Pre-Trial Chamber to authorise the investigation will not preclude the presentation of a subsequent request by the Prosecutor based on new facts or evidence regarding the same situation. If, after the preliminary examination referred to in paragraphs 1 and 2, the Prosecutor concludes that the information provided does not constitute a reasonable basis for an investigation, he or she shall inform those who provided the information. This shall not preclude the Prosecutor from considering further information submitted to him or her regarding the same situation in the light of new facts or evidence.

There have been three examples to date of referral by a state party. In December 2003, Uganda

referred to the Prosecutor the situation with regard to the Lord's Resistance Army;⁴⁶ in April 2004,

⁴¹ Shaw *supra*

⁴² Article 13(b).

⁴³ ICC-02/05-01/07-2 01-05-2007 1/16 CB PT and ICC-02/05-01/07-3 01-05-2007 1/17

⁴⁴ Articles 13(a) and 14.

⁴⁵ Article 13(c).

⁴⁶ In July 2004, an investigation was opened by the Prosecutor, and on 8 July 2005, warrants



the Democratic Republic of the Congo referred to the Prosecutor the situation of crimes committed in its territory;⁴⁷ and in December 2004, the Central African Republic referred the situation in its country during the armed conflict of 2002–3 to the Prosecutor.⁴⁸

However, in a concession to obtain the support of states to the ICC, article 16 provides that no investigation or prosecution may be commenced or proceeded with for a period of twelve months after the Security Council, in a resolution adopted under Chapter VII of the Charter, has so requested the Court. Such request may be renewed by the Council under the same conditions. An example is Security Council resolution 1422 (2002) calling for the ICC to defer any exercise of jurisdiction for twelve months if a case arises involving current or former officials or personnel from a contributing state not a party to the Rome Statute over acts or omissions relating to a UN established or authorised operation. This was renewed for a further twelve months in resolution 1487 (2003), but not subsequently.⁴⁹ However, resolutions 1497 (2003) and 1593 (2005) provide that personnel from a state not a party to the Rome Statute will be subject to the exclusive jurisdiction of that state for all acts related to the multinational force or UN force in Liberia and Darfur respectively:⁵⁰

In *Lubanga*, the Appeals Chamber identified the parameters of the Court's jurisdiction:

“The jurisdiction of the Court is defined by the Statute. The notion of jurisdiction has four different facets: subject-matter jurisdiction also identified by the Latin maxim jurisdiction *ratione materiae*, jurisdiction over persons, symbolised by the Latin maxim jurisdiction *ratione personae*, territorial jurisdiction – jurisdiction *ratione loci* – and lastly jurisdiction *ratione temporis*. These facets find expression in the Statute.”⁵¹

of arrest for crimes against humanity and war crimes against five senior commanders of

the Lord's Resistance Army were issued under seal by Pre-Trial Chamber II.

These warrants were made public on 13 October 2005: see www.icc-cpi.int/library/cases/ICC_20051410-56-1_English.pdf and Schabas, *International Criminal Court*, pp. 36 ff.

⁴⁷ See ICC-OTP-20040419-50-En. An investigation was opened in June 2004, the first such investigation by the Prosecutor: see ICC-OTP-20040623-59-En. An arrest warrant was issued in early 2006 against Thomas Lubanga Dyilo, who was charged on various counts concerning the recruitment and use of child soldiers: see *ICC Newsletter*, No. 10, November 2006. An arrest warrant was issued against Germain Katanga on 2 July 2007 and he was transferred to the custody of the Court in October that year: see www.icc-cpi.int/library/cases/DRC-18-10-07_En.pdf. An arrest warrant was issued against Mathieu Ngudjolo Chui on 7 July 2007 and he was transferred to

⁴⁸ See ICC-OTP-20040419-50-En. An investigation was opened in June 2004, the first such investigation by the Prosecutor: see ICC-OTP-20040623-59-En. An arrest warrant was issued in early 2006 against Thomas Lubanga Dyilo, who was charged on various counts concerning the recruitment and use of child soldiers: see *ICC Newsletter*, No. 10, November 2006. An arrest warrant was issued against Germain Katanga on 2 July 2007 and he was transferred to the custody of the Court in October that year: see www.icc-cpi.int/library/cases/DRC-18-10-07_En.pdf. An arrest warrant was issued against Mathieu Ngudjolo Chui on 7 July 2007 and he was transferred to

the custody of the Court in February 2008: see [www.icccpi.int/pressrelease details&id=329.html](http://www.icccpi.int/pressrelease/details&id=329.html). Both the latter individuals are also charged with regard to the situation in the Congo. See also Schabas, *International Criminal Court*

⁴⁸ An investigation was opened by the Prosecutor in May 2007: see [www.icccpi.int/library/press/pressreleases/ICC-OTP-BN-20070522-220 A EN.pdf](http://www.icccpi.int/library/press/pressreleases/ICC-OTP-BN-20070522-220_A_EN.pdf) and Schabas, *International Criminal Court*, pp. 51–2

⁴⁹ D.McGoldrick, ‘Political and Legal Responses to the ICC’ in McGoldrick *et al. The Permanent International Criminal Court*, p. 415

⁵⁰ Cryer *et al.*, *Introduction to International Criminal Law*, pp. 142 ff.

⁵¹ 96 *Lubanga* (ICC-01/04-01/06), Judgment on the Appeal of Mr Thomas Lubanga Dyilo against the Decision on the Defence Challenge to the Jurisdiction of the Court pursuant to article 19(2)(a) of the Statute of 3 October 2006, 14 December 2006, paras 21–23



Subject-matter (*ratione materiae*) jurisdiction

The Court has jurisdiction over four core crimes: genocide, crimes against humanity, war crimes and aggression, described as ‘the most serious crimes of concern to the international community as a whole’. Jurisdiction over all crimes within the subject-matter is compulsory, with the minor exception established in Article 124⁵². Although present in the Rome Statute, there cannot be any prosecution of aggression before the Court until the crime is activated with a definition and a jurisdictional procedure by which investigations and cases can be initiated. At the Kampala Review Conference, held from 31 May to 11 June 2010, the primary set of amendments, adopted by consensus, to the Rome Statute, activated the crime of aggression.⁵³ The Court will only be capable of exercising jurisdiction over such crime committed one year after at least 30 States Parties have ratified or accepted the amendments, and at least two-thirds of States Parties decide to activate the jurisdiction at any time after 1 January 2017.⁵⁴

It can be rightly opined that these crimes are accepted as part of customary international law. In formulating the definitions, the drafters sought those in the statutes of prior international tribunals, multilateral treaties, and indicators of customary international law. ‘The resultant Statute is a more extensive codification of the customary international law crimes than that of any previous international criminal tribunal’.⁵⁵ The crimes over which the Court has jurisdiction are ‘international’ both because international cooperation is required needed for their prohibition and also because they concern all humanity

However, the Statute does not correspond perfectly with customary international law. To answer concerns that the Statute’s definitions of crimes be taken as a codification of custom, Article 10 of the Statute declares: ‘Nothing in this Part shall be interpreted as limiting or prejudicing in any way existing or developing rules of international law for purposes other than this Statute’. It is argued that customary law goes beyond the Statute, for example, by forbidding the use of certain weapons not mentioned in Article 8, and, thus, Article 10 may be relied upon.⁵⁶

One of the main reasons for the court to come into existence after the end of the Cold War is that many crimes committed against humanity have been ignored by states either due to

⁵² It provides for transitional provision that “Notwithstanding article 12, paragraphs 1 and 2, a State, on becoming a party to this Statute, may declare that, for a period of seven years after the entry into force of this Statute for the State concerned, it does not accept the jurisdiction of the Court with respect to the category of crimes referred

to in article 8 when a crime is alleged to have been committed by its nationals or on its territory. A declaration under this article may be withdrawn at any time. The provisions of this article shall be reviewed at the Review Conference convened in accordance with article 123, paragraph 1. ⁵³ David Scheffer, 'The Complex Crime of Aggression under the Rome Statute' (2010) 23 (4) LJIL 897. ⁵⁴Resolution RC/Res6, The Crime of Aggression, Resolutions and Declarations adopted by the Review Conference, Annex 1, Amendments to the Rome Statute of the International Criminal Court on the crime of aggression, Articles 15 *bis* and 15 *ter* <www.1cc-cpi.int/en_menus/asp/reviewconference/pages/review%20conference.aspx>

accessed 16th April 2017

⁵⁵ Kirsch *supra*

⁵⁶Schabas, *An Introduction to the International Criminal Court* (2nd edn, CUP 2004) 28

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'military necessity' or under the national sovereignty and territorial integrity clause. The ICC does involve a certain sacrifice of sovereignty because it envisages asserting itself when a state refuses or fails to use its national criminal justice apparatus to deal with the perpetrator of crimes against humanity.⁵⁷

Temporal (*ratione temporis*) jurisdiction⁵⁸

The Court may not exercise jurisdiction over crimes committed before the entry into force of the Statute⁵⁹, that is, since 1 July 2002. Article 11(1) is related to Articles 22 and 24, both of which also contemplate the temporal application of the statute. Particularly, Article 24(1), which declares that 'no person shall be criminally responsible for conduct prior to the entry into force of the Statute', essentially restates the norm expressed in Article 11(1), although from the standpoint of individual criminal responsibility rather than jurisdiction *ratione temporis*.⁶⁰

The ICC only has jurisdiction with respect to crimes committed after the Statute came into force and with respect to states which have become parties to the Statute.⁶¹ Under Article 11, however, a state may make a declaration under article 12(3) to permit the Court to exercise jurisdiction in the particular case as from 1 July 2002. Also that under article 124, a state may, upon ratification, decide not to accept the jurisdiction of the ICC over war crimes with regard to its nationals or to crimes committed on its territory for a period of seven years. In fact, only France and Colombia have taken advantage of this provision.⁶²

The Statute is criticised, that it is unable to prosecute crimes committed before its coming into force. However, the perpetrators of crimes committed before entry into force of the Rome Statute may and should be punished by national courts. Where the State of nationality or the territorial State refuse to prosecute, certain States provide for universal jurisdiction over such crimes. Other options include the establishment by treaty of an international court, such as the Special Court for Sierra Leone, whose legal basis is an agreement between the Government of Sierra Leone and the United Nations, the latter acting under a Security Council resolution.⁶³

Territorial (*ratione loci*) jurisdiction

Further, jurisdiction may only be exercised provided either the state on the territory of which the conduct in question occurred (or if the crime was committed on board a vessel or aircraft, the state of registration of that vessel or aircraft) or the state of which the person accused of the crime is a national is a party to the Statute.⁶⁴ This means that the jurisdiction of the ICC is not universal, but

⁵⁷ Atul Bharadwaj *International Criminal Court and the Question of Sovereignty* Strategic Analysis, Vol. 27, No. 1, Jan-Mar 2003

⁵⁸ Article 11

⁵⁹ Article 11(1)

⁶⁰ Schabas, *The International Criminal Court* supra at page 275.

⁶¹ Article 11

⁶² Shaw; supra 411

⁶³ Schabas, *An Introduction to the International Criminal Court* 70

⁶⁴ Article 12(2).



territorial or personal in nature. It also means that the national of a state which is not a party to the Statute may be prosecuted where the crime is committed in the territory of a state which is a party.⁶⁵

Therefore, the Court has jurisdiction over crimes committed on the States Parties' territory, irrespective of the perpetrator's nationality, on the territory of States that accept its jurisdiction on an *ad hoc* basis⁶⁶, and on territory so affirmed by the Security Council.⁶⁷ However, there is no requirement that the territorial jurisdiction conferred upon the Court by ratification or accession is limited to territory over which a State actually exercises effective control.⁶⁸

The United States had argued that it is a breach of international law to purport to exercise jurisdiction over crimes committed by nationals of non-party States on the territory of States Parties as such jurisdiction would violate the well-known rule that a treaty may not oblige non- parties without their consent. In this regard the Statute does not establish any obligations for non- party States.⁶⁹

However, Schabas opines that far from threatening sovereignty, exercise of criminal law jurisdiction over an individual on a State's territory constitutes a manifestation of sovereignty. The United States has never argued that the courts of a particular State cannot prosecute crimes committed on its territory, even by foreigners. A State can also delegate this authority to an international criminal tribunal.⁷⁰

Personal (*ratione personae*) jurisdiction

The Statute empowers the Court to prosecute individuals alleged to have committed crimes within its jurisdiction and hence 'openly challenged the state's absolute sovereignty and dominance in the conduct of world politics, since it has, although in a limited way, replaced it with the national courts'. Although other permanent international courts exist, such as the European Court of Human Rights and the Inter-American Court of Human Rights they do not prosecute individuals. Rather, the individuals make complaints to them and such courts deliver judgments against the relevant State Party; consequently the individuals' rights are still being protected according to the State's discernment.⁷¹

The Court has jurisdiction over a State Party's nationals accused of a crime, according to Article 12(2)(b). The Court has jurisdiction over a non-Party's nationals in three circumstances: when the UN Security Council refers a situation to the Court Prosecutor by the UN Security Council, when a crime is committed on the territory of a State Party or of a State that has consented to the Court's jurisdiction with regard to that offence, and where the non-Party has accepted the exercise of the Court's jurisdiction with regard to a specific crime. In the first two instances, the State nationality's consent is not required for the exercise of jurisdiction.⁷²

⁶⁵ Shaw *supra*

⁶⁶ Article 12(2)

⁶⁷ Schabas, *An Introduction to the International Criminal Court* 78

⁶⁸ Schabas, *The International Criminal Court* 285

⁶⁹ Cardona *supra* 58

⁷⁰ Schabas, *supra* 286

⁷¹ Cardona, *supra* 57

⁷² Akande *supra*



It should be noted in striking the balance between sovereignty and fighting impunity exercise of criminal law jurisdiction over an individual on a State's territory constitutes a manifestation of sovereignty. This can be contrasted with the principle of territoriality where the courts of a particular State prosecute crimes committed on its territory, even by foreigners. Therefore, a state is at liberty to delegate this authority to an international criminal tribunal, and that itself is a manifestation of sovereignty than a violation as USA claimed.⁷³

In trying individuals, no one is exempt from prosecution because of his or her current functions or because of the position he or she held at the time the crimes concerned were committed.

Acting as a Head of State or Government, minister or parliamentarian does not exempt anyone from criminal responsibility before the ICC. Article 27 provides that the Statute shall apply equally to all persons without any distinction based on official capacity. In particular, official capacity as a Head of State or Government, a member of a Government or parliament, an elected representative or a government official shall in no case exempt a person from criminal responsibility under the Rome Statute, nor shall it, in and of itself, constitute a ground for reduction of a sentence.

Under Article 27(2), immunities or special procedural rules which may attach to the official capacity of a person, whether under national or international law, shall not bar the Court from exercising its jurisdiction over such a person.

In some circumstances, a person in a position of authority may even be held responsible for crimes committed by those acting under his or her command or orders.⁷⁴ The Court has no jurisdiction with respect to any person who was under the age of 18 when the crimes concerned were committed.

The rules on jurisdiction of the court, indeed try to strike a delicate balance between state sovereignty and fighting impunity as they basically deal with state parties and allow such states to refer situations. The crime must have been committed on the territory of a state party or by a national of a state party. New joining states cannot be prosecuted for crimes before they joined. All this point to the delicate balance between sovereignty and fighting impunity. This explains why most state parties especially African countries have been enthusiastic in referring situations, the reason why the court has been preoccupied by African situations.⁷⁵ The jurisdiction is exercised by consent of the state and cannot be exercised retrospectively.

In fact, whenever a situation is referred to the Prosecutor by a State Party for him/her to investigate (Article 13(a)), or whenever the Prosecutor initiates an investigation *proprio motu* on account of information received (Article 13(b)), the Court may exercise its complementary jurisdiction only when the supposed crime has been committed on a State Party's territory, or on board a vessel or aircraft registered in a State Party

(Article 12(2)(a)), or when the accused person is a State Party's

⁷³ Schabas, *The International Criminal Court* 286. See Cardona, *supra* page 59

⁷⁴ Article 28

⁷⁵ Uganda was the first country to refer a situation, Dr Congo, Central African Republic followed among others.



national (Article 12(2)(b)). In other words, a case may be brought before the Court only if characterised by these elements of the States having ratified the Statute.⁷⁶

As, Cassese remarked, the idea that the Statute impinges on the rights of third States must be considered unfounded. Obviously, whenever the Court does not acquire jurisdiction for lack of these preconditions, the States Parties maintain, by virtue of customary and conventional international law, their discretionary or mandatory domestic competence in repressing crimes of international concern according to alternative bases of jurisdiction.⁷⁷

Admissibility

A key feature of the ICC, and one that distinguished it from the two international criminal tribunals, is that it is founded upon the concept of complementarity, which means essentially that the national courts have priority. A case will be inadmissible and the Court will be unable to exercise jurisdiction in a number of situations.⁷⁸

These are, first, where the case is being investigated or prosecuted by a state which has jurisdiction over it, unless the state is unwilling or unable genuinely to carry out the investigation or prosecution; secondly, where the case is being investigated or prosecuted by a state which has jurisdiction over it and the state has decided not to prosecute the person concerned, unless the decision resulted from the unwillingness or inability of the state genuinely to prosecute; In order to determine unwillingness, the Court must consider whether the proceedings were being undertaken or the decision made in order to shield the person concerned from criminal responsibility for crimes within the jurisdiction of the ICC; whether there has been an unjustified delay in the proceedings, and whether the proceedings have been conducted independently or impartially,⁷⁹ In order to determine inability, the Court must consider whether, due to a total or substantial collapse or unavailability of its national judicial system, the state is unable to obtain the accused or the necessary evidence and testimony or is otherwise unable to carry out its proceedings,⁸⁰;

Thirdly, where the person concerned has already been tried for conduct which is the subject of the complaint, unless the proceedings before the court other than the ICC were for the purpose of shielding the person concerned from criminal responsibility for crimes within the jurisdiction of the ICC or where those proceedings were not conducted independently or impartially. Article 20(3).

Complementarity was thus designed to encourage states to take the lead in prosecuting grave

⁷⁶ Cardona Supra

⁷⁷ Antonio Cassese, 'The Statute of the International Criminal Court: Some Preliminary Reflections' (1999) 10 EJIL as cited in Cardona, Supra
⁷⁸ Article 17.

⁷⁹ article 17(2)a–c
⁸⁰ article 17(3)

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international crimes on the one hand and assuage their fears that the court would violate their national sovereignty and unilaterally prosecute their citizens on the other. It was also a conservation mechanism for the court's scarce resources and an acknowledgment that domestic criminal proceedings may sometimes be more efficacious than international ones. As articulated in Article 17, the principle provides that the court must defer to national investigations or prosecutions *unless* the national jurisdictions have or had been *unwilling* or *unable* to genuinely investigate or prosecute.⁸¹

The change from primary jurisdiction to complementary jurisdiction alters the balance between State sovereignty and international criminal justice. The ICC's principle of complementarity affirms the obligation of States to prosecute core international crimes. It implies that there will often be a division of labour between the ICC and national courts. The ICC will prosecute some of those who bear the greatest responsibility for crimes while the national authorities bring other perpetrators to justice. The national authorities may not always be in a position to do this. An 'impunity gap' will open up between the few cases which the ICC will be able to investigate and prosecute, and the numerous cases which the national authorities are unable to deal with. The involvement of the Court will highlight this gap.⁸²

Article 17 was designed to strike between protecting national sovereignty, conserving resources and encouraging domestic prosecutions on the one hand and ending impunity on the other⁸³

Under Article 63, the accused cannot be tried in absentia.

Cooperation of states parties with ICC

The Court does not have an enforcement mechanism to arrest persons suspected of having committed crimes within its jurisdiction and to gather evidence. Therefore, it must rely on the cooperation of both States Parties and non-party States in the arrest and surrender of such persons and in the collection of evidence.

Part 9 of the Statute sets out a detailed regime which regards State Parties' cooperation with the Court, including the procedures for the Court to make cooperation requests for the arrest and surrender of accused persons and for assistance. Above all, Article 86 states that 'State Parties shall, in accordance with the provisions of the Statute, cooperate fully with the Court in its investigation and prosecution of crimes within the jurisdiction of the Court'. Moreover, Article 89

⁸¹James Shih Restoring the Balance Between The International Criminal Court and National Jurisdictions

A Critical Examination of the Principle of Complementarity in Action 2012

⁸² Philippa Webb, and Morten Bergsmo; *International Criminal Courts and Tribunals, Complementarity and Jurisdiction*, Oxford Public International Law (<http://opil.ouplaw.com>). (c) Oxford University Press, 2015

⁸³ James Shih Restoring the Balance Between The International Criminal Court and National Jurisdictions *A Critical Examination of the Principle of Complementarity in Action 2012*

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provides that the general obligation of cooperation also involves the obligation to carry out cooperation requests for the arrest and surrender of suspected persons.⁸⁴

The cooperation request is ‘transmitted through the diplomatic channel or any other appropriate channel as may be designated by each State Party’.⁸⁵ When there is a pending suspect’s surrender request, the Court can ask for the provisional arrest of that suspect⁸⁶.

According to Article 102, ‘surrender’ means ‘the delivering up of a person by a State to the Court’ and ‘extradition’ means ‘the delivering up of a person by one State to another as provided by treaty, convention or national legislation’.

The proviso in Article 86, ‘in accordance with the provisions of the Statute’, implies that the cooperation obligation is only limited by what the Statute establishes. The latter only permits a few limitations which a State may rely upon to postpone, or even refuse, a Court’s cooperation request.⁸⁷

Pursuant to Article 90, when a State Party receives a surrender request from the Court for a suspect and also receives an extradition request from another State Party for the same suspect for the same conduct, the Court’s request should be given priority when the Court decides that the case whereby the suspect’s surrender is sought is admissible. Furthermore, the Court’s request should be given priority when the Court determines that the case is admissible after the requested State’s notification to the Court. Only when the Court ascertains that the case is inadmissible, the requested State may execute the extradition request by the other State Party.

When a State Party receives a surrender request from the Court and an extradition request from a non-party State to whom it has a pre-existing treaty obligation which may be breached if it executes the Court’s request, the requested State Party may choose whether to execute the surrender request of the Court or the extradition request of the non-party State. In doing so, the requested State Party is to consult with the Court to decide the issue. When the State Party is not obliged internationally to execute the extradition request of a non-party State, the Court’s request to surrender the person must be given priority when the Court affirms that the case is admissible.⁸⁸

A State may postpone the execution of a cooperation request when ‘the immediate execution of such request would interfere with an ongoing investigation or prosecution of a case different from that to which the request relates’ (Article 94), or ‘there is an admissibility challenge to the case before the Court’ (Article 95). With regard to an ongoing investigation or prosecution, the requested State may postpone the execution of such request for a period of time, established by

⁸⁴ Dapo Akande, 'The Jurisdiction of the International Criminal Court over Nationals of Non-Parties: Legal Basis and Limits' (2003) 1 (3) JICJ 618

⁸⁵ Article 87(1)(a)

⁸⁶ Article 92

⁸⁷ Akande, 'The Effect of Security Council Resolutions and Domestic Proceedings on State Obligations to Cooperate with the ICC' *supra*, in Yvette

⁸⁸ Article 90(2)

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the Court, not longer than is required for the completion of the relevant investigation or prosecution in the requested State.⁸⁹

According to Article 97, a State Party may not execute a cooperation request if the latter has problems which may impede or prevent the request's execution. These include: the wanted person cannot be localised, the investigation carried out affirmed that the person in the requested State is surely a different person from that identified in the warrant, or the carrying out of the request would make the requested State breach a pre-existing treaty obligation with another State. In such circumstances, the State Party is obliged to refer to the Court without undue delay to settle the issue.

According to Article 98(1), 'the Court may not proceed with a request for surrender or assistance which would require the requested State to act inconsistently with its obligations under international law with respect to the State or diplomatic immunity of a person or property of a third State unless the Court can first obtain the cooperation of that third state for the waiver of the immunity' before issuing a cooperation request.

Article 98(2) provides that the Court may not proceed with a request for surrender which would require the requested state to act inconsistently with its obligations under international agreements pursuant to which the consent of a sending state is required to surrender a person of that state to the Court, unless the Court can first obtain the co-operation of the sending state for the giving of consent for the surrender.

The provision, which was intended to deal with conflicting obligations, such as the position of soldiers stationed overseas under Status of Forces agreements which allow the sending state to exercise elements of criminal jurisdiction with regard to its soldiers, has been used by the US for a much broader purpose. The US has signed a number of bilateral agreements with states, some parties to the Rome Statute and some not, which provide that no nationals, current or former officials, or military personnel of either party may be surrendered or transferred by the other state to the ICC for any purpose. This tactic has been widely criticised and is highly controversial.⁹⁰

Article 99 provides that States Parties should aid the Court as long as this is not forbidden by the State's national law, that is, a State would not cooperate with the Court if the cooperation request is prohibited by that State's national law. However, this does not mean that the requested State may automatically refuse to cooperate with the Court. A State may not comply with the cooperation request if compliance would violate the State's national procedural law but not the State's substantive law. However, according to Article 88, State Parties are required to have national procedural law enhancing cooperation with the Court.⁹¹

⁸⁹ Mutyaba, *supra*

⁹⁰ M. Benzing,

‘US Bilateral Non-Surrender Agreements and Article 98 of the Statute of the International Criminal Court’, N. Shaw *Supra* pg 414

⁹¹ Mutyaba, *supra*



Enforcing cooperation requests is extremely important for the Court to reach its purpose, namely to end impunity and achieve justice. According to Article 87(7), when the Court determines that a State Party did not cooperate with it, it refers the matter to the Assembly of States Parties or the Security Council when the latter had referred the matter to the Court. In the case of non-party States, when the Court enters into *ad hoc* agreements to ensure their cooperation and they do not cooperate, no sanctions exist for such non-party States. In such instances, when non-compliance is confirmed, the Court informs the Assembly of States Parties or the Security Council accordingly.⁹² Currently the ICC is determining whether to refer South Africa to the assembly of state parties for her refusal to arrest Bashir despite a court ruling.

It should be noted that states have been cooperating well in cases arising out of state referrals. However, the UN Security Council referrals have been controversial and that's why Bashir has been able to travel to states parties like South Africa, Kenya and Uganda without being arrested. It should be noted that lack of cooperation from UN SC made the prosecutor to drop charges of genocide against Bashir and all charges against Uhuru Kenyatta.

The above rules point to one important factor; respect for state sovereignty. Though states consented to the jurisdiction of the court, the rules on cooperation strike a balance between sovereignty and exercise of jurisdiction as analysed above.

Conclusion.

Although it is accepted that complementarity was intended to limit the power of the ICC (or, the 'international') over states, the idea behind complementarity can also be seen as a use of state sovereignty for international ends.⁹³ The exercise of legislative and adjudicative jurisdiction is an important part of state sovereignty. What the ICC does is provide a mechanism where states are actually encouraged to use their sovereignty in this way.⁹⁴ This effect is not necessarily limited to states parties. Still, the extent to which the ICC can provide such an incentive is not helped by what a number of the authors here accept: that the cooperation regime for the ICC is not strong, owing to an unwillingness of states to go too far in relation to their perceived sovereign prerogatives.⁹⁵ The fact that the Rome Statute has the locus of a treaty based on consent and only binds states parties, its rules on referral, jurisdiction, admissibility and cooperation all aim at striking a delicate balance between sovereignty and the need to ensure accountability for the most serious international crimes. This is best achieved through the principle of complementarity which is a cornerstone of the jurisdiction of the ICC and tend to impose a duty on states to fight impunity.

QUESTION; 2017 coursework

The rules on referral, jurisdiction, admissibility and cooperation by states parties under the statute for the International Criminal Court (ICC) represent a delicate balance between state sovereignty

⁹² *ibid*

⁹³ *ibid*

⁹⁴ Clapham, 'Issues of Complexity, Complicity and Complementarity: From the Nuremberg Trials to the Dawn of the International Criminal Court', in *Nuremberg*, at 64

⁹⁵ Cryer, *supra*



and the need to ensure accountability for the most serious international crimes; critically review this statement with reference to the statute for the ICC, as well as any relevant decisions/rulings by the ICC.

This question is already answered in the main body.

Uganda v Thomas Kwoyelo CONSTITUTIONAL APPEAL NO. 01 OF 2012; Supreme Court.

This appeal raises issues as to the Constitutionality of the Amnesty Act, (Cap 294, Laws of Uganda), whether the respondent is entitled to amnesty under that Act, and whether the respondent has suffered discrimination in the course of implementing that Act.

The respondent was a commander in a rebel force known as the Lord's Resistance Army (herein referred to as LRA). He was captured by the Uganda Peoples Defence Forces in Garamba National Park in the Democratic Republic of Congo in 2005. The respondent was subsequently brought back to Uganda and detained at Upper Prison, Luzira. It is while in detention at Luzira that, on 12th January 2010 he made a declaration before an officer in charge of the prison that he was renouncing rebellion and seeking amnesty. This declaration was submitted to the Amnesty Commission under the Amnesty Act.

The Commission, on 19th March 2010, forwarded the respondent's application to the Director of Public Prosecutions (DPP) for his consideration in accordance with the provisions of the Amnesty Act. In the stated view of the Commission, the respondent qualified to benefit from the amnesty under the provisions 10 of the Amnesty Act. The DPP did not respond to that application.

On 6th September 2010, the DPP preferred criminal charges against the respondent before the Chief Magistrate's Court at Buganda Road in Kampala. The charges were in respect of various offences under The Geneva Conventions Act. He was subsequently committed for trial to the International Crimes 15 Division of the High Court on an amended indictment containing 50 counts.

The respondent, through his counsel, requested for a reference to the Constitutional Court, contending that the offences for which he was indicted qualified him for amnesty under the Amnesty Act. He further contended that other LRA Commanders like Kenneth Banya, Sam Kolo and 26,000 other rebels who had been captured under similar circumstances were granted certificates of amnesty by both the DPP and the Commission. He contended, therefore, that the refusal by the DPP to certify him for amnesty and instead charge him with criminal offences, was discriminatory in so far as it deprived him of equal protection of the law under Article 21 of the Constitution.

The Constitutional Court upheld the respondent's reference, holding that the Amnesty Act did not offend Uganda's International Treaty obligations, nor did it take away the prosecutorial powers of the DPP given under the Constitution as submitted by the Attorney General. The Court

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further held that the respondent had been discriminated against contrary to the provisions of Article 21(1) (2) of the Constitution. The DPP, appealed to the Supreme Court.

Decision by the Supreme Court.

The Supreme Court considered the arguments by the Attorney General and came up with the following holding.

That the Amnesty Act does not extend a blank amnesty to all persons and to all crimes.

The DPP was required to satisfy himself that the person has committed crimes that are not within the ambit of section 2 of the Amnesty Act. Once so satisfied, there is no reason that the DPP cannot proceed to prosecute. It is not absolutely necessary for the DPP to give reasons as to why he did not certify for any one individual. The charges preferred are evidence as to why the DPP did not certify for 15 grant of amnesty. The Amnesty (Amendment) Act does not state the factors that the Minister may consider in declaring a person ineligible for amnesty. In any event, if the person is declared ineligible for amnesty, the DPP could prosecute that person if there are prosecutable offences. Therefore the Amnesty Act does not grant blanket amnesty for all crimes.

On the issue of whether the Amnesty Act is inconsistent with Uganda's international Treaty obligations, Court noted that when a country commits itself to international obligations, one must assume that it does so deliberately, lawfully and in its national interest. By the time the State goes through all the procedures of ratification and domestication, it must have seriously considered its overall national interest in the context of its role as a member of the United Nations. Therefore, a State should not easily shun its obligations as and when it wishes to. This must particularly hold true when the issue at hand is the massive violations of the human rights of its own people, whether by state actors or individuals or groups of individuals.

That by Article 287 of the 1995 Constitution of Uganda expressly recognized and expressly continued into force treaties in existence at the time its coming into force. The framers of the Constitution must have been convinced that all these treaties were still in the best interests of Uganda.

Court then considered the effect of the Geneva Conventions noting that these conventions were promulgated in the wake of the second world war where barbarous acts against humanity were committed. That in essence, the Geneva Conventions do recognize the fact that wars and rebellions do occur in the world. But they seek to lay a standard that even during the time of war or armed rebellion, there are certain acts, the sort that outraged the conscious of mankind during World War II, that must never be

permitted. These were referred to as grave breaches of the Conventions. Where they occur, states undertake, as an international obligation, to investigate, arrest and prosecute the offenders, provided the offenders are accorded fair trial in courts of law.

Uganda acceded to the Conventions and accordingly enacted The Geneva Conventions Act, Cap. 363, 15 Laws of Uganda which commenced on 16th October 1964. The purpose of the Act is given as *“to enable effect to be given to certain international conventions done at Geneva on the twelfth day of August, one thousand nine hundred and forty nine.....”*



Court held that acts amounting to grave breaches of the Geneva Conventions are outside the ambit of the Amnesty Act especially where they were not committed in the furtherance of a rebellion or war.

That whereas one may understand civilians being killed in cross-fire or when cities are bombed by aircraft or artillery, as being deaths while one is carrying out acts in furtherance of the war, it is difficult to see how acts of genocide against a given population, or the willful killing of innocent civilians in their homes when there is no military necessity, can be regarded as being furtherance of the war or rebellion. These would be acts carried out “unlawfully and wantonly.” This court cannot ignore reports, some well documented, of terrible crimes planned and committed by some people in Northern Uganda against innocent civilians who had nothing to do with government. **Those acts, do not qualify for grant of amnesty under the Amnesty Act.**

From the definitions of the term “amnesty” discussed above it is clear that personal crimes or crimes committed willfully against individual civilians or communities would not ordinarily be covered by amnesty.

Court also considered the importance of the ICC in prosecuting grave breaches of the Geneva Conventions. Justice Bert Katureebe in giving a unanimous decision of court held that;

“By way of analogy, it is also noteworthy that under the Rome Statute establishing the International Criminal Court, the International Criminal Court has been given jurisdiction to try violations of the laws of war even in non-international armed conflict. The language used in describing the offences covered leaves me in no doubt that the use of the phrases “in furtherance of the war” or in the cause of the war” were carefully and deliberately chosen. The Amnesty Act did not foreclose on certain individuals who may have committed these type of offences from being made to account for their actions. *Any crimes committed that were not necessitated by the furtherance of the war or rebellion were not a subject of amnesty under the Amnesty Act.* They were not political offences but crimes committed on members of society. To allow them, would mean that crimes committed out of malice or even personal vendetta would be granted amnesty. Willful murder of civilians is a crime against humanity which, in my view, cannot be granted amnesty under the Laws of Uganda particularly the Geneva Conventions Act, and the Amnesty Act does not purport to do.

Court thus emphasized that, crimes like willful murder of peasant women and children amount to the crimes described in the preamble to the Universal Declaration of Human Rights as crimes that “outraged the conscience of mankind” and are the sort

of crimes that are envisaged in the Geneva Conventions and 5 the Rome Statute as grave breaches that have to be prosecuted for. This, is the reason why Section 3 (3) of the Act directs the DPP to satisfy himself/herself the person applying for amnesty falls within the provisions of Section 2 or is not charged or detained to be prosecuted for any offence not falling under Section 2.



It follows that if the DPP is satisfied that the applicant has committed crimes that are outside the ambit of Section 2, then he is allowed by the law not to certify that person to be released. Then the DPP has to invoke his prosecutorial powers and prosecute that person for those crimes if he has the necessary evidence. In this case, the DPP has actually gone ahead to commence prosecution proceedings against the respondent. It is up to the respondent to argue, in his defence, that the crimes he is charged with were crimes he committed in “furtherance” of the war or rebellion or in the “cause” thereof and therefore eligible for grant of amnesty.

Court therefore found that the crimes against Kwoyelo were not committed in furtherance of the rebellion and were thus not available for grant of amnesty hence prosecution for such crimes is, legitimate both under the Constitution and International law.

Court therefore disagreed with the decision of the Constitutional Court that the respondent was treated unequally under the law, or that he was discriminated against in any way, simply because other rebels were not prosecuted for the sort of crimes the respondent is charged with.

That the person who commits such crimes may be eligible for grant of amnesty for the act of rebellion or waging war on Uganda, under the Act, but he is not, entitled to amnesty for the grave crimes he may have committed.

Court considered the importance of amnesty as well as the need for accountability. It quoted the former Secretary General of the UN Kofi Annan in his report to the UN on the Rule of Law and Transitional Justice in Conflict and Post Conflict Societies, who stated that **“Justice and peace are not contradictory forces. Rather, properly pursued, they promote and sustain one another.”**

The Agreement signed between the Government and LRA would illustrate the desire to have peace based on granting amnesty for war or rebellion, while at the same time demanding accountability by individuals for grave crimes committed against the population.

That there are no uniform standards or practices in respect of amnesty. Each country may put in place appropriate mechanisms with regard to amnesty to solve or address a particular conflict situation it is facing. But there appears to be a minimum below which amnesty provisions may not be permitted in respect of grave crimes as recognized in international law.

The court allowed the appeal and okayed the prosecution of Kwoyelo by the international crimes division of the high court.

In summary, the court held as follows.

That the Amnesty Act does not impinge on the prosecutorial power of the DPP. That

the act is therefore not inconsistent with the Constitution in that regard. That the Amnesty Act is not inconsistent with Uganda's international law obligations, as it does not grant blanket amnesty for all crimes. That the Geneva Conventions Act still applies, and the indictment of the respondent under Article 147 thereof does not violate the Constitution of Uganda. That the respondent had not suffered discrimination or unequal treatment under the law. That the DPP was acting within his powers not to certify the respondent for grant of amnesty, and to commence prosecution against him on specific crimes under the Geneva Conventions Act.



INTERNATIONAL ECONOMIC LAW

International Economic Law is a branch of law that regulates economic relations between states. Since economic relations between states include transactions between states as well as transactions between legal and natural persons within those states, International Economic Law has public and private dimension.

The private side of International Economic Law include sub branches such as the following.

- i. *Private international law* (conflict of laws); which regulates jurisdictional conflicts between legal and natural persons in different states. It is mostly based on customary international law as well as decisions of international tribunals and the views of eminent jurists.
- ii. *International business law*; which regulates the substantive principles applicable to business transactions between legal and natural persons in different states. It is based mostly on general principles of law derived from the domestic law of states.

The public dimension of International Economic Law on the other hand includes the following sub branches.

- i. *International Financial/Monetary law* ; which regulates monetary relations between states. It has multilateral aspects for example the articles of agreements of the International Monetary Fund (IMF) as well as regional dimensions for example the treaty of Amsterdam which establishes the European Central Bank which regulates monetary transactions between states of the European Union.
- ii. *International Development law* ; which regulates the management and flow of development aid. This also has a multilateral side. For example the articles of agreements of the International Bank for Reconstruction and Development (World Bank) as well as regional dimensions for example the charter of the African Development Bank. In these hard law forms, international development law is also based on a growing body of soft law that includes policy documents issued by multilateral institutions such as World Bank and International Monetary Fund.

During the 1980s and early 1990s for instance, the World Bank and the IMF forced a

number of developing countries including Uganda to transform their economies by adopting Structural Adjustment Programmes (SAPS) that were part of the condition for acquiring loans from these institutions.

- iii. *International trade law*; this regulates trade in goods and services between states and is both multilateral, for example, the Geneva Agreement of Tariffs and Trade(GATT)

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, as well as, the agreement establishing the World Trade Organisation (WTO) as well as regional, for example the East African Community, COMESA, ECOWAS, SADC etc.

- iv. *International investment law*; this regulates the flow of foreign direct investment across states. It is mostly bilateral, that is, it is based on bilateral investment treaties because efforts to create a multilateral investment treaty have failed.

Relationship between international economic law and public international law;

Both International Economic Law and public international law are concerned with the question of sovereignty that is the extent to which a state may be allowed to freely decide on matters concerning it while also taking into account the legitimate interests of other states that are affected by the decisions of the one state.

While public international law is focused on political sovereignty, International Economic Law is understood as focusing on economic sovereignty for example trade policy, investment, monetary, fiscal policies etc.

Increasingly, however, the boundaries between International Economic Law and public international law are becoming blurred and the two branches overlap. This is largely because globalisation and contemporary international affairs no longer respect the view that there is a sharp distinction between politics and economics.

To summarise, International Economic Law focusses on a number of issues most notably;

- i. State control over policy regarding trade, investment, monetary or fiscal matters. These are mostly based on treaty law.
- ii. State control over natural resources. This is based on general principles of law practiced across civilized countries since there is no treaty on the matter. It is also based on custom and state practice.

The developed and developing worlds disagree over the standards to be applied in state management over natural resources. The developing world in the early post independence period resorted to the UN General Assembly where it used its numerical strength to adopt 2 resolutions that emphasise state control over natural resources. These are; The Resolution on Permanent Sovereignty over Natural

Resources (December 1962) and the Resolution on the Declaration of a New International Economic Order (May 1974).

iii. Diplomatic protection of the interests of a state's nationals abroad.

Diplomatic protection here refers to the right of the state to protect the interests of its nationals on

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foreign territory. This right is based on custom and is one which a state may choose when to exercise.

International law recognizes certain principles regarding a state's right to exercise diplomatic protection over its nationals abroad. The general rule is that a state may employ any means to protect the interests of its nationals abroad provided it does not violate international law. For example a state may not resort to use of force where the interests of its nationals are affected by another state, but it may resort to retortion by employing similar measures as those employed by the other state with a view of bringing an end to the wrong.

Secondly before states can exercise diplomatic protection over the interests of its nationals abroad, the state must demonstrate; (a) that such nationals have exhausted all local remedies in the state where the injury occurred and (b) that there have been a continuous nationality link between the state seeking to exercise diplomatic protection and the national in question.

The above principles have been laid down in the two decisions by the ICJ. The Nottebohm decision and the Barcelona Traction decision.

Nottebohm

Nottebohm was born in Germany and was a German citizen. In 1905, he migrated to Guatemala and lived there for over 30 years even though he never applied for Guatemala citizenship. In 1939, while still a German national and resident in Guatemala, he successfully applied for Liechtenstein citizenship. He sometimes went to Germany on business and to other countries for holidays and also paid a few visits to Liechtenstein where one of his brothers lived. However, he continued to have his fixed abode in Guatemala. He later tried to return to Guatemala but was detained and his property was confiscated.

Liechtenstein claimed restitution and compensation from Guatemala on grounds that Guatemala had violated the rights of a citizen of Guatemala. Guatemala responded by raising a preliminary objection before the ICJ on grounds that Liechtenstein's claim was inadmissible since Nottebohm was not its national.

The ICJ HELD;

- I. Nationality is generally a matter within the domestic jurisdiction of a state and every state is at liberty to determine the rules regarding acquisition of its nationality.
- II. However, where more than one state confers nationality upon an individual, the matter ceases to be one of domestic law and it must be resolved on the basis of international law.
- III. In order to resolve this question, international law gives preference not to

formal nationality, that is, the documents of citizenship held by the individual, but to real and effective nationality, that is, nationality that is based on factual ties between the individual and the state(s). A key question is which state's population is the individual more attached to?

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In the present case, it's worth asking whether Nottebohm by way of his tradition, his establishments, his interests, his activities, his family ties, his intentions for the near future etc, was more attached to Liechtenstein or any other state? In fact, the evidence indicates that Nottebohm always retained his family and business connections with Germany and that his application for naturalization in Liechtenstein was not in any way intended to separate him from his country of Germany.

- iv. The court dismissed Liechtenstein's claims on grounds that it should have been Germany and not Liechtenstein to exercise diplomatic protection over Nottebohm.

Barcelona Traction case;

The ICJ laid down the rules regulating state exercise of diplomatic protection over legal persons. The rules appeared to differ slightly from those laid down in regard to diplomatic protection of natural persons in the Nottebohm decision.

Facts;

A company was incorporated in Canada but transacted more of its business in Spain. The vast majority of its shareholders (over 80%) were from Belgium. Spain undertook a number of decisions as a result of which the company lost a significant amount of its net value. The shareholders of the company felt aggrieved and in this basis, Belgium brought an action against Spain before the ICJ. And Spain raised a preliminary objection that Belgium had no locus standi in the matter since the company had been incorporated in Canada.

Held;

The ICJ agreed with Spain and ruled that the right to diplomatic protection in respect to the injury to a corporation or legal person vests in the state where the corporation was incorporated. This is because the company has separate legal personality from its shareholders. (*Salmon v Salmon*).

Criticism;

The court was so caught up in the Salmon v Salmon principle and failed to see that the Belgium shareholders were the most affected, the decision is too formalist but it still good law.

INTERNATIONAL INVESTMENT LAW.

There is a sub-branch of international economic law which regulates the flow of foreign direct investment across states. International investment law specifically focusses on foreign direct investment (FDI) and not portfolio investment.

Foreign direct investment involves the transfer of tangible or intangible assets from one country to another for the purpose of their use in another country to generate wealth under the total or partial control/management of a foreign investor. Portfolio investment on the other hand

is the movement of money for the purpose of buying shares or other forms of equity in a company already formed and functioning in another country.

The distinguishing element between foreign direct investment and portfolio investment; is the separation of ownership from management or control. In foreign direct investment, the foreign investor has a presence in the country and is involved in managing the investment whereas in portfolio investment, the foreign investor is not involved in the management of investment.

International investment law is primarily focused on foreign direct investment and is based on both customary international law and on treaties between states. Typically, the principles of custom only focus on foreign direct investment but in recent years, bilateral treaties between states have included provisions on portfolio investment.

To summarise, whether or not a portfolio investment is protected in international law depends on whether or not there is a bilateral treaty between the foreign investors' country of origin and a host state of investment.

Historically international investment law has evolved through different phases. From an African perspective, the earliest phase was marked by the colonial period during which the colonizing states protected their investments and other economic interests in the colony through force and not law. During this period, there was almost no investment treaties and international investment law was largely based on custom.

Following independence, most African states regarded foreign investment with suspicion and many of them resorted to legal doctrines that were intended to protect their countries from rampant foreign investors who were considered agents of the West. Some of those doctrines were enshrined in resolutions such as that of a New International Economic Order as well that on Permanent Sovereignty over Natural Resources. These two resolutions particularly emphasized the right of the host state to nationalize or take over any foreign investment in the national interest.

Following a decade of independence, however, most African and developing countries faced economic crisis especially those that had nationalized foreign owned property. In Uganda, in 1968 Obote nationalized some banks at the beginning of his "move to the left" under the Common Man's Charter. In 1972 Idi Amin nationalized Asian property and following this, the economy collapsed and by the late 1970's, there was need for foreign direct investment in order to revive the economy. Most developing countries during this time concluded bilateral investment treaties (BITs) with developed countries in order to attract foreign direct investment.

The second major phase in international investment law began in the late 1970's and early 1980's when African and other developing countries succumbed to pressure from the World Bank and IMF by concluding even more bilateral treaties with developed countries and enacting legislation intended to protect foreign investors

from nationalization and other concerns. During this period, international investment law became a balance of the interests and sovereignty of the host state on one hand and the desire by foreign investors to have maximum protection for their investment.

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The key issues in Bilateral Investment Treaties (BITs)

i. State responsibility for economic injury to foreigners.

This issue arose because while the western world did not question the right of the host state to nationalize foreign property in the national interest, there was disagreement over the standards by which the foreign investor whose property had been nationalized would be compensated.

The western world led by the US followed a custom standard initially articulated by the US Secretary of State Cordell Hull, which stipulated that in the event of a nationalization, the host state would compensate the foreign investor promptly, adequately or sufficiently and importantly in accordance with the international market value of the investment. This is called the Hull doctrine.

The developing world on the other hand rejected the Hull doctrine of compensation and argued that while the foreign investor was entitled to compensation, the standards of that compensation ought to be based not on the international market value of the investment but on the valuation determined by the host state in accordance with its domestic laws. This latter doctrine of compensation was known as the Calvo doctrine of compensation, named after the Argentine jurist named Calvo who first articulated it.

So this shows that where there is no Bilateral treaty or customary law, there is a problem in international law concerning the standards of compensation and since the rich countries enter into bilateral investment treaties under the Hull doctrine with developing states because these states are desperate. Look at the Uganda constitution Article 26 and the Investment Act, they all have the Hull doctrine. Also Argentina was pressurized to repay its loan under the Hull doctrine a few years ago.

ii. Exhaustion of local remedies.

Most bilateral investment treaties include a provision that before a foreign investor can seek a remedy in a foreign tribunal, he or she must make an effort to exhaust all local remedies provided by the host state. Where the bilateral investment treaty is silent on the exhaustion of local remedies, however, the ICJ's decision in the ELSI case 1989 suggests that there is nevertheless a duty on the foreign investor to exhaust all local remedies before international arbitration can be activated.

iii. Control over natural resources

During the colonial period most foreign investors supported by their powerful home states ensured that they got favorable long term contracts with regard to the exploitation of minerals in the host state. Because of this, the traditional mode of

contracting between the foreign investor and the host state was that of a concession contract or agreement.

Under the concession agreement, the foreign investor is granted an area of land which includes the sub-soil and the resources on it in which case the foreign investor has exclusive rights to explore



and prospect the minerals on the land in question. In the event that minerals exist, they belong to the foreign investor who is only required to pay royalties and other taxes to the host state.

Over the last 30 years ,however, most developing countries including in Africa have come to regard a concession agreement as an exploitative and unfair mode of contracting and have sought to replace them with a new mode of contracting known as production-sharing agreements. (PSAs)

Under PSAs, the foreign investor is not granted ownership of the mineral resources but rather, he enters into a joint venture with the host state under which both parties agree to contribute jointly to the prospecting for and exploration of minerals. In the event that minerals are discovered, the costs and profits of exploration and mining are shared by the foreign investor and the host state depending in the agreement between the two.

In essence, concession agreements are rarely used in modern day contracting between the host state and foreign investor and they have been replaced by PSAs. Even then, there may be situations where the host state prefers a concession agreement rather than a PSA for example where the cost of exploring is exorbitant and beyond the means of the host state, the technology for exploring and mining cannot be accessed by the host state, there is uncertainty regarding the commercial prospects of the mineral such that the host state is not prepared to take the risk by investing its meagre resources etc. unless any of the above factors exist a PSA is the preferred mode of contracting.

NB; anticipated exam question; *explain the circumstances under which the use of a PSA over Concession agreement may be preferred by a state.*

Also refer to a mining company in Ghana called Ashanti Goldfield Corporation and in South Africa, De Beer which signed concession agreements and now with need to renegotiate; but this is hard because they are being sued and paying expensive damages.

iv. **Technology transfer**

Most bilateral investment treaties (BITs) carry a provision which requires the foreign investor to gradually share their technology with the host state. The nature and duration of this transfer of technology depends on negotiation between the two parties.

Typically, however, the BIT which is an agreement between the host state and the foreign investor's state of origin will have a general provision on technology transfer and the specifics of such transfer will be contained in the terms and conditions attached to the license granted to the foreign investor by the host state.

v. **Most favoured nation (MFN) provisions.**

Bilateral investment treaties often carry an MFN provision. This provision prohibits the host state from discriminating between foreign investment from different countries by giving favourable treatment to one group of foreign investors and not the other. For example if Uganda offers any sort of advantage to foreign investors from Kenya, then an MFN provision in a BIT between Uganda and Tanzania would mean that Uganda has to give the same advantages to foreign investors from Tanzania.

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vi. **National treatment rule.**

The national treatment rule or provision is similar to that of MFN in that they both prohibit discrimination. However, while MFN prohibits discrimination between foreign investors from different countries, the national treatment provision prohibits the host state from discriminating between foreign investors and its own locals; for example a national treatment provision in a BIT between Uganda and Kenya would prohibit Uganda from giving any sort of advantage to its nationals unless it extends that advantage to Kenyan investors as well.

vii. **Repatriation of profits**

Most BITs include provisions stipulating the extent to which the foreign investor may repatriate profits. In most cases, the foreign investor is generally free to repatriate profits provided they meet certain conditions. These conditions may include investing a certain portion of the profits in the host state.

viii. **Transfer pricing**

Most BITs include provisions on transfer pricing. This is the practice by which a foreign investor structures his production process in such a way as to minimize tax liability.

The host state in this case will attempt to restrict the extent to which the foreign investor does this by requesting for instance that certain stages of production must take place in the host state and that they will be liable to value added tax in the host state.

ix. **Dispute resolution**

Every modern BIT has provisions on dispute resolution. Typically, foreign investors prefer international arbitration in keeping with the Hull doctrine while the host state prefers resolution in domestic courts.

x. **Onerous contracts;**

This is a contract that is burdensome for one of the parties. There is debate in international law regarding the extent to which a state may rescind an onerous term in a PSA contract.

The general rule is that foreign investment contracts which become too onerous for the host state to perform is subject to governmental intervention by the host state with a view to making it less onerous. This principle is based on general practice in states and generally requires that the governmental intervention should be by

legislative means and not mere administrative action.

In *Setebello v Banco Totta Acores* (1985) 1 WLR 1050 a state owned shipyard in Portugal entered a contract with a foreign company to build a large oil tanker. There was penalty provisions in the contract for late performance. The shipyard was unable to meet the time limit set in the contract and was in danger of having to pay a large penalty. The Portuguese government intervened by enacting provisions which altered the penalty provision in the contract.

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Held;

That the interventions by the Portuguese government was valid and the other party was unable to obtain a remedy outside Portugal.

xi. **Intellectual property (IP)**

Many BITs include provisions on Intellectual Property. The interest of the home state of the investor is to ensure that the host state and its nationals do not violate the intellectual property rights of the foreign investor. Intellectual property is increasingly included in the definition of “foreign investment” and its violation is considered a breach of the host state’s obligations under the BIT statute.

INTERNATIONAL MONETARY/DEVELOPMENT LAW

International monetary/financial law is a sub branch of international economic law which regulates monetary relations between states. It is based on the recognition that while every state has the right to exclusive monetary sovereignty (that is the right to make any decision concerning its currency without interference from other states), other states may have the right to interfere in that state’s exercise of monetary policy if the monetary policies of that state affects other states.

International monetary law attempts to set boundaries between the choices that a state can make and the restrictions that allow the international community to interfere in that state’s monetary choices. International monetary law is particularly based on articles of agreement of the International Monetary Fund (IMF) which were concluded along with those of the international Bank for reconstruction and Development in 1944 in a town known as Bretton Woods in the US.

International Monetary Fund (IMF)

The IMF was particularly charged with ensuring that states did not engage in irresponsible monetary policies that would have adverse effects on other states’ economies. The legal framework of the IMF (Articles of Agreement) does the following;

- i. It creates the IMF as an institution that is charged with regulating monetary relations and policies between member states. The fund particularly ensures that every year, the finance ministers of the member states as well as other key policy makers involved on monetary matters report to the fund and give an account of the monetary policies and decisions they have taken the previous year. Based on these reports, the IMF will determine whether or not to send a mission team to the country in question in order to determine

the extent to which the country is complying with its obligations under the IMF Articles of Agreement.

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- ii. Under Article 1 of the Articles of Agreement (AOA) the purposes of the IMF include promoting international monetary stability and cooperation and preventing any measure that undermines such stability
- iii. Under Article 2, membership of the IMF is open to all states admitted by the IMF and is based on subscription as well as special drawing rights which are a form of shares.
- iv. Under Article 5(1), the IMF only deals with the member states through their treasury or finance ministry and the central bank. The fund has no business whatsoever with any other governmental institution.
- v. Under Articles 4 and 8, member states of the IMF are generally obligated to avoid any measures or omissions that undermines the stability of the international financial institutions including poor monetary and fiscal policies.
- vi. Under Article 4(3)(b), the IMF is prohibited from interfering in the domestic policies of a member state or from making any decision vis a vis a member state on the basis of any factor other than monetary or fiscal.
- vii. Under Article 5(5), member states of the IMF may not use funds obtained from the IMF for purposes other than those that are consistent in maintaining international monetary and financial stability.
- viii. Under Article 9, the IMF has legal personality but is immune from legal process.
- ix. Under Article 12, the IMF is governed by a board of governors, an Executive Board, a managing director and a council.

WORLD BANK (International Bank for Reconstruction and Development)

Unlike the IMF whose mandate is focused on maintenance of international monetary and financial stability, the World Bank's mandate is focused on international development. This means that while the IMF is concerned with addressing short term monetary crises, the International Bank for Reconstruction and Development focusses on addressing long term development challenges for example, low economic productivity, unemployment, poverty, poor health, poor infrastructure etc.

The key terms within the International Bank for Reconstruction and Development (IBRD) Articles of Agreement include;

- i. Under Article 1, the Bank's purpose includes the promotion of development, foreign investment, infrastructural development and other challenges related to human well - being. All decisions by the bank with respect to member states must be related to these purposes.

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- ii. Under Article 2, membership of the bank is open to members of the IMF and is based on a system of shareholding and limited liability of member states who are only liable for the bank's debts and dues up to the amount of their unpaid up shares.
- iii. Under Article 3 the Bank's resources can only be spent in member countries. In other words, a loan or any other financial aid obtained from the bank cannot be spent in a country that is not a member state of the bank.
- iv. Article 3(2); like the IMF, the bank only deals with member states through their treasury (Finance Ministry), their central bank or such other agency as performs the functions of these 2 institutions.
- v. Article 3(4); unlike the IMF which only deals with governments, the bank can lend both to the government or to private institutions in member states or to a political sub division in a member state for example a local government, provided that the loan to the political sub-division is guaranteed by the state in which it is located.
- vi. Article 4(10), the bank and its officers are prohibited from interfering in the political affairs of any member state or nor shall they be influenced in their decisions by the political character of the member or members concerned. Only economic considerations shall be relevant to their decisions.
- vii. Under Article 5 the bank is governed by a board of governors, a team of executive directors, a president and a number of support staff. The board of governors is the most powerful organ of the bank and in practice, it delegates its powers to the executive directors. Article 5(3).
- viii. Article 6, any member may withdraw from the bank at any time
- ix. Article 6(3) a member may be suspended from the bank if it fails to meet its obligations.
- x. Article 7, the bank shall have full legal personality coupled with immunity from legal process.

Organs of the World Bank

The World Bank group is comprised of different institutions each of which plays a specific role. They are the following;

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- i. The International Bank for Reconstruction and Development (IBRD); this provides loans, grants and other forms of aid to governments only. That is, it has no transactions whatsoever with non-states.
- ii. The International Finance Corporation (IFC); this provides business loans and other forms of capital support for example by purchasing equity or shares in non-states entities (the private sector) provided that these terms of business support and lending are guaranteed by the state in which they are located and that state is a member of the World Bank.
- iii. The International Development Association (IDA); this provides loans to governments and not the private sector.
- iv. The International Centre for the Settlement of Disputes (ICSID); this serves as an arbitration forum for the resolution of investment disputes involving member states of the World Bank, for example, an investment dispute between a member state of the World Bank and a foreign investor from another member state of the World Bank.
- v. The Multi-lateral Investment Guarantee Agency (MIGA); this provides insurance cover against political (non-business) related risks associated with private investment in a World Bank member group.

INTERNATIONAL TRADE

Following the second world war, the victorious powers attempted to design an international institutional architecture that would manage both political and economic risks to international peace and security.

On the economic side, the institutions created include the World bank and the IMF. Efforts to create a third institution dealing with issues of international trade organization failed because members could not agree in its functions and powers. Nevertheless states agreed in 1947 on a set of rules to govern international trade. These were known as General Agreement on Tariffs and Trade (GATT).

GATT 1947 remained in place for close to 50 years and was instrumental in regulating international trade relations between states. However, the GATT 1947 legal framework had fundamental weaknesses; namely;

- I. As already noted, it lacked an institutional mechanism for its enforcement as a result of which its rules were violated (flouted) by most states.

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- iii. It mainly focused on trade in goods thereby excluding the growing volume of trade in services between states.
- iv. It excludes rules on intellectual property yet IP issues had become a growing part of inter state relations by the end of the 20th century.
- v. GATT 1947 excluded rules on international foreign investment even though it was clear by the 1980s that international trade issues could not be regulated in isolation from international investment issues.
- vi. The rules of GATT had been crafted with a focus on developed countries and with very little attention to developing countries most of whom had not acquired independence in 1947. Its rules were therefore largely considered unacceptable by the most developing countries even though these countries constituted the majority in the world.

In view of the above weakness, the international community in 1986 initiated a new round of trade negotiations aimed at reforming the international legal system on trade. This led to the formation in 1984 of a new organization that is the World Trade Organisation and alongside it, a new set of rules on international trade, mainly GATT 1994.

GATT 1994, differed from GATT 1947 in many ways but it is important to note that GATT 94 did not repeal GATT 47 but merely incorporated in into the new legal system. In addition to incorporating GATT 47, GATT 94 did the following;

- a. It established the World Trade Organisation that is it created an institutional mechanism for enforcing the rules on international trade
- b. It expanded the rules on trade in goods between states by adding the already existing framework of GATT 47. (Annex 1A)
- c. It introduced new rules on trade and services. (Annex 1B)
- d. It introduced new rules on intellectual property where such had an effect on the international trade. The relevant agreement is known as the agreement on Trade related aspects of Intellectual Property (TRIPS)
- e. It introduced new rules on foreign investment where these had an impact on international trade. The relevant agreement is known as the agreement on Trade Related Investment measures (TRIMS)

In addition to the above agreements, the World Trade Organisation (WTO) legal framework includes the following.

- i. An understanding on rules and procedure governing the settlement of disputes (the Disputes Settlement Understanding Annex 2)
- ii. A mechanism for reviewing every WTO member state's policies in trade. (the Trade Policy Review Mechanism, Annex 3)

All the above agreements that is the agreements establishing WTO as well as the

various annexures thereto form an integral part of the WTO legal framework and are binding on all member states of the WTO.

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In addition to the above multilateral agreements that are binding on all member states of the WTO, the WTO's legal framework also includes a number of plurilateral agreements that are only binding on those WTO member states which sign up to them. These include agreements on government procurement, civil aircraft, meat and dairy trade.

The key provisions of the WTO legal framework may be summarized as follows;

- It creates the WTO with three governing agencies viz; (a) Ministerial Conference; gathering of all trade ministers of all member states which meet at least once every two years and is the primary decision making organ. (b) a general council which is comprised of elected representatives of all member states and which meets as appropriate between intervals of ministerial conference. It carries out functions delegated to it by the Ministerial Conference and (c) a Secretariat which is responsible for the day to day running of the WTO.
- Under the WTO legal framework, all decision making is by consensus
- The WTO legal framework provides for both the Most Favoured Nation (MFN) principle and the National Treatment Principle. Under the MFN clause, a member state of the WTO is prohibited from discriminating between different member states of the WTO and is required to accord equal treatment to all member states. There are nevertheless exceptions to the MFN namely.
 - a. Member states of the WTO are allowed to conclude regional trade agreements amongst themselves under which they give preferential treatment to goods from each other thereby discriminating against goods from non-members of the regional trade agreements.
 - b. Countries can impose tariffs (trade barriers) against imports if such tariffs are aimed at preventing dumping measures by another state. Ordinarily, the imposition of tariffs by a WTO member state is prohibited. At the same time, however, the dumping of goods by a WTO member state is prohibited.

A product is considered as having been dumped if it is introduced into the market of another state for example, if country A introduces a product into the market of country B, at a price that is less than the price ordinarily charged for that product in country B, and the reduced price that country A charges is not the result of free market forces (demand and supply) but rather is the outcome of some kind of subsidy or income

support given by country A to its producers, then the product by country A is considered as having been dumped in violation of WTO rules.

A subsidy is defined as any sort of contribution financial or otherwise made by a government or other public body to producers within its territory which has the effect of benefiting the producer and enabling them to sell their product in another country at less than fair market value.

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Countervailing measure on the other hand is any step taken by a country with a view to inducing that other country to abandon a particular trade distorting practice for example a subsidy, dumping etc.

- The WTO legal framework allows the formation of regional trade blocks for example, East African Community and specifically permits the creation of a customs union and a free trade area. Under a customs union, member states agree to impose the same rate of tax (a common external tariff CET) on all goods and services entering the region. For example Uganda, Kenya, Rwanda, Tanzania and Burundi all agree that all shoes from outside East Africa will be charged a 3% tariff. If any East African Community charges more or less than 3% on such goods, they violate CET.

Under a free trade agreement on the other hand, member states of the regional trade block agree to eliminate all tariffs and non-tariff barriers to goods and services originating from within the regional trading block. It follows therefore that for a free trade area to function, there must be an agreement between the members on rules of origin, that is, a mechanism for determining which goods are produced from within the regional block or which goods are produced outside.

- Finally the TRIPs agreement requires WTO member states to comply with agreements on intellectual property including the Paris Convention, the Berne Convention, the Rome Convention etc. intellectual property includes copyright and related rights, trademarks, patents, geographical indications, industrial designs etc.

QUESTION; 2017 coursework

The principles and doctrines of international economic law reflect a delicate balance between state sovereignty and the need to ensure that a state's economic choices do not affect other states adversely. Review this claim with specific reference to international investment law, international monetary/development law and international trade law.

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USE OF FORCE IN INTERNATIONAL LAW

The use of force was not always prohibited under international law. For example the covenant of the League of Nations did not prohibit war but only established procedures for dispute settlement aimed at delaying the resort to war as a means of discouraging states from war.

The first formal outlawing of war in international law was the 1928 Germany Treaty for the Renunciation of War also known as Kellogg Briand Pact or the Pact of Paris. Under the treaty states, condemned recourse to war as a solution to international disputes. The treaty was accepted by over 60 states including all the major powers at the time.

Although the Kellogg Briand Pact failed to prevent the second world war, it served as one of the bases for the Nuremberg and Tokyo trials that followed the war. The treaty actually remains in force although it has been in a sense overtaken by the UN Charter which under Article 2(4) prohibits all forms of the use of force.

The prohibition of use force under Article 2(4) was held by the ICJ in the Nicaragua case to be a rule of customary international law. It has *jus cogens* status.

Article 2(4); prohibition

The use of the phrase use of force was deliberate and has the effect of outlawing all war whether declared or not. A question that arise at time of the negotiation for the charter was as to the scope of the term force as used in Article 2(4). The proposal by Brazil to expand the reference to force to expressly include economic force was rejected. Therefore the traditional view is that the reference to force in Article 2(4) only relates to armed force as opposed to economic force.

A related question has been as to whether Article 2(4) prohibits indirect force that is where a state uses force against another state through the medium of a third party.

In the *Nicaragua case*, the ICJ found that the US had violated Article 2(4) by arming and training the Contras against Nicaragua. However, the court did not accept that the US financial support to the rebels was a violation of Article 2(4). The understanding of indirect force as a violation of Article 2(4) has also been affirmed in the context of terrorism for example in a number of resolutions the UN Security Council has cautioned states not to allow armed groups use their territory as bases for launching terrorist attacks on other states. Resolution 1373 (2001) and (2004).

Similarly, when in 2001 the US invaded Afghanistan a major justification for the invasion was the fact that Afghanistan had allowed its territory to be a base for *Al-Qaeda* which had carried out the attacks of 11/09/2001.

The UN Charter Framework for collective security.

In addition to the general prohibition of the use of force under Article 2(4) the charter establishes a robust framework for the maintenance of international peace and security.

Under Article 1 of the Charter, one of the main purposes of the UN is to maintain international peace and security. Under Article 7(1) of the UN Charter, the organs of the UN include the UN Security Council, the General Assembly and the Secretariat.

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The UN Security Council

Under Article 24(1) of the UN Charter, the UN Security Council has **primary responsibility** for the maintenance of international peace and security. The council consists of 5 permanent members and 10 non-permanent members. The non-permanent members of the council are elected by the General Assembly and serve in that capacity for a term of two years. The permanent members of the council are the United States, France, United Kingdom, Russia and China.

Evidently the permanent membership of the security council reflects the side that won the second world war. Today there is obvious tension between this membership and contemporary political realities. Indeed, a number of states have with various good reasons met claims for permanent seats on the security council. These include Japan, Germany, South Africa, Brazil, India Nigeria and Egypt. The calls for reform have increased over time and the UN has begun to reflect upon mechanisms of accommodating the various claims having regard to among other things geographical diversity as well as military and financial power.

Under Article 25 of the UN Charter, states are obliged to accept and carry out the decisions of the security council. In terms of Article 27 of the UN Charter, a part from decisions on procedural matters, all decisions of the council must include the concurring votes of the permanent members. (power to veto). The potential deadlock that might have been created by this provision has to some degree been addressed by the development of abstention in practice in which the abstention of the permanent member from voting has not been considered a veto.

Under Article 34 of the UN Charter, the security council may investigate any dispute or any situation which might lead to international friction and is likely to endanger the maintenance of international peace and security. Under Article 35(1) any member of the UN may bring any dispute of any situation of the nature referred to in Article 34 to the attention of the security council or the general assembly.

According to Article 35(2) a non-member state of the UN may also bring a dispute to which it is a party if it accepts in advance, for the purposes of the dispute, the obligations of pacific settlement provided in the charter.

The General Assembly under Article 11(3) and the Secretary General under Article 99 are similarly empowered to bring to the attention of the council any matter which may threaten international peace and security.

Where a situation likely to endanger international peace and security is brought to the attention of the UN Security Council, the council may take action under Chapter Six or Seven of the Security Council.

Chapter Six Mandate of the UN Security Council.

Under Article 36(1) of the Charter, the council is empowered to recommend appropriate dispute resolution methods to address any situation likely to endanger international peace and security.

Under Article 36(2) in so doing the council must take into account any dispute settlement procedures which have already been well adopted by the concerned states. Under Article 36 the

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council must also take into account consideration of the fact that legal disputes as a general matter be referred by the parties to the ICJ. Indeed on atleast two separate occasions, the council has specifically recommended that parties refer disputes to the ICJ.

In 1947, the council advised the UK and Albania to refer the dispute regarding the sinking of the ships in the Corfu channel to the ICJ. In 1976, the council again recommended that Greece and Turkey refer their disputes over the Aegian Sea Continental Shelf to the ICJ.

Chapter Seven Mandate of the UN Security Council.

The most affirmative action the security council can take with respect to threats to international peace and security is under chapter 7 of the UN Charter.

Under Article 39 of the Charter, the council must determine the existence of any threat to the peace, breach of the peace or act of aggression and must make recommendations or decide what measures must be taken in accordance with articles 41 and 42 to maintain or restore international peace and security. In other words outside Article 39, the security council may be said to act ultra vires. From a reading of Article 39 the power of the security council must flow from a determination that there exists;

- i. A threat of peace
- ii. A breach of peace
- iii. An act of aggression

Only once such a determination has been made can the security council proceed to make recommendations or take decisions under that Chapter 7. A question has arisen as to whether chapter 7 powers can be invoked with respect to serious violations of human rights within a country.

According to one view even the most serious violations of human rights within a single country do not constitute a sufficient basis for Article 39 determination which requires that there be an external element to the crisis or that there be a threat of triggering conflict with other states.

According to another view, however, serious violations of human rights within a country may be properly determined to constitute a threat to the peace under Article 39 of the Charter.

Recent security council practice would suggest a move towards the view that serious human rights violations or humanitarian crises can without overt external elements or implications constitute a breach of the peace. This has been especially so since the adoption of the Responsibility to Protect Resolution of 2005 (R2P) General Assembly RN 6G/1.

A good example in this regard is the security council resolution 1973 adopted on 17th March 2011, which determined that the situation in Libya continued to be a threat to international peace and security notwithstanding the fact that there was no overt threat to the peace of any other state.

Possible measures under chapter 7.

Where the security council makes an Article 39 determination as to the existence of a threat to the peace, a breach to the peace or act of aggression, its empowered in response to take the following.

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- i. Provisional measures
- ii. Non-forcible measures
- iii. Forcible measures.

Provisional measures

Under Article 40 of the Charter, in order to prevent an aggravation of the situation, the security council is allowed before making any recommendations or deciding upon any actions under Article 39 to call upon the relevant parties to comply with such provisional measures as it deems necessary or desirable. Such provisional measures must be without prejudice to the rights, claims or position of the parties concerned. Article 40. In addition under Article 40, the council is mandated to take into account failure to comply with such provisional measures.

Non-forcible measures.

Under article 41 of the UN Charter, the security council may decide what measures not involving the use of armed force are to be employed to give effect to its decisions and it may call upon members of the UN to apply such measures.

Under article 41 these measures may include complete or partial interruption of economic relations and of rail, sea, air, postal, telegraphic, radio and other means of communication as well as the severance of diplomatic relations.

Examples of the use of Article 41 power include;

- i. The imposition from 1966 to 1979 of sanctions on Rhodesia
- ii. The placing of an arms embargo on South Africa in 1977 (following the murder of Steve)
- iii. The imposition in 1990 of economic sanctions on Iraq following its invasion of Kuwait
- iv. The imposition of an arms and air embargo on Libya in 1992 following its refusal to extradite the suspected bombers of the Pan Am Flight 103 over Lockerbie
- v. The imposition between 2004-2005 of economic sanctions on Sudan following serious human rights violations in Darfur and
- vi. The imposition in 2011 of an arms embargo on Libya.

It should be noted that the list of measures under Article 41 is illustrative and inclusive rather than exhaustive. For instance Article 41 has recently been invoked as a basis for the establishment of tribunals for Rwanda, Former Yugoslavia as well as for the establishment of civil administrations for Kosovo, East Timor and Iraq. This position has been supported by the ICC in the Tadic case.

Forcible measures.

According to Article 42 of the UN Charter, should the security council consider that

the measures provided for under Article 41 would be inadequate or are proved to be inadequate, it is empowered to take such action by air, sea, or land forces as may be necessary to maintain or restore international peace and security. Under the same article, such actions may include demonstration, blockade and other operations by land, sea or air forces of members of the UN.



At the time the charter was drafted in 1945, it was envisaged that forcible measures under chapter 7 would be carried out by armed forces of the UN under a joint UN command. This framework was never actually established given the emergence of the cold war. Instead, the practice of the council has been that it authorizes particular actions under article 42 and these are actually effected by members of the UN. This practice is an example of the exercise of implied power under the UN Charter.

The challenge that has arisen in this regard is as to the extent to which the UN can control the actions undertaken based on the UN security council resolutions by "coalitions of the willing." Examples of action under chapter 7 include operations against North Korea in 1950, Rhodesia in 1966, Iraq in 1991 and Libya in 2011.

The operative phrases in the UN security council resolutions authorizing the use of force are

usually those mandating states to take "all necessary measures", "use all necessary means."

States' use of force.

A part from the security council action, there are very limited circumstances under which states can use force under the charter. These include;

- i. Intervention by invitation
- ii. Individual or collective self defence
- iii. Defence of nationals
- iv. Humanitarian intervention.

Invitation

A state may lawfully intervene in an armed conflict in another state at the invitation of the lawful government of that state. This is based on the reading of Article 2(4) of the UN Charter on the understanding that in such circumstances the use of force is neither against the political independence nor the territorial integrity of the other state. Examples of such intervention include Uganda's initial use of force in the DRC and Uganda's use of force in South Sudan.

A question has arisen as to the case of National Liberation Movements or armed groups asserting their right to self determination. In the Nicaragua case, the ICJ left open this question. However, of the 1970 UN Friendly Relations Declaration appears to suggest that such groups are not caught by Article 2(4) prohibition and that states which support them do not similarly violate article 2(4). It is however, unclear whether military support in particular could be a violation of Article 2(4).

Individual / collective self defence

According to article 51 of the UN Charter, nothing in the present charter shall impair the inherent right of individual or collective self defence if an armed attack occurs

against a member state of the UN until the Security Council has taken measures necessary to maintain international peace and security.

Measures taken by members in the exercise of this right of self defence shall be immediately reported to the security council and shall not in any way affect the authority of the security council

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under the present charter to take at any time such action as it deems necessary in order to maintain or restore international peace and security.

It should be noted that article 51 makes reference to self defence being an inherent right. This right long predates the UN Charter. The most famous articulation of the right to self defence under international customary law was that in the Caroline incident 1837. This incident related to the destruction by British forces in US waters of an American ship the Caroline which appeared to have been used in support of an uprising against the British in Canada. In an exchange of letters, the US Secretary of State Mr. Daniel postulated that to successfully establish self defence, “it had to be shown that there had been a necessity of self defence, instant, overwhelming, leaving no choice of means and no moment for self deliberation. In addition it had to be taken that measures taken in self defence were neither unreasonable nor excessive.

Two conditions for the exercise of self defence can be discerned from this as; necessity and proportionality.

It is evident from the reading of Article 51 that the right to self defence only arises where an armed attack occurs. The court has however, confirmed that Article 51 of the UN Charter does not exclude the wider formulation of the right under customary international law. Therefore under custom, self defence can be exercised even where an armed attack has yet to happen, that is imminent.

Indeed this right to anticipatory self defence has been invoked on a number of occasions. These include Israel’s attack against Egypt in 1967 and Israel’s attack on a nuclear reactor in Iraq in 1981.

In 2002, the US sought to put forward an even wider scope for self defence under customary international law. The US argued for the right to take action in anticipation of an attack even where uncertainty remained as to the time and place of the enemy’s attack. However, this view received little support. For instance in the DRC case, the court dismissed Uganda’s justification under self defence finding that Uganda’s activities in the DRC were essentially preventative in nature and not covered by Article 51. The problem with the Bush doctrine is that it would essentially destabilise the UN Charter framework.

Defence of nationals;

The basis of use of force to protect nationals is asserted as an aspect of the right to self defence under Article 51 of the UN Charter. The right to protect nationals does not extend to the protection of property. Although it has been occasionally suggested that the right to defend nationals abroad is an exercise of the prerogative of

diplomatic protection, this position has been rejected by the international Law Commission.

A state exercising the right to protect nationals must satisfy 3 conditions under customary international law.

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- a. There must be an imminent threat to the nationals
- b. The host state must be unable or unwilling to protect them
- c. Any action undertaken must strictly be limited to the protection of nationals.

One of the clearest instances of the exercise of this right was the 1976 Israel raid on Entebbe airport in Uganda to rescue Israel Nationals held hostage by Palestinian terrorists. The Security Council debate in that case was inconclusive. Some states supported Israel's view that it was acting lawfully in protecting its nationals abroad, where the local state concerned was aiding the hijackers, others adopted the approach that Israel had committed aggression against Uganda or used excessive force.

Similarly in 2011, the UK intervened to rescue British Oil workers in the aftermath of Gadaffi overthrow in Libya.

More controversial examples of the exercise of this right are the US interventions in Granada in 1983 and Panama in 1989. In the case of Grenada, it was alleged that some American students were under threat. In the Panama episode one American had been killed and several harassed: On 26th June 1993, the US launched missiles at the headquarters of the Iraqi military intelligence in Baghdad as a consequence of an alleged Iraqi plot to assassinate former US president Bush in Kuwait. It was argued that the resort to force was justified as a means of protecting US nationals in the future. The US conducted a bombing raid on Libya on 15 April 1986 as a consequence of alleged Libyan involvement in an attack on US servicemen in West Berlin.

Humanitarian intervention

This right does not have a clear basis under the UN Charter which seems to restrict such action to the security council under chapter 7 authority.

A recent and controversial invocation of the right was NATO's 1999 intervention in Kosovo when Yugoslavia sought to challenge this use of force the ICJ avoided the question citing a lack of jurisdiction. In a subsequent report, by the independent international commission on Kosovo, the commission was of the view that "the NATO campaign was illegal yet legitimate." Such a conclusion is related to the controversial idea that a right of humanitarian intervention is not consistent with the UN Charter if conceived as a legal text but that it may depending on context nevertheless reflect the spirit of the Charter as it relates to the overall protection of people against gross abuse.

In addition the Constituent Act of the African Union of 2000 in its article 4(h) has given the African Union the right to intervene in a member state pursuant to a decision of the Assembly in respect of grave circumstances namely, war crimes, genocide, and crimes against humanity.

It should be pointed out that this provision appears to be inconsistent with Article 2(4) of the UN Charter and similarly does not seem to be consistent with the requirement for UN Security Council authorization for the use of force by region arrangements under Article 53 of the UN Charter.

It is also noteworthy that notwithstanding a number of grave circumstances in Darfur, Zimbabwe, Ivory Coast, Libya, Rwanda and most recently Burundi, the African Union is yet to invoke Article 4(h) as a basis for intervention.



A related development was the adoption in 2005 of resolution 60/1 by the General Assembly which recognizes that states have a responsibility to protect people from genocide, war crimes, ethnic cleansing and crimes against humanity. This resolution has been cited by the UN Security Council in resolutions 1970 of 26th February 2011 and 1973 of 17th March 2011 on Libya. Someone could say that this is an emerging legal norm as an implied power.

The ICJ said something about Article 24 in the Tehran Hostages case and the Nicaragua cases. That the security council has a primary mandate but not exclusive ; meaning other bodies are allowed. However, the question is; is the African Union such a body with secondary powers?

CASES ON THE USE OF FORCE

NICARAGUA VS UNITED STATES: USE OF FORCE AND SELF DEFENSE

Case Concerning the Military and Paramilitary Activities In and Against Nicaragua (Nicaragua vs United States)

Overview:

The case involved military and paramilitary activities carried out by the United States against Nicaragua from 1981 to 1984. Nicaragua asked the Court to find that these activities violated international law.

Facts of the Case:

In July 1979, the Government of President Somoza was replaced by a government installed by *Frente Sandinista de Liberacion Nacional* (FSLN). Supporters of the former Somoza Government and former members of the National Guard opposed the new government. The US – initially supportive of the new government – changed its attitude when, according to the United States, it found that Nicaragua was providing logistical support and weapons to guerrillas in El Salvador. In April 1981 the United States stopped its aid to Nicaragua and in September 1981, according to Nicaragua, the United States “decided to plan and undertake activities directed against Nicaragua”.

The armed activities against the new Government was carried out mainly by

(1) *Fuerza Democratica Nicaragiense* (FDN), which operated along the border with Honduras, and (2) *Alianza Revolucionaria Democratica* (ARDE), which operated along the border with Costa Rica. Initial US support to these groups fighting against the

Nicaraguan Government (called “*contras*”) was covert. Later, the United States officially acknowledged its support (for example: In 1983 budgetary legislation enacted by the United States Congress made specific provision for funds to be used by United States intelligence agencies for supporting “directly or indirectly military or paramilitary operations in Nicaragua”).

Nicaragua also alleged that the United States is effectively in control of the *contras*, the United States devised their strategy and directed their tactics, and that the *contras* were paid for and

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directly controlled by the United States. Nicaragua also alleged that some attacks against Nicaragua were carried out, directly, by the United States military – with the aim to overthrow the Government of Nicaragua. Attacks against Nicaragua included the mining of Nicaraguan ports, and other attacks on ports, oil installations, and a naval base. Nicaragua alleged that aircrafts belonging to the United States flew over Nicaraguan territory to gather intelligence, supply to the contras in the field, and to intimidate the population.

The United States did not appear before the ICJ at the merit stages, after refusing to accept the ICJ's jurisdiction to decide the case. The United States at the jurisdictional phase of the hearing, however, stated that it relied on an inherent right of collective self-defence guaranteed in A. 51 of the UN Charter when it provided “upon request proportionate and appropriate assistance...” to Costa Rica, Honduras, and El Salvador in response to Nicaragua's acts of aggression against those countries (paras 126, 128).

The Court's Decision:

The United States violated customary international law in relation to (1), (2), (4) and (5) above. On (3), the Court found that the United States could not rely on collective self-defence to justify its use of force against Nicaragua.

Relevant Findings of the Court:

1. The Court held that the United States violated its customary international law obligation not to use force against another State when its activities with the *contras* resulted in the threat or use of force (see paras 191-201).

The Court held that:

The prohibition on the use of force is found both in Article 2(4) of the Charter of the United Nations (UN Charter) and in customary international law.

In a controversial finding the Court sub-classified the use of force as:

- (1) “most grave forms of the use of force” (i.e. those that constitute an armed attack); and
- (2) “other less grave forms” of the use of force (i.e. organizing, instigating, assisting, or participating in acts of civil strife and terrorist acts in another State – when the acts referred to involve a threat or use of force, but not amounting to an armed attack). (Para 191),

The United States violated the customary international law prohibition on the use of force when it laid mines in Nicaraguan ports. It also violated this prohibition when it attacked Nicaraguan ports, oil installations, and a naval base (see below). The United States could only justify its action on the basis of collective self-defence, if certain criteria were met (these criteria are discussed below).

The United States violated the customary international law prohibition on the use of force when it assisted the contras by “organizing or encouraging the organization of irregular forces and armed bands... for incursion into the territory of another state” and participated “in acts of civil strife...in another State” and when these acts involved the threat or use of force.

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The supply of funds to the contras did not violate the prohibition on the use of force. On the contrary, Nicaragua had previously argued before the Court that the United States determined the timing of offensives against Nicaragua when it provided funds to the *contras*. The Court held that “...it does not follow that each provision of funds by the United States was made to set in motion a particular offensive, and that that offensive was planned by the United States.” The Court held further that the arming and training of the contras and the supply of funds, in itself, only amounted to acts of intervention in the internal affairs of Nicaragua and did not violate the prohibition on the use of force .

2. The Court held that the United States violated its customary international law obligation not to use force against another State when it directly attacked Nicaragua in 1983 and 1984

Note: A controversial but interesting aspect of the Court’s judgement was its definition of an armed attack. The Court held that an armed attack included:

- (1) action by regular armed forces across an international border; and
- (2) “the sending by or on behalf of a State of armed bands, groups, irregulars or mercenaries, which carry out acts of (sic) armed force against another State of such gravity as to amount to (inter alia) an actual armed attack conducted by regular forces, or its (the State’s) substantial involvement therein”.

The Court further held that:

Mere frontier incidents will not be considered as armed attacks, unless, because of its scale and effects, it would have been classified as an armed attack had it been carried out by regular forces.

Assistance to rebels by providing weapons or logistical support did not constitute an armed attack. Instead, it can be regarded as a threat or use of force or an intervention in the internal or external affairs of other States (see paras 195, 230).

Under Article 51 of the UN Charter and under CIL – self-defence is only available against a use of force that amounts to an armed attack (*para 211*).

Note: In the ICJ’s *Case Concerning Oil Platforms* and the ICJ’s Advisory Opinion on the *Legal Consequences of the Construction of a Wall in the Occupied Palestinian Territory* (hereinafter called the Palestine wall case) the ICJ confirmed the definition of an “armed attack” as proposed in the Nicaragua case. *Draft Articles on State Responsibility*, prepared by the International Law Commission, provides significant guidance as to when acts of non-State actors may be attributed to States. These articles, together with recent State practice relating attacks on terrorists operating from other countries may have widened the scope of an armed attack, and

consequently, the right of self defence, envisaged by the ICJ. (for example, see *discussion surrounding the United States' attacks in Afghanistan and Iraq*) See also a *paper by Max Plank Institute on this topic* (2017).



3. The Court held that the United States could not justify its military and paramilitary activities on the basis of collective self-defence.

Note that Article 51 of the UN Charter sets out the treaty based requirements on the exercise of the right of self-defense. It states:

*“Nothing in the present Charter shall impair the **inherent right** of **individual or collective self-defence** if **an armed attack** occurs against a Member of the United Nations, **until the Security Council has taken measures** necessary to maintain international peace and security. Measures taken by Members in the exercise of this right of self-defence **shall be immediately reported** to the Security Council.”*

The Court held that:

Customary international law allows for exceptions to the prohibition on the use of force, which includes the right to individual or collective self-defence ([see here for a difference between individual and collective self defense](#)). The United States, at an earlier stage of the proceedings, had also agreed that the UN Charter acknowledges the existence of this customary international law right when it talks of the [“inherent” right under Article 51 of the Charter](#) (para.193).

When a State claims that it used force in collective self-defence, the Court would examine the following:

- (1) Whether the circumstances required for the exercise of self-defence existed; and
- (2) Whether the steps taken by the State, which was acting in self-defence, corresponds to the requirements of international law.

Under international law, several requirements must be met for a State to exercise the right of [individual or collective self-defence](#):

- (1) A State must have been the victim of an armed attack;
- (2) That State must declare itself as a victim of an armed attack. The assessment on whether an armed attack had taken place or not, is done by the State who was subjected to the attack. A third State cannot exercise a right of collective self-defence based that third State’s own assessment;
- (3) In the case of collective self-defence, the victim State must request for assistance. The Court held that “there is no rule permitting the exercise of collective self-defence in the absence of a request by the State which regards itself as the victim of an armed attack”;
- (4) A State that is attacked, does not, under customary international law, have the same obligation as under Article 51 of the UN Charter to report to the Security Council that an armed attack happened – but the Court held that “the absence of a report may

be one of the factors indicating whether the State in question was itself convinced that it was acting in self-defence.

“...Whatever influence the Charter may have had on customary international law in these matters, it is clear that in customary international law it is not a condition of the lawfulness of the use of force in self-defence that a procedure so closely dependent on the content of a

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treaty commitment and of the institutions established by it, should have been followed. On the other hand, if self-defence is advanced as a justification for measures which would otherwise be in breach both of the principle of customary international law and of that contained in the Charter, it is to be expected that the conditions of the Charter should be respected. Thus for the purpose of enquiry into the customary law position, the absence of a report may be one of the factors indicating whether the State in question was itself convinced that it was acting in self-defence

The Court, then, looked extensively into the conduct of Nicaragua, El Salvador, Costa Rica, and Honduras to determine if (1) an armed attack was undertaken by Nicaragua against the three countries, which in turn would (2) necessitate those countries to act in self-defence against Nicaragua (paras 230 – 236). The Court noted that (1) none of the countries who were allegedly subject to an armed attack by Nicaragua declared themselves as victims of an armed attack; (2) they did not request assistance from the United States to exercise its right of self-defence; (3) the United States did not claim that when it used force, it was acting under Article 51 of the UN Charter; and (4) the United States did not report that it was acting in self-defence to the Security Council. The Court concluded that, based on the above, the United States cannot justify its use of force as collective self-defence.

In any event, the Court held that the criteria relating to necessity and proportionality, that is required to be met when using force in self-defence – were also not fulfilled (para 237).

4. The Court held that the United States breached its CIL obligation not to intervene in the affairs of another State, when it trained, armed, equipped and financed the contra forces or encouraged, supported and aided the military and paramilitary activities against Nicaragua.

The Court held that:

The principle of non-intervention requires that every State has a right to conduct its affairs without outside interference. In other words, the principle “...forbids States or groups of States to intervene directly or indirectly in internal or external affairs of other States.” This is a corollary of the principle of sovereign equality of States. The Court held that:

“A prohibited intervention must accordingly be one bearing on matters in which each State is permitted, by the principle of State sovereignty to decide freely. One of these is the choice of a political, economic, social and cultural system, and the formulation of foreign policy. Intervention is wrongful when it uses methods of coercion in regard to such choices, which must remain free ones. The element of coercion, which defines, and indeed forms the very essence of,

prohibited intervention, is particularly obvious in the case of an intervention which uses force, either in the direct form of military action, or in the indirect form of support for subversive or terrorist armed activities within another State
”

Nicaragua stated that the activities of the United States were aimed to overthrow the government of Nicaragua, to substantially damage the economy and to weaken the political system with the aim to coerce the Government of Nicaragua to accept various political demands of the United States. The Court concluded that:

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“...first, that the United States intended, by its support of the contras, to coerce the Government of Nicaragua in respect of matters in which each State is permitted, by the principle of State sovereignty, to decide freely ; and secondly that the intention of the contras themselves was to overthrow the present Government of Nicaragua... The Court considers that in international law, if one State, with a view to the coercion of another State, supports and assists armed bands in that State whose purpose is to overthrow the government of that State, that amounts to an intervention by the one State in the internal affairs of the other, whether or not the political objective of the State giving such support and assistance is equally far reaching.”

The financial support, training, supply of weapons, intelligence and logistic support given by the United States to the contras violated the principle of non-interference. “...(N)o such general right of intervention, in support of an opposition within another State, exists in contemporary international law”, even if such a request for assistance is made by an opposition group of that State (see para 246 for more).

However, in a controversial finding, the Court held that the United States did not devise the strategy, direct the tactics of the *contras* or exercise control on them in manner so as to make their acts committed in violation of international law imputable to the United States (see in this respect [“Determining US responsibility for contra operations under international law” 81 AMJIL 86](#)). The Court concluded that “a number of military and paramilitary operations of the contras were decided and planned, if not actually by United States advisers, then at least in close collaboration with them, and on the basis of the intelligence and logistic support which the United States was able to offer, particularly the supply aircraft provided to the contras by the United States” but not all contra operations reflected strategy and tactics wholly devised by the United States.

Interesting, however, the Court also held that providing “...humanitarian aid to persons or forces in another country, whatever their political affiliations or objectives, cannot be regarded as unlawful intervention, or as in any other way contrary to international law” (para 242).

In the event one State intervenes in the affairs of another State, the victim State has a right to intervene in a manner that is short of an armed attack (210).

“While an armed attack would give rise to an entitlement to collective self-defence, a use of force of a lesser degree of gravity cannot as the Court has already observed produce any entitlement to take collective countermeasures involving the use of force. The acts of which Nicaragua is accused, even assuming them to have been established and imputable to that State, could only have justified proportionate counter-measures on the part of the State which had been the victim of these acts, namely El Salvador, Honduras or Costa Rica.

They could not justify counter-measures taken by a third State, the United States, and particularly could not justify intervention involving the use of force.”

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5. The United States violated its customary international law obligation not to violate the sovereignty of another State, when it directed or authorized its aircrafts to fly over Nicaraguan territory and when it laid mines in the internal waters of Nicaragua and its territorial sea.

The Court examined evidence and found that in early 1984 mines were laid in or close to ports of the territorial sea or internal waters of Nicaragua “by persons in the pay or acting on the instructions” of the United States and acting under its supervision with its logistical support. The United States did not issue any warning on the location or existence of mines and this resulted in injuries and increases in maritime insurance rates.

The Court found that the United States also carried out high-altitude reconnaissance flights over Nicaraguan territory and certain low-altitude flights, complained of as causing sonic booms. It held that a State’s sovereignty extends to its internal waters, its territorial sea, and the airspace above its territory. The United States violated customary international law when it laid mines in the territorial sea and internal waters of Nicaragua and when it carried out unauthorised overflights over Nicaraguan airspace by aircrafts that belong to or was under the control of the United States..

The Oil Platforms Case

The Oil Platforms Case arose out of a series of military incidents in the Persian Gulf in 1987 and 1988. The US military action against Iranian oil platforms — which formed the basis of Iran’s claim — was triggered by two specific attacks on shipping. The first occurred on 16 October 1987 when the Sea Isle City, a Kuwaiti oil tanker re-flagged to the US, was struck by a missile near Kuwait Harbour. Blaming Iran for the incident, the US responded on 19 October 1987 by attacking two Iranian offshore oil platforms, the Reshadat and Resalat complexes. The US claimed to be acting in self-defence. The second incident occurred on 14 April 1988 when the US frigate, Samuel B Roberts, was damaged by a mine in international waters near Bahrain. The US again attributed responsibility for the attack to Iran, and again claimed self-defence as a justification for attacking the Salman and Nasr oil platforms four days later.

On 2 November 1992 Iran filed an application in the ICJ against the US over the destruction of the oil platforms. Its application was based not on general international law on the use of force — as the US lack of consent to jurisdiction would have prevented the Court from proceeding on that ground — but rather on the Treaty. Article XXI(2) of the Treaty contained a compromissory clause that Iran relied on as the basis of the Court’s jurisdiction. This clause provided for disputes concerning the ‘interpretation or application of the present Treaty’ to be submitted to the ICJ if they could not be resolved through other peaceful means. Iran claimed that the US action in destroying the oil platforms constituted a breach of three Treaty provisions, including art X(1), which stated that ‘[b]etween the territories of the two High

Contracting Parties there shall be freedom of commerce and navigation. The US filed a counterclaim alleging that Iran had also breached art X(1) of the Treaty by attacking and disrupting shipping in the Persian Gulf during 1987 and 1988.

On 6 November 2003 the ICJ delivered its judgment on the merits of Iran's claim and the US counterclaim



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The Court's analysis of the US attacks concentrated heavily on the requirements of the law of self-defence. It reaffirmed that the right of individual self-defence is dependent on a state being the victim of an armed attack, and also that the force used in self-defence must be necessary and proportionate.

It concluded that the US had failed to establish that Iran was responsible for the missile attack on the oil tanker Sea Isle City, and the Samuel Roberts which the US had claimed was an armed attack triggering its right to respond with force in self-defence. The Court also examined the hypothetical question of whether, assuming that the Sea Isle City attack and other incidents were attributable to Iran, those actions were serious enough to constitute an armed attack against the US. Confirming that the notion of an armed attack is limited to 'the most grave forms of the use of force', the Court concluded that 'even taken cumulatively ... these incidents do not seem to the Court to constitute an armed attack on the United States. As a result, the US did not have the right to respond with force in self-defence.

A comment on the Oil Platforms case;⁹⁶ By ANDREW GARWOOD-GOWERS

The Law on the Use of Force Much of the Court's judgment on the merits in the Oil Platforms Case focuses on the law on the use of force, despite the fact that the legality of the US action was not being directly assessed against the *jus ad bellum*. As a result, the Court's pronouncements on the use of force are, strictly speaking, *obiter dicta*. Nevertheless, the judgment contains several important statements on this area of law. These include confirmation of the criteria for the use of force in self-defence — namely that an armed attack is a prerequisite, and that force used in self-defence must be necessary and proportionate.

More significantly, in determining whether the US had suffered an armed attack the Court applied the high threshold test from the Nicaragua Case. This test limits the notion of 'armed attack' to 'the most grave forms of the use of force'. In other words, not all uses of force are serious enough to constitute an armed attack triggering a state's right of self-defence. This was precisely the situation in the Oil Platforms Case, where the attacks on the Sea Isle City and the Samuel B Roberts were not considered sufficiently grave to amount to armed attacks against the US. As a result, the US did not have the right to respond with force in self-defence.

The Court's confirmation of the test in the Nicaragua Case for an armed attack is significant because it maintains the high threshold at which a state's right of self-defence is triggered. In the past some states have stretched the meaning of 'armed attack' in an attempt to claim that relatively minor attacks amounted to an armed attack triggering their right to respond in self-defence.

Two such examples in the context of responses to terrorism are the US 1993 missile

attack on Iraq in response to a foiled assassination attempt (the alleged ‘armed attack’) on former President George H Bush whilst visiting Kuwait, and Israel’s 1985 attack on the Palestinian Liberation

⁹⁶ ANDREW GARWOOD-GOWERS; *Case Note; Case Concerning Oil Platforms (Islamic Republic Of Iran V United States Of America)* Did The Icj Miss The Boat On The Law On The Use Of Force?* Melbourne Journal of International Law [Vol 5 2004]

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Organisation's headquarters in Tunisia in response to a series of terrorist attacks, the most serious of which was the killing of three Israelis in Cyprus. Neither of these alleged 'armed attacks' was serious enough to reach the high threshold for an armed attack.

A lowering of this threshold would mean that less serious uses of force qualify as armed attacks triggering self-defence, thereby giving states the right to respond with force in a greater range of circumstances. The effect of this change would be a broadening of the scope of self-defence and a concomitant weakening of the general prohibition on the use of force. Clearly, this would not be in line with the objectives of the UN Charter. It is therefore fortunate that in the Oil Platforms Case the ICJ confirmed that the high threshold test remains the applicable standard.

The Court's judgment contains notable contribution to the progressive development of the law on the use of force. This is the Court's acceptance of the 'cumulative effect' approach to determining whether a state has suffered an 'armed attack'. This approach assesses the overall or cumulative effect of a series of attacks rather than testing each separate attack against the threshold for an 'armed attack'. While the Court in the Nicaragua Case hinted that it recognised the 'cumulative effect' argument, the Oil Platforms judgment provides the first clear indication that the Court accepts the validity of this approach. This development is significant because the 'cumulative effect' approach means that a wider range of attacks may now constitute an 'armed attack'. This does not necessarily equate to a lowering of the high threshold enunciated in the Nicaragua Case, as the cumulative effect of a series of attacks must still reach this threshold of gravity. However, it does mean that the range of circumstances in which a state is permitted to respond with force in self-defence may now be broader. In particular, recognition of the 'cumulative effect' approach is likely to be relevant for states seeking to use force in response to relatively minor but persistent terrorist attacks.

2017 end of semester exam question on use of force.

Assess the extent to which article 4(h) of the African Union Constituent Act is consistent with the normative framework (legal framework) for the use of force under international law

See Pretorial principles under article 4(h) and reflect on that especially in terms of Article 53 of the UN Charter argument.

Look at articles that establish the UN bodies such as Security Council, ICJ and their mandate.

ATTEMPTED ANSWER

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Using Excerpt from; BEN KIOKO⁹⁷; The right of intervention under the African Union's Constitutive Act **IRRC December 2003 Vol. 85 No 852**

Article 2(4) of the UN Charter states that: “All Members shall refrain in their international relations from the threat or use of force against the territorial integrity or political independence of any state, or in any other manner inconsistent with the Purposes of the United Nations.

This general prohibition on the use of force has been confirmed by the International Court of Justice in the Corfu Channel Case (1949) and the case concerning Military and Paramilitary Activities in and against Nicaragua (1986) and is considered to be a rule of jus cogens, i.e. a peremptory norm of international law from which no derogation is permitted.

The right of humanitarian intervention has always been a controversial right in international law. Humanitarian intervention has been defined by the Danish Institute of Foreign Affairs as “coercive action by States involving the use of armed force in another State without the consent of its government, with or without authorization from the UN Security Council, for the purpose of preventing or putting to a halt gross and massive violations of human rights or international humanitarian law.”⁹⁸

The potential challenge revolves around the issue of “humanitarian military intervention”: which entity can authorize the use of military force for humanitarian purposes on the African continent?

Here, the source of tension is Article 4(h) of the Constitutive Act of the AU, which the Assembly claims gives it the right to intervene in its member states in “grave circumstances,” namely, genocide, crimes against humanity, and war crimes. Under the terms of the UN Charter, however, it seems clear that the use of military force against a sovereign government can only be used in self defense or with the express authorization of the UN Security Council.

The Constitutive Act of the Union (the Act) provides for the right of the Union, in certain cases, to intervene in a member State and for the right of a member State to request such intervention. Article 4 of the Act provides for:

(h) the right of the Union to intervene in a Member State pursuant to a decision of the Assembly in respect of grave circumstances, namely: war crimes, genocide and crimes against humanity”; and.

“(j) the right of Member States to request intervention from the Union in order to restore peace and security”.

⁹⁷ The author is Legal Adviser to the African Union

⁹⁸ Danish Institute of International Affairs 1999, *Humanitarian Intervention: Legal and Political Aspects*, submitted to the Minister of Foreign Affairs, Denmark, 7 December 1999 (called the “Danish Institute Report”).



The Protocol on Amendments to the Constitutive Act, which was adopted in February 2003 and is not yet in force, amends Article 4 (h) by adding at the end of the subparagraph the words “as well as a serious threat to legitimate order to restore peace and stability to the Member State of the Union upon the recommendation of the Peace and Security Council.

Why did the leaders of the African Union insert the right of intervention?

The decision by the Assembly of Heads of State and Government of the OAU who adopted the Constitutive Act of the African Union to incorporate the right of intervention in that Act stemmed from concern about the OAU’s failure to intervene in order to stop the gross and massive human rights violations witnessed in Africa in the past, such as the excesses of Idi Amin in Uganda and Bokassa in the Central African Republic in the 1970s and the genocide in Rwanda in 1994.

Indeed, this concern about their inability to prevent or halt the Rwandan genocide had already led the said heads of State and government to set up an International Panel of Eminent Personalities to Investigate the 1994 Genocide in Rwanda and Surrounding Events. This panel blamed the neighbouring countries, but also the OAU, the United Nations and the international community at large for failing to call the killings in Rwanda by their proper name, namely genocide and for failing to stop the violence. Along the same lines, some of the heads of State might have recalled the ringing words of President Museveni of Uganda in his maiden speech to the Ordinary Session of Heads of State and Government of the OAU in 1986, in which he accused them of condoning the wholesale massacre of Ugandans by Idi Amin under the guise of not interfering because it was an internal affair of Uganda.

The Assembly of the Union, which is composed of heads of State and government or their duly accredited representatives, is the supreme organ of the Union. It is that organ that decides on intervention as provided for in Article 4 (h) of the Constitutive Act in respect of war crimes, genocide and crimes against humanity. The addition to Article 4 (h) was adopted with the sole purpose of enabling the African Union to resolve conflicts more effectively on the continent, without ever having to sit back and do nothing because of the notion of non-interference in the internal affairs of member States

In accordance with the provisions of the Constitutive Act, the Assembly will decide on intervention at two levels: on its own initiative (Article 4 (h)) and at the request of a member State (Article 4 (j)). This approach will facilitate decisions on intervention, since the Assembly is not obliged to wait for the consent of the member State concerned, as is now the case.

Article 4 (j) refers, unlike Article 4 (h), to member States and not to a member State, and therefore does not expressly restrict the right to request intervention of the Union

to the member State concerned.

In providing for a right of intervention, the African Union has moved away from non-interference or non-intervention — which is a cardinal principle in both the United Nations Charter and the Constitutive Act of the African Union — to what could be referred to as the doctrine of “non indifference, this would conform to the idiom in most African cultures that you do not fold your hands and just look on when your neighbour’s house is on fire.

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As Maluwa noted:

“in an era in which post-independent Africa had witnessed the horrors of genocide and ethnic cleansing on its own soil and against its own kind, it would have been absolutely amiss for the Constitutive Act to remain silent on the question of the right to intervene in respect of grave circumstances such as genocide, war crimes and crimes against humanity”.⁹⁹

The relation with and the role of the United Nations

The United Nations is the only international organization with the right to decide on enforcement action. Chapter VII of its Charter allows the Security Council to take enforcement action in cases of a threat to or breach of international peace and security. Some commentators have therefore questioned the right conferred on the African Union by its Constitutive Act to decide on intervention outside the UN framework and have raised the issue of what would be the role of the United Nations in such interventions.

It should be pointed out that Article 4(h) appears to be inconsistent with Article 2(4) of the UN Charter and similarly does not seem to be consistent with the requirement for UN Security Council authorization for the use of force by region arrangements under Article 53 of the UN Charter.

The issue arising from the above concern is that the AU Act does not envisage the AU's supervision by the Security Council. Yet, the UN Charter provides that the UN Security Council has primary responsibility concerning the maintenance of international peace and Security. Indeed, the UN Security Council in exercising its primary responsibility has the mandate to supervise the AU, which is a regional arrangement or agency within the meaning of article 52 of the UN Charter. Under such supervision, the AU would be bound by article 53 of the UN Charter, which states as follows:

The Security Council shall, where appropriate, utilise such regional arrangements or agencies for enforcement action under its authority. But no enforcement action shall be taken under regional arrangements or by regional agencies without the authorisation of the Security Council.

The above provision restrains all activities of regional organisations with regard to the use of force, unless the Security Council has authorized such action. Yet, the AU Act in article 4(h) purports to authorise the AU to intervene without the authority of the Security Council. The AU Act does not anticipate the supervision of the UN Security Council, at least with regard to intervening in AU member states where war crimes, genocide or crimes against humanity are being committed. This may imply that the AU considers that it will not be expedient to wait for UN Security Council

⁹⁹ T. Maluwa: “Reimagining African unity: Some preliminary reflections on the Constitutive Act of the African Union (2002)”, *African Yearbook of International Law*, Vol. 9, 2001, p. 38.

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authorisation before responding to situations of war crimes, genocide and crimes against humanity.¹⁰⁰

The African Union is classified by the United Nations as a regional organization within the meaning of Chapter VII of the Charter of the United Nations, whilst the regional mechanisms, such as ECOWAS, are recognized as sub-regional organizations. In deciding on intervention, the African Union will have to consider whether it will seek the authorization of the UN Security Council as it is required to do under Article 53 of the UN Charter.

The omission by the AU Act of the requirement that the Security Council should supervise article 4(h) interventions is arguably intentional. This is because the same year the AU Act was adopted, the OAU Solemn Declaration on Security Stability Development and Co-operation in Africa expressly recognised the primary responsibility for the maintenance of international peace and security lies with the UN Security Council with the OAU in close co-operation with the UN]and [sub-regional intergovernmental organisations, remaining the premier organisation for promoting security, stability, development and co-operation in Africa. In this Declaration, the primacy of the UN Security Council in matters of international peace and security was recognised, although even then, the framers carefully added that the OAU remained the premier organisation for the same purpose when it comes to the OAU's region of competence Africa.¹⁰¹

Furthermore, the process of drawing up the Constitutive Act took place not long after the OAU Assembly of Heads of State and Government had adopted the Ouagadougou decision defying the sanctions imposed by the UN Security Council on Libya in connection with the Lockerbie crisis. The leaders have shown themselves willing to push the frontiers of collective stability and security to the limit without any regard for legal niceties such as the authorization of the Security Council.

Some commentators have held that the intervention by the North Atlantic Treaty Organization (NATO) in Kosovo in 1999 was not authorized by the UN Security Council and was thus illegal, to which United States Secretary of State Madeleine Albright responded that the behaviour of the

Serb forces in Kosovo was a breach of the Geneva Conventions, the human rights conventions and, if the genocide continued, the Genocide Convention of 1948, all of which in her opinion provided an alternative source of legitimization for NATO action. Similarly, when the Economic Community of West African States (ECOWAS) organized peacekeeping forces for Sierra Leone and Liberia, it took the decision and put it into effect without consulting the United Nations until later on. This was also the case when the countries of the Eastern Africa Region imposed trade and economic sanctions against Burundi in 1996, a measure subsequently endorsed and supported by the OAU. It would appear that the UN Security Council has never complained about

its powers being usurped because the interventions were in support of popular causes and were carried out partly because the UN Security Council had not taken action or was unlikely to do so at that time.

¹⁰⁰ Kithure Kindiki; *The normative and institutional framework of the African Union relating to the protection of human rights and the maintenance of international peace and security: A critical appraisal*; (2003) 3 AFRICAN HUMAN RIGHTS LAW JOURNAL

¹⁰¹ *ibid*



The reason behind the increasing tendency by regional organisations to acquire power to intervene in member states, to use the words of the AU Act, in grave circumstances, arises from the fact that the UN Security Council's bureaucratic procedures cannot guarantee a quick response in cases of gross human rights violations. Furthermore, the Council has either ignored some conflicts or has shown discrepant standards in those conflicts to which it has responded. Weller, for instance, notes that in Liberia, the Council first declined to intervene, then intervened, only after ECOWAS did, with considerably less vigour than it did in the Former Yugoslavia.¹⁰² Thus, it may be argued, that where the UN Security Council refuses to intervene in a crisis of a UN member state, this enables concerned regional arrangements or agencies to undertake whatever actions deemed necessary.

In his 2000 Millennium Report to the UN General Assembly, Secretary-General Kofi Annan put some of these concerns in a proper perspective:

“If humanitarian intervention is, indeed, an unacceptable assault on sovereignty, how should we respond to Rwanda, to a Srebrenica — to gross and systematic violations of human rights that offend every precept of our common humanity?”¹⁰³

In a subsequent report, by the independent international commission on Kosovo, the commission was of the view that “the NATO campaign was illegal yet legitimate.” Such a conclusion is related to the controversial idea that a right of humanitarian intervention is not consistent with the UN Charter if conceived as a legal text but that it may depending on context nevertheless reflect the spirit of the Charter as it relates to the overall protection of people against gross abuse.

However, the Protocol relating to the Establishment of the Peace and Security Council has mandated that organ to perform functions in the area, inter alia, of peace support operations and intervention, pursuant to Article 4 (h) and (j) of the Constitutive Act. In respect of Article 4 (h) it makes recommendations to the Assembly, whilst in relation to Article 4 (j) it approves the modalities for intervention following a decision by the Assembly. The Protocol also stipulates with regard to the management of intervention that the PSC shall cooperate with the United Nations Security Council, which has the primary responsibility for the maintenance of international peace and security, and that, where necessary, recourse shall be had to the United Nations to provide the necessary financial, logistical and military support

In the case of the ECOWAS peace-enforcement operations in Sierra Leone and Liberia, the greater part of the cost was picked up by the regional superpower Nigeria, which allegedly spent approximately 1 million US dollars a day in Sierra Leone alone.

The cost of interventions will no doubt be quite high, and the African Union, not being a very well-endowed organization

¹⁰² M Weller; *Regional peacekeeping and international enforcement: The Liberian crisis* (1994) Foreword IX

¹⁰³ Ben Kioko¹⁰³; *The right of intervention under the African Union's Constitutive Act* **IRRC** December 2003 Vol. 85 No 852

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financially, will find that it will of necessity have to involve and work with the international community at large and the United Nations in particular for its operations to succeed.¹⁰⁴

This, notwithstanding that the African Union's (AU) central objective is the maintenance of peace and security as a necessary precondition for improving the wellbeing of African peoples, and achieving meaningful social and economic development. Thus, the Constitutive Act of the AU, unlike its predecessor –the Organisation of African Unity (OAU) has developed what, in theory, appears to be a comprehensive and elaborate peace and security normative, legal and institutional framework for the continent in order to achieve this objective.

Right to Protect.

At the same time, efforts had been redoubled at the global level to develop new and creative ways of addressing the challenge of maintaining peace and security in the new millennium through the development of new norms and institutions and the strengthening of existing ones. At the normative level, this drive was heralded by the concept of the responsibility to protect (R2P) which seeks to re-characterise the idea of sovereignty as responsibility and shift the debate away from the traditional and controversial doctrine of humanitarian intervention to the obligation of states to protect people facing mass atrocities.

The R2P principle, which was endorsed by the international community at the 2005 World Summit, shares some similarities with certain core principles in the African Union Peace and Security Architecture (APSA) in that both place emphasis on the centrality of early warning and conflict prevention to any system of effective conflict prevention, management and resolution. More importantly, article 4(h) of the AU Constitutive Act sets the trigger crimes for intervention as genocide, war crimes and crime against humanity. The responsibility to protect also sets the same normative standards (including ethnic cleansing) in establishing the crimes that could trigger military intervention as a last resort to protect populations.¹⁰⁵

Conceptually, R2P is intended to become the new normative framework for engaging states on the prevention of mass atrocities by the international community acting through the instrumentality of the United Nations as endorsed in paragraph 138 and 139 of the 2005 World Summit Outcome Document. This undertaking has received broad acceptance and its major thrust is hinged on the primary responsibility to prevent genocide, war crimes, crimes against humanity and ethnic cleansing vesting in the territorial state, and a residual collective responsibility of the international community to act through the UN Security Council where the state fails.

¹⁰⁴ *ibid*

¹⁰⁵ John Mark; *the Roles of the UN and the AU in the Operationalisation of R2P in Arica. Towards Legal and Institutional Complementarity*; 2016; *Kazan Journal Of International Law And International Relations*



A related development was the adoption in 2005 of resolution 60/1 by the General Assembly which recognizes that states have a responsibility to protect people from genocide, war crimes, ethnic cleansing and crimes against humanity. This resolution has been cited by the UN Security Council in resolutions 1970 of 26th February 2011 and 1973 of 17th March 2011 on Libya.

In terms of the scope of application of article 4(h), it is clear that in terms of article 53 of the UN Charter, the AU would require UN Security Council authorisation for it to be able to invoke R2P as a basis of military intervention in any member state. It is doubtful, whether prior UN Security Council authorisation is a requirement where the AU is relying on article 4(h) of its Constitutive Act as the basis of its military intervention in a conflict in a member state. Some commentators have criticised the AU not only failing to act promptly but for its reluctance to invoke article 4 (h) of its Constitutive Act.

According to the ICISS, the UN Security Council only has “primary” but not exclusive responsibility for the maintenance of international peace and security. The ICJ said something about Article 24 in the Tehran Hostages case and the Nicaragua cases. That the security council has a primary mandate but not exclusive ; meaning other bodies are allowed.

Interpretation of Article 4(h);

The interpretation of Article 4(h) was given by the **Pretoria Principles On Ending Mass Atrocities Pursuant To Article 4(H) Of The Constitutive Act Of The African Union**

On 6 and 7 December 2012, at a conference convened by the Centre for Human Rights in collaboration with the Department of Political Sciences, University of Pretoria, a group of interdisciplinary academics, policymakers and practitioners in the areas of international peace and security with a special focus on Africa, considered and affirmed the Pretoria Principles on ending mass atrocities pursuant to Article 4(h) of the Constitutive Act of the African Union, set out below.

These Principles are intended to provide greater clarity and inform action by the African Union, sub-regional actors, governments and practitioners on how to enhance their respective roles in ending mass atrocities in Africa pursuant to Article 4(h), which provides for ‘the right of the Union to intervene in a Member State pursuant to a decision of the Assembly in respect of grave circumstances, namely: war crimes, genocide and crimes against humanity’.

The right of the African Union to intervene in Member States

1. Every State has the primary responsibility to protect the fundamental rights of its

citizens in accordance with domestic constitutional law, international human rights law, international humanitarian law and international criminal law. Under Article 4(h), the African Union (AU) is accorded the right to intervene in a Member State pursuant to a decision of the AU Assembly of Heads of State and Government ('AU Assembly') in respect of grave circumstances, namely war crimes, genocide and crimes against humanity (mass atrocities).



Article 4(h) proceeds from the basis that there is a duty on Member States of the AU to protect their own populations from mass atrocities. This responsibility entails the prevention of mass atrocities through appropriate means such as the establishment and effective functioning of human rights protection mechanisms at the domestic level, and the acceptance of international human rights supervision.

2. Article 4(h) empowers the AU to intervene in a Member State under a limited set of stipulated 'grave circumstances'. By consenting to Article 4(h), Member States of the AU have accepted that sovereignty is not a shield but rather a responsibility, particularly when populations are at risk of war crimes, genocide and crimes against humanity. Article 4(h) complements Article 4(g) of the AU Constitutive Act, which prohibits interference in the internal affairs of other States, in that mass atrocities are identified as legitimate concerns for the AU as a whole and may trigger intervention by the AU.

3. Article 4(h) allows the AU to protect populations at risk of war crimes, genocide and crimes against humanity if the target State is unable or unwilling to discharge its primary responsibility to protect the fundamental rights of its citizens. According to the wording of Article 4(h), intervention on the basis of Article 4(h) requires a decision of the AU Assembly. Where diplomacy and other peaceful means have failed, the AU may use force to protect populations at risk of mass atrocities. Therefore, it is coercive measures, in particular military force, that require the decision of the AU Assembly under Article 4(h).

The responsibility to protect

4. The AU Constitutive Act codifies the right of intervention to protect populations against mass atrocities. The notion of 'responsibility to protect', as set out in the 2005 World Summit Outcome Document, has the same objective as the right of intervention in Article 4(h). However, there are also important differences. Article 4(h) intervention relates, in particular, to the third of the three foundational pillars of the 'responsibility to protect', namely the use of military intervention as a last resort. The wording of Article 4(h) suggests that intervention on the basis of Article 4(h) is an exceptional measure in the face of grave circumstances that are beyond non-coercive measures and so require military option as a last resort.

5. The 'right' in Article 4(h) implies a legal entitlement or prerogative which is compatible with the notion of sovereignty as responsibility. This 'right' should as far as feasible be interpreted to imply a duty to intervene to prevent or halt mass atrocities in the form of war crimes, genocide and crimes against humanity.

Authorisation of the Security Council

6. As a matter of legal requirement, the AU requires the authorisation of the UN Security Council for Article 4(h) intervention. The UN Security Council has the

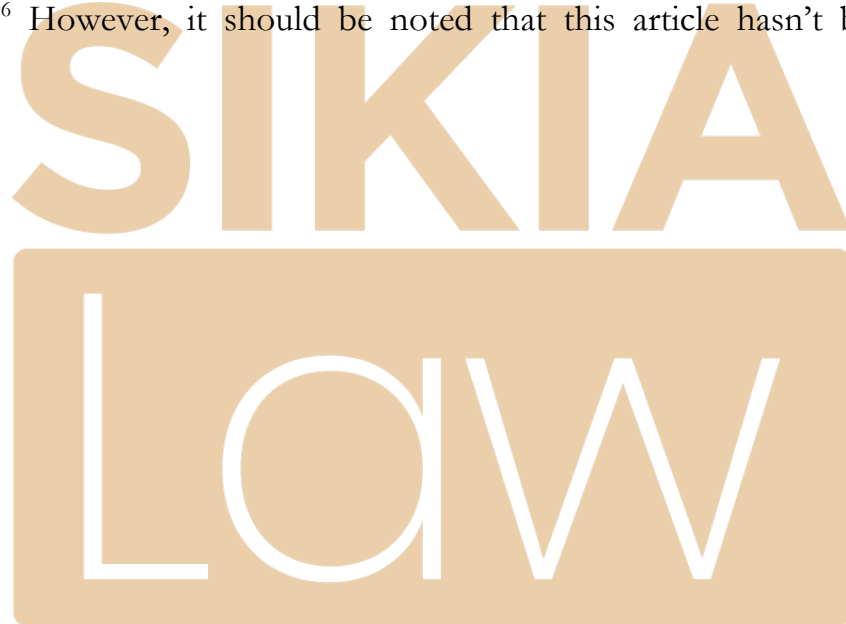
responsibility to authorise the use of force in the implementation of Article 4(h) intervention. Where the UN Security Council is unwilling or indecisive in authorising intervention, the conferment of the right to intervene on the AU by Member States of the AU provides greater space for the AU to act in the face of war crimes, genocide and crimes against humanity on the continent.



Conclusion

In light of the foregoing discussion, it is concluded that the AU Act presents an opportunity for the AU to engage in treaty-based humanitarian intervention without the authority of the UN Security Council or of the target state. The AU Act, unlike the OAU Charter, has clear provisions relating to the protection and promotion of human rights. The AU has taken the right decision in incorporating into the AU framework, the main OAU human rights organs. This not only ensures continuity, but also avoids duplicity and the dissipation of resources.

Article 4(h), which permits intervention to pre-empt or stop war crimes, genocide and crimes against humanity, envisages humanitarian intervention under the auspices of the AU. Moreover, the restriction of the circumstances in which the AU can intervene in such matters, is considered to be of the greatest concern to the international community.¹⁰⁶ However, it should be noted that this article hasn't been tested in practice.



¹⁰⁶ Kithure Kindiki *supra*

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INTERNATIONAL SETTLEMENT OF DISPUTES

Article 2(3) of the UN Charter provides that all members shall settle their international disputes by peaceful means in such a manner that international peace and security and justice are not endangered.

Article 2(4) prohibits the use or threat of use of force. This is a jus cogens norm.

The obligation under Article 2(3) is a broad obligation on states. However, there is no obligation to use a particular means of dispute settlement. It is just an obligation to use peaceful means but as to how, is left to the parties.

Methods of International Dispute Settlement include mediation, conciliation, negotiation, good offices etc. these are non-judicial means as there is no court process.

Judicial means; the first International court properly so called was the Permanent Court of International Justice (PCIJ) established under the League of Nations. PCIJ was succeeded by the International Court of Justice (ICJ) established in 1945. Under Articles 92-96 of the UN Charter, the ICJ is the principle judicial organ of the United Nations.

History of International Dispute Settlement.

Historically, arbitration was the main mode of international dispute settlement. A notable example is the Alabama Claims Arbitration of 1872 between the US and Britain. The US contended that Britain had violated its obligation of neutrality during the American Civil War. To settle the dispute, a panel of 5 arbitrators was set up composed of experts from Britain, US, Italy, Switzerland and Brazil. Eventually the panel found that Britain had indeed violated its obligations of neutrality and ordered to pay 15.5m dollars to US as compensation. The British arbitrator was the only one to dissent from the panel's findings. (this trend has continued as a country judge usually dissents in favor of his country.)

In 1889 a Permanent Court of Arbitration (PCA) was created under the terms of the Hague Convention of the Pacific Settlement of International Disputes. The PCA was maintained under the later convention of similar name in 1907. The PCA established a framework for states to better arrange for the settlement of disputes through arbitration.

Essentially a pool of jurists were pre-selected from which parties to the particular disputes could choose arbitrators. (PCA was not a court but just a framework for arbitration.) the PCA survives to date notwithstanding the creation of the PCIJ in 1920.

The PCA remains relevant and has recently handled significant disputes including one

between Ethiopia and Eritrea as well as a dispute between Sudan and South Sudan regarding the oil rich Abyei region. In a significant move to localize international dispute settlement, the PCA in 2007 set up regional branches in Africa, Asia and Latin America. The African branch of the PCA is located in South Africa.

A more judicialized means of dispute settlement in the international system was set up under the PCIJ in 1920. It was established under the covenant of the League of Nations. It held its first sitting



in 1922 and operated until 1940. The PCIJ was formerly dissolved in 1946; between 1922 and 1940, the PCIJ handled 29 contentious cases and handed down 27 advisory opinions. Neither the US nor the Soviet Union were signatories to the statute of the PCIJ.

In 1945, the present ICJ was created under the Charter of the United Nations and replaced the PCIJ. As already noted the ICJ is the principal judicial organ of the United Nations under Articles 92-96 of the UN Charter. The main difference between the PCIJ and ICJ is that while under the League of Nations members of the league were not necessarily party to the PCIJ Statute, under the UN framework on the other hand, member states of the UN automatically become parties to the ICJ's statute upon their signature to the Charter. Moreover, under Article 93(2) of the UN Charter, non-members of the UN may also become parties to the statute of the ICJ.

In recent times the international legal system has witnessed a proliferation of international courts and tribunals, for example, European Court of Human Rights, African Court on Human and Peoples Rights, International Tribunal for the Law of the Sea (ITLOS), the Community Court of ECOWAS, the East African Court of Justice, the SADC Tribunal (though it collapsed), Iran-US Claims Tribunal, International Criminal Court (ICC), International Crimes Tribunal for Rwanda (ICTR) and the International Crimes Tribunal for former Yugoslavia (ICTY).

These developments present both opportunities and challenges for the development and integrity of international law. On one hand they may be understood as representing a maturity of the international legal system and the validation of the utility of international law. On the other hand, these developments may be seen as presenting a danger to the systematic integrity and coherence of international law especially where different courts and tribunals apply the same rules of international law but reach materially differing conclusions.

A key example in this regard are the markedly different approaches represented by the decision of the ICJ in the Nicaragua case and the ICTY in the Tadic case regarding the responsibility of states for the entities under their control. (effective control versus overall control) mox plant decision.; differing cases.

The law and practice of ICJ

The ICJ is located in the Peace Palace in the Hague in the Netherlands.

Composition.

ICJ is comprised of 15 judges of "recognized competence in international law" under Articles 2&3 of the ICJ Statute. Under Article 19 of the ICJ Statute, the judges must represent the main forms of civilization and the principle legal systems of the world.

In practice, the court is usually comprised of 5 judges from Western states, 3 from Asia, 3 from Africa, 2 from Eastern Europe and 2 from Latin America. In addition, the practice is for all 5 permanent members of the UN Security Council to be represented on the court although this is not provided for or required under the ICJ Statute.



Under Articles 4-12 of the statute, the judges of the court are elected by the General Assembly and the Security Council. Under Article 13, they hold office for nine (9) years.

The president of the court is elected by the judges and holds the office for 3 years under Article 21 of the Statute.

Quorum and proceedings of the court.

Under quorum; 9 judges of the court constitute quorum under Article 25(3).

Decisions of the court; all matters before the court are decided by a majority of the judges set to hear the case. In the case of a tie, the president of the court has a casting vote. This role can be very important, for example, in 1966 in the famous South West Africa cases, Sir Percy Spender of Australia who was the president of the court exercised his casting vote to determine the court's finding that the applicants lacked locus standi to bring the case.

Recusal

A judge may not participate in a case in which he or she was previously involved as a party representative, member of another dispute settlement body or in any other capacity. Article 17(2). A party to a case may file with the court an objection to the appointment of an ad hoc judge by a party to a dispute. On the contrary if a party to the dispute before the court has no national on the court, he is allowed to appoint a judge ad hoc to sit on the court in respect of that particular case. Article 13 ICJ For example in the 1960-66 South-West Africa cases, South Africa used this power to appoint Mr. Justice van Wike as its judge ad hoc.

It may be argued that this practice undermines the integrity of the court as a judicial institution especially since permanent national judges and judges ad hoc seldom decide against their home state or the state that has appointed them. A notable exception in this regard is judge ad hoc Bastid who joined in a unanimous court decision against Tunisia which had appointed her in respect of the dispute with Libya. (Continental Shelf Case 1985).

On the other hand it has been argued that such judges contribute positively to the work of the court

in so far as they represent their country's interests throughout the whole process of decision.

Chambers;

Under Article 26 of the ICJ statute, the court may create chambers composed of three or more judges to handle certain types of case. The composition of such a chamber is determined by the court after consulting with the parties in the particular dispute.

Jurisdiction

There are two arms of the ICJ's jurisdiction;

- i. Contentious proceedings

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ii. Advisory opinions

Contentious proceedings

Under Article 34 only states can be parties to disputes before the court. Essentially, therefore, while there are a range of actors in the international plane, access to the ICJ is restricted only to states.

i. **Jurisdiction**

Under Article 35 of the ICJ Statute, the ICJ can only be accessed by states which are parties to the statute of the ICJ, these are essentially members of the UN, as well as by states which have been permitted to access the court on accordance with the requirements that may be stipulated by the UN Security Council.

The question as to court's jurisdiction surfaced in the case concerning the Legality of the Use of Force (Serbia and Montenegro v Portugal) 2004. Serbia and Montenegro instituted a case against NATO states with regard to the use of force in Cosovo. The ICJ held that the applicant states were not a member of the UN and therefore non-state party to the ICJ statute at the time they brought the claim. Therefore, under Article 35 ICJ the court did not have jurisdiction.

A distinction must be made between the right to access court and the duty to do so. UN members have a right to bring a case before the ICJ but are under no obligation to do so.

The ICJ's jurisdiction must therefore rest on the free consent of the affected parties and this consent must be obtained at two levels.

- i. Consent to the jurisdiction of the court.
- ii. Consent to having the particular dispute brought before the ICJ

Under Article 36(1) the jurisdiction of the court comprises all cases which the parties refer to it as well as matters specially provided for in the UN Charter or in treaties or conventions in force.

Under Article 36(2) of the statute, the states parties to the statute may at any time declare that they recognize as compulsory ipso facto and without special arrangement in relation to any other state accepting the same obligation, the jurisdiction of the court in all legal disputes concerning ;

- (i) the interpretation of a treaty
- (ii) any question of international law
- (iii) existence of any fact which if established would constitute a breach of any

- international obligation
- (iv) the nature or extent of the reparation to be met for the breach of an international legal obligation.

Under Article 36(3), a declaration under Article 36(2) may be made unconditionally or on condition of reciprocity on the part of several or certain states or for a certain time.

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Under Article 36(5) declarations which were made under Article 36 of the PCIJ and which are still in force must be deemed as between the parties to the ICJ statute to be acceptance of the compulsory jurisdiction if the ICJ for a period which they still have to run and in accordance with their terms.

Under Article 36(6) should there be a dispute as to whether the court has jurisdiction, the matter shall be settled by a decision of the court. In essence like most other courts and tribunals, the ICJ has competence to determine its own competences.

The essence of Article 36 is that the ICJ may only entertain disputes based upon the consent of the relevant parties to the dispute. As the court emphasized in the Armed Activities in the Territory of Congo (DRC v Rwanda 2006), “jurisdiction is always based on the consent of the parties”. In that case given the absence of Rwanda’s consent to the proceedings, the court found that it did not have jurisdiction to hear the case. In a similar dispute brought against Uganda, the respondent (Uganda) accepted the ICJ’s jurisdiction. In the event Uganda lost the case and was condemned in damages.

Even in the face of a clear breach of international law or indeed a violation of a fundamental norm of jus cogens the ICJ can only exercise jurisdiction if the parties in question consent to its jurisdiction.

i. **Cases referred to the court by the parties;**

Under Article 36(1) among others the court has jurisdiction over the cases which the parties refer to it. This reference is usually by a means of a special agreement compromiso. For example in 1966 Botswana and Namibia entered into a special agreement mandating the ICJ to resolve the dispute between them regarding the Kasikili-Sedudu island.

Where one party unilaterally refers a dispute to the ICJ, the consent of the respondent to the court’s jurisdiction maybe implied in circumstances where the state conducts itself in a way that suggest that it does in fact recognize the court’s jurisdiction. The exercise of jurisdiction in such circumstances is referred to as *forum proro gatum*. A notable instance of the exercise of such jurisdiction occurred in the Corfu Channel case (preliminary objection 1948). In this case, the UK instituted proceedings against Albania with respect to British destroyers which had been sunk in the Corfu Channel in 1946. The Albanian government wrote a letter to the registrar of the ICJ in which it asserted its innocence in the matter and accepted the court’s jurisdiction. Later upon reconsideration, the Albanian government sought to withdraw its consent to the court’s jurisdiction, an attempt which was rejected by the court.

The use *forum proro gatum* has been criticized both in terms of its doctrinal validity (the

question of consent) and from practical considerations especially regarding the reduced likelihood of co- operation or compliance from a party whose attendance has been compelled in this way. For instance, Albania for a long time refused to comply with the ICJ's decision that found against and which had ordered compensation to be paid to the UK. Indeed, Albania only complied with the ICJ's orders in 1992 about half a century after it was handed down.



Nevertheless, the ICJ has continued to exercise jurisdiction on this basis on a number of cases.

ii. **Matter specially provided for in the Un Charter.**

Article 36(1) makes reference to matters specially provided for in the UN Charter as a basis for jurisdiction of the ICJ. The provision in the UN Charter that comes closest to providing jurisdiction for the ICJ is article 36(3) of the UN Charter which allows the United Nations Security Council to recommend to states to refer their dispute to the ICJ. It is important to note that there is in fact no obligation imposed on states under Article 38(3) of the Un Charter since the UN Security Council can only go as far as recommending rather than requiring that disputes be submitted. Therefore, in terms of the current text of the UN Charter it cannot appear that any compulsory jurisdiction can be founded under the UN Charter on the basis of Article 36(3) of the UN Charter.

It is noteworthy in this regard that in the course of the Corfu Channel Case (preliminary objection) Britain argued that a recommendation of the UN Security Council made under Article 36(3) of the UN Charter would give to the ICJ compulsory jurisdiction under Article 36(1) of the ICJ statute. In the event, having found that it had jurisdiction on the basis of *forum prorogatum* the ICJ did not find it necessary to address this. Nevertheless, in a joint separate opinion 7 judges of the court rejected this argument. The ICJ is yet to address this issue. However, since Corfu Channel, no other party has ever argued for compulsory jurisdiction of the court on this basis.

iii. **Matters provided for in treaties or conventions in force.
(Compromisary Clause)**

This is provided for under Article 36(1) of the ICJ statute. A bilateral or multilateral treaty may contain a provision which stipulates that parties to the treaty accept the jurisdiction of the ICJ with respect to any dispute that might arise with respect to that treaty. Such a provision is referred to as a compromisary clause.

The compromisary clause has become to be an important basis for the ICJ's jurisdiction. There are about 300 treaties that contain such clauses. It is therefore not surprising that a large number of the cases brought before the ICJ are founded on such clauses. Under Article 37 of the ICJ statute, a reference in a compromisary clause made before 1946 to the PCIJ must be deemed to be a reference to the ICJ.

iv. **Optional clause Article 36(2)**

As noted earlier, Article 36(2) allows a state to make a declaration of its own accord recognizing the compulsory jurisdiction of the court. This provision is known as the

optional clause. It is the most important and controversial mechanism for conferring jurisdiction on the court.

The essence of the optional clause was described by the ICJ in *Cameroon v Nigeria* (preliminary Objections) in the following terms.

“Any state party to the statute in adhering to the jurisdiction of the court in accordance with Article

36(2) accepts jurisdiction in its relations with states having previously adhered to that clause. At the

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same time it makes a standing offer to the other states parties to the statute which have not yet deposited a declaration of acceptance. The day one of those states accepts that offer by depositing in its turn its declaration of acceptance, the consensual bond is established and no further condition needs to be made.”

A number of states made declarations under Article 36(2) during the League of Nations and in the first 10 years of the United Nations. In 1934 during the time of the League of Nations, 42 out of 60 states which had access to the PCIJ had accepted the compulsory jurisdiction of the PCIJ (almost 70%). In 1955, 10 years after the adoption of the UN Charter, 33 out of 60 states entitled to access the ICJ had made declarations under Article 36(2) (almost 55%). However, since that time the number of states with such declarations has substantially reduced. As of 2010, only 66 states or about 33% of the UN membership had such declarations. Moreover of the 5 permanent members of the UN Security Council, only the UK maintains an Article 36(2) declarations.

Four explanations may account for the few Article 36(2) declarations.

- a. It is possible the admission of new states after the 1955 and the expansion of the UN membership has caused some apprehension to states.
- b. For some states, particular experiences before the court resulted in withdrawals. for example South Africa withdrew its declaration in 1967 in the aftermath of the South-West Africa cases. Similarly the US withdrew its declaration after the Nicaragua case. France after the Nuclear Test case.
- c. It may be argued that the UN framework in which all UN members are automatically parties to the ICJ statute means that many parties to the statute are in reality committed to judicial settlement of disputes,
- d. It has been suggested that the use or misuse of reservations to declarations has resulted in a race to the bottom in which the utility of Article 36(2) has all but been eroded.

Under Article 36(3) where a declaration is made conditionally, such a condition may be on the basis of time or on the basis of reciprocity. The ICJ has clarified in the Anglo-Iranian Oil. Co Case (UK v Iran) 1952 that allowance for reciprocity as a condition ensures that “jurisdiction is conferred on the court only to the extent to which the two declarations coincide in conferring it.”

This was exemplified in the Norwegian Loans case (France v Norway) 1957 where France had made a declaration under Article 36(2) which contained a reservation that excluded the court’s jurisdiction in domestic disputes as determined by France itself. Norway’s own declaration contained no such reservation. In these circumstance Norway was allowed to invoke France’s reservation as a bar to jurisdiction of the court on the basis of reciprocity.

It should also be pointed out that under Article 36(2) there is no requirement with respect to how long a declaration must be maintained before a state may institute proceedings on a reciprocal basis against the state in a similar declaration.

The lack of a time requirement with respect to the acceptance of a standing offer represented by an Article 36(2) declaration has left open the possibility of a trial by ambush. It is open to a



mischievous state to issue a declaration under Article 36(2) and immediately institute proceedings against a state that had a long standing reservation.

Moreover, it is also open to such a mischievous state to withdraw its Article 36(2) declaration immediately after the proceedings in question have ended. Indeed this method has been successfully employed in a number of cases that have come before the ICJ with the sanction of the court. These include; the Right of Passage over Indian Territory (Portugal v India) 1957, Land and Maritime Boundary (Cameroon v Nigeria) 1998.

However, it is possible for a state with an article 36(2) declaration to protect itself from such trial by ambush through formulating a reservation requiring that for a party to bring a claim against him based on a deposit of a similar declaration such declaration must be deposited at least 1 year before the filing of the application. An example of a state that has deployed this defensive strategy is the UK.

The rights and duties of third parties;

A question has arisen regarding the treatment of disputes before the ICJ, the resolution which might have implications on the rights or obligations of a third state which is not a party to the proceedings in question.

This question was considered by the court in the East Timor case (Portugal v Australia) 1995. Portugal attempted to argue that the court had jurisdiction in the matter notwithstanding Indonesia's absence since the dispute before the court implicated an erga omnes obligation, that is, the right of self-determination of the people's of East Timor. In rejecting this argument, the ICJ made the following observation.

“whatever the nature of the obligation involved, the court could not rule on the lawfulness of the conduct of the state, when its judgement would imply an evaluation of the lawfulness of the conduct of another state which is not a party to the case. Where this is so, the court cannot act even if the right in question, is a right erga omnes. If the third party intervenes it becomes a party to the case, but the intervention will only be allowed if both parties accept.”

Admissibility

Respondents to disputes before the ICJ often seek to have the case dismissed in the preliminary stages if they can. These Preliminary objections take two major forms;

- a. Challenges to jurisdiction
- b. Challenges to admissibility

Preliminary objections based on the first type have already been

considered. Examples of challenges based on admissibility include;

- a. The lack of legal interest in the dispute before the court
- b. The failure to exhaust local remedies

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- c. Problems relating to nationality where the applicant state is acting to protect a national as such.

Both forms of challenges (jurisdiction and admissibility) are usually presented as preliminary objections with no definite effort to distinguish between them. In practice, however, the ICJ usually deals first with challenges relating to its jurisdiction.

If the court finds that it does not have jurisdiction the court will dismiss the application at this stage and may or may not find it necessary to address any challenges based on admissibility. On the other hand where the court in fact finds it has jurisdiction, it may either consider the challenge to admissibility as a Preliminary objection or defer its determination on this point preferring to deliver the decision jointly with that of the merits of the case.

Proceedings;

Disputes before the ICJ are conducted in accordance with the statute of the court as well as with the rules adopted by the court under Article 30 of the ICJ statute. Proceedings before the court involve both written and oral submissions. The ICJ is also empowered to visit the locus in quo, although this power has only rarely been used by the court. In the Nicaragua case 1984, the court also clarified that the burden of proof lies on the party that alleges the existence of a fact or set of facts.

In most cases evidence adduced before the court is documentary in nature. However, on occasion expert witnesses may be called. For instance in the South-West African cases, the respondent South Africa called 14 experts to give testimony before the ICJ regarding the advantageous aspects of its apartheid policy.

The official languages of the court are English and French. All issues before the ICJ are determined by a majority of the judges present in the court.

The judgement of the court is delivered as a single opinion and must clearly indicate the names of the judges who concur with it. Individual judges are at liberty to issue separate opinions that either agree with or dissents from the majority opinion.

Non-Appearance.

On occasion, a respondent to the proceedings instituted before the ICJ may opt not to appear before the court, for instance in the Nuclear Tests cases 1974 brought by Australia and New Zealand, France did not appear before the ICJ. Similarly the US discontinued its participation in the Nicaragua case after the court dismissed its preliminary objection relating to jurisdiction. Iran also refused to appear before the ICJ in the Tehran Hostages case brought against it by the US.

When this happen, the court is empowered to proceed to enter a judgement as long as it is confident that it has jurisdiction and that the decision is supported legally and factually under Article 53 ICJ statute.

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Provisional measures.

Under Article 41 ICJ statute, the court may indicate if it considers the circumstances so require any provisional measures which ought to be taken to preserve the rights of either party. In considering the grant of provisional measures the ICJ need not be completely satisfied that it has jurisdiction to entertain the dispute. It is enough for this purpose if there exists a *prima facie* case for the issuance. This was clarified by the court in the *Legality of Use of Force (Yugoslavia v Belgian)* 1999.

In addition, it should be noted that as the ICJ clarified in the *La Grand* case (*Germany v US*) provisional measures are legally binding.

Final judgement.

Under Article 59 of the statute and Article 94(1) of UN Charter, the final judgement of the court is binding. The judgement can be in terms of a declaratory judgement of the ICJ. However, under the same provisions, any party may apply for the revision of the judgement if significant new facts emerge after the judgement has been delivered.

Enforcement of Judgement.

On the whole judgments of the ICJ enjoy a pedigree of respect and compliance. For instance decisions in the highly sensitive territorial disputes such as *Libya v Chad* 1994, *Cameroon v Nigeria* 2002 and *Namibia v Botswana* 199, these decisions have been complied with.

However, a number of important decisions have either been ignored by the affected parties or have been complied with only after utmost delay, for example the state of Texas proceeded to execute a number of Mexican nationals notwithstanding the ICJ decision in the *Avena case* (*Mexico v Us*) 2004. Similarly Iran refused to comply with the decision in the *Tehran Hostages Case* 1980,. Likewise, the US failed to comply with the decision in the *Nicaragua Case* 1986. For its part, Albania only paid the debt arising from the *Corfu Channel* case 1949, in 1992 almost half a century later.

A major problem of the system of enforcement is provision for the enforcement by the Security Council in terms of Article 94 of the UN Charter. The challenge in particular is as to what happens when the respondent is a member of the Security Council as was the case in the *Nicaragua case*. Moreover, the use of the veto may be and has been used to prevent action against judgement defaulters who happen to have an ally on the security council.

It therefore appears that the system for judicial settlement of international disputes is largely an imperfect consent based system which is dependent more on extra legal

considerations for enforcement rather than the threat of sanctions.

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Advisory Jurisdiction

Under Article 96 of the UN Charter and Article 65 of the ICJ statute, the court is empowered to render advisory opinions to specified bodies. These include the General Assembly and the Security Council of the United Nations as well as other organs and specialized agencies of the UN that have received the sanction of the General Assembly in this regard. There are currently 22 international entities that can access the advisory jurisdiction of the ICJ.

Neither individuals nor states are allowed to request the ICJ for an advisory opinion. The UN Secretary General similarly lacks the authority to request such an opinion. The relationship between the advisory jurisdiction and the contentious jurisdiction of the ICJ is a difficult one. Generally the court will not grant an advisory opinion if to do so will be to effectively adjudicate upon disputes between two or more states. This was the principle stated in the *Status of Eastern Clarian case* 1923. In that case, the PCIJ refused to issue an advisory opinion on the basis that to do so would be to effectively decide a dispute between Finland and Russia regarding the status of Eastern Clarian.

In subsequent cases, however, the ICJ has sought to limit the broad principle stated in the Eastern Clarian, for example, in the *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South-West Africa case)* notwithstanding Security Council resolution 276, 1970 (Namibia Opinion), the ICJ was asked by the UN Security Council to provide an opinion regarding the case *Legal Consequences for States of the Continued Presence of South Africa in Namibia*.

Obviously, in the context of the *South-West Africa cases of 1960-1966*, the court's opinion would implicate the subject matter of the dispute between Ethiopia and Liberia on the one hand and South Africa on the other. Therefore under the Eastern Clarian principle the court should have been precluded from rendering an opinion in this case. However, the ICJ considered that the present case could be distinguished from Claria since South Africa was a member of the UN which had requested the opinion while Russia had not been a member of the League of Nations. Moreover the ICJ was of the view that the request in this case was aimed at guiding the UN with regard to its own positions regarding Namibia rather than to settle the dispute between the states.

At the same time, the court has sought to limit access to its advisory jurisdiction by refusing to render opinions to specialized agencies unless the request by such agency directly concerns the work of that agency. For example in the *Legality of the Use by a state of Nuclear Weapons in Armed Conflict* 1996, the court declined to issue an opinion to the World Health Organisation on the basis that the legality of the use of nuclear weapons was not directly related to the work of the World Health Organisation. On the other hand,, the court granted an opinion on the same question to the UN General Assembly.

Effects and enforcement of advisory opinions.

Advisory opinions are not binding in the same way as judgements entered in contentious proceedings. Therefore, they cannot be enforced in the same way as those judgements under Article 94 of the UN Charter. However, as judge Lauterpatch said in *Admissibility of Hearings of*

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Petitioners by the Committee of South-West Africa 1956 “ Where an opinion has been requested by a political organ of the UN such as the General Assembly or the Security Council and is consequently approved and adopted by that organ in such circumstances, it may be said to be relevant law by which the UN must be guided.”

Two case studies may serve to illustrate the mixed experience of advisory opinions in terms of their enforcement.

- i. The Namibia Opinion 1971 and
- ii. The Wall opinion of 2004

The Namibia Opinion

In a series of opinions issued between 1950-56, the ICJ had confirmed that the UN continued to have the mandate over South Africa's performance in its management of South-West Africa. South West Africa essentially ignored all these opinions. In a bid to obtain compliance by South Africa, the UN attempted to access a contentious jurisdiction of the ICJ through applications filed by Ethiopia and Liberia. After the ICJ's controversial dismissal of those cases in 1966, the UN again reverted to the advisory jurisdiction of the ICJ.

This time the advisory opinion was requested not by the General Assembly but by the Security Council. In response the court in an advisory opinion handed down in 1971, found that South Africa's mandate in relation to South-West Africa had been lawfully ended by the UN and that therefore South Africa's continued presence in Namibia as it was now called was a violation of international law. This opinion was approved by the UN Security Council under resolution 301 of 1971. The UN Security Council would go on to issue several other resolutions based on the Namibian opinion. The opinion was finally implemented in 1990 by the withdrawal of South Africa from Namibia, with that the country gaining independence under the leadership of Mr. Sam Mjoma a democratically elected president. Therefore, although it took 20 years of effort, the ICJ's Namibia opinion of 1970 was indeed enforced and implemented.

The wall opinion of 2004

This opinion was issued at the request of the General Assembly. In rendering the opinion, the ICJ considered that the wall that Israel was constructing in Palestinian territory was in breach of international law. The court also advised that Israel was obliged to immediately stop further construction and to demolish that part of the wall that had already been constructed. The opinion was approved by the UN General Assembly which had requested it in the first place. However, the opinion has not been approved by the UN Security Council mainly due to the action of the US. Therefore the opinion remains unimplemented to date.

From the two case studies it would appear that compliance with and enforcement of advisory opinions rests largely on whether or not they are adopted by the UN Security Council.



Challenges and opportunities for International Dispute Settlement

The main challenge faced by the court is how to achieve a proper balance between fidelity to legal principle and sensitivity to political reality. In these circumstances it is not surprising that some respondents before the ICJ have sought to object to the jurisdiction of the court with regard to matters they deem to be more appropriately suited for resolution by political organs of the UN.

Iran made this argument in the Tehran Hostages case. The court, however, rejected this argument observing that “it was possible to separate the legal questions from the political questions and to render a judgement with regard to the specific legal issues.’ According to the court, legal disputes between sovereign states are by their very nature likely to occur in political contexts and often form only one element in a wider and long standing political dispute between the states concerned. Yet never has this view been put forward before, that because a legal dispute submitted to the court is only one aspect of a political dispute, the court should decline to resolve the parties the legal questions at issue between them. If the court were to adopt such a view it would impose a far reaching and unwarranted restriction upon the role of the court in the peaceful resolution of international disputes.

Ironically this argument was also made by the US in the Nicaragua case. As it had done in the Tehran Hostages case, the court rejected this argument. The argument by the US in this particular case was particularly disingenuous because the US sat on the Security Council. The court pointed out that under Article 24 of the UN Charter, the Security Council had **only primary responsibility not exclusive responsibility**.

Also Uganda made the same argument in the DRC case.

On the whole the court has been willing to deal with sensitive political issues such as the *Case Concerning the Legality of the Use of Force 2004 (the NATO Campaign in Kosovo)*, *DRC v Uganda 2005 (the Case Concerning Armed Activities in the republic of Congo)*, *Bosnia v Serbia 2007 (Genocide Claims)* and *Georgia v Russia 2008 (Racial discrimination)*.

At other times, however, the court has avoided certain politically charged cases, mainly through dismissing them on preliminary grounds for example, South-West Africa cases of 1966, the Nuclear Tests cases (Australia and New Zealand v France) 1974, and the East Timor case 1995 (occupation of East Timor.)

Recommendations for international dispute settlement.

1. Regionalize the ICJ. Have branches in all the major continents just like the Permanent Court of Arbitration has done. This would help in creating better

access to court by more states.

2. Amend article 34 of the ICJ statute which currently restricts access to the court to states only.

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3. Need to amend the standing jurisdiction requirements to allow wider meaning for legal interest and to allow the court to deal with questions that implicate matters of jus cogens and erga omnes obligations. This would help to avoid a situation like the South West Africa case.

Question; for Exams 2017

Consider the following question for the exam..however, answer the question relating it only to the ICJ as a mechanism of international dispute settlement. Don't divulge into other areas except if on comparison.

QN;

DOES THE INTERNATIONAL DISPUTE SETTLEMENT WORK FOR AFRICA? IF IT DOESN'T WORK, WHY DO AFRICAN STATES KEEP GOING TO THE ICJ? How would it have to be structured if it were to work better.

in answering the above question, you need to read the following articles;

B. Chimni; *Third World Approaches to International Law; A Manifesto*

R. Anand; *Enhancing the Acceptability of Compulsory Procedures of International Dispute Settlement.*

ATTEMPTED ANSWER;

Does the international dispute settlement work for Africa? If it doesn't work, why do African states keep going to the ICJ? How would it have to be structured if it were to work better.

Article 2(3) of the UN Charter provides that all members shall settle their international disputes by peaceful means in such a manner that international peace and security and justice are not endangered.

One of the means of settling disputes is by Judicial means. A more judicialized means of dispute settlement in the international system was set up under the PCIJ in 1920. It was established under the covenant of the League of Nations. It held its first sitting in 1922 and operated until 1940. The PCIJ was formerly dissolved in 1946; between 1922

and 1940, the PCIJ handled 29 contentious cases and handed down 27 advisory opinions. Neither the US nor the Soviet Union were signatories to the statute of the PCIJ.

In 1945, the present ICJ was created under the Charter of the United Nations and replaced the PCIJ. The ICJ is the principal judicial organ of the United Nations under Articles 92-96 of the UN



Charter. The main difference between the PCIJ and ICJ is that while under the League of Nations members of the league were not necessarily party to the PCIJ Statute, under the UN framework on the other hand, member states of the UN automatically become parties to the ICJ's statute upon their signature to the Charter. Moreover, under Article 93(2) of the UN Charter, non-members of the UN may also become parties to the statute of the ICJ.

In exercise of jurisdiction under Article 36, the ICJ may only entertain disputes based upon the consent of the relevant parties to the dispute. As the court emphasized in the *Armed Activities in the Territory of Congo (DRC v Rwanda 2006)*, "jurisdiction is always based on the consent of the parties". In that case given the absence of Rwanda's consent to the proceedings, the court found that it did not have jurisdiction to hear the case. In a similar dispute brought against Uganda, the respondent (Uganda) accepted the ICJ's jurisdiction. In the event Uganda lost the case and was condemned in damages.

Even in the face of a clear breach of international law or indeed a violation of a fundamental norm of jus cogens the ICJ can only exercise jurisdiction if the parties in question consent to its jurisdiction.

On composition; ICJ is comprised of 15 judges of "recognized competence in international law" under Articles 2&3 of the ICJ Statute. Under Article 19 of the ICJ Statute, the judges must represent the main forms of civilization and the principle legal systems of the world. In practice, the court is usually comprised of 5 judges from Western states, 3 from Asia, 3 from Africa, 2 from Eastern Europe and 2 from Latin America. In addition, the practice is for all 5 permanent members of the UN Security Council to be represented on the court although this is not provided for or required under the ICJ Statute. if a party to the dispute before the court has no national on the court, he is allowed to appoint a judge ad hoc to sit on the court in respect of that particular case. Article 13 ICJ For example in the 1960-66 South-West Africa cases, South Africa used this power to appoint Mr. Justice van Wike as its judge ad hoc.

At the beginning the Permanent Court of Justice was seen as largely a European Court. Anand argues that Although the Permanent Court of International Justice had proved its worth and was the subject of general and well-merited praise at the San Francisco Conference for its decisions and advisory opinions — between 1922 and 1940 the Court pronounced 29 judgements and gave 27 advisory opinions — general compulsory jurisdiction could not be conferred on the new Court which replaced it.¹³ The Permanent Court truly represented the international community of its time. It was largely a "European Court" with a majority of European judges (with the notable exception of post-revolutionary Russia) in addition to judges from the United States, some Latin American Republics, as well as from China and Japan. The Court also reflected in its pronouncements, it is said, "the legal outlook of the Eurocentric

community, which was strongly imbued with nineteenth century positivism.¹⁰⁷

¹⁰⁷ Anand; *Enhancing the Acceptability of Compulsory Procedures of International Dispute Settlement*. *Max Planck Yearbook of United Nations Law*, Volume 5, 2001, 1-20.
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The situation had entirely changed when the Court started functioning in its new reincarnation as a part of the UN Organization under its new name, the International Court of Justice.

From the very beginning the ICJ was portrayed as in crisis as a result of the lack or loss of confidence by one or the other part of the international community. None of the big powers put much faith in the Court and avoided it as far as possible. If the United States included the self-judging Connally reservation relating to domestic jurisdiction in its declaration under the optional clause which reduced the acceptance to a mere nullity, the United Kingdom revised its declaration four times within a few years, each time changing its reservations to suit its convenience. France withdrew its declaration after the Nuclear Test Cases in 1974.¹⁰⁸

After 1960, with the acceleration of the decolonization process, as numerous Asian and African countries became independent, "the 'crisis of the Court was perceived and analysed in terms of the distrust manifested by newly independent States towards the Court." Several explanations were sought to be given for this supposed distrust on the part of the Asian-African states in the judicial process and their preference for the diplomatic procedures.¹⁰⁹ Besides their cultural differences and national traditions, the lengthy and onerous character of the judicial procedure, under representation of the Asian-African states on the bench, and the dissatisfaction of the new states with large parts of classical international law which legitimized their subjugation and generally favoured the interests of the erstwhile colonial powers, were given as the reasons for the hostile attitude of the new states towards international adjudication.¹¹⁰

The strongest blow to the confidence in the Court, especially amongst the Asian-African states, came in 1966 when the Court, by the casting vote of the President²³, after nearly six years of proceedings

costing millions of dollars, more than a dozen volumes of written proceedings, almost 300 hours of oral testimony, and more than 100 Court sessions, decided or refused to decide the South-West Africa Cases by declining to go into their merits on the basis of a matter of "antecedent character" which was not even argued by either of the parties.

¹⁰⁸ *ibid*

¹⁰⁹ In his book *Compulsory Jurisdiction of the ICJ*; Anand stated that Several reasons seem to be possible for such an attitude. It may be due to their over-cautious attitude towards any third party judgment, which might affect their vital interests and endanger their newly-won freedoms. It may also be due to the feeling that the traditional international law, under which their disputes can be decided, does not accord 'with

their new economic, political and ethical conditions. The traditional international law, which had been developed in the European countries among the colonial powers, is sometimes felt to be outmoded due to the development of new nations whose interests are quite different from the Western countries. Moreover, the inadequate representation of these countries on the bench of the Court might have contributed to this conservative attitude of these countries. Asia is represented on the bench only by two countries, Pakistan and China and Africa by one, Egypt. This might have led to the feeling that the interests of these countries would not be properly safeguarded before the Court. Due to all or some of these reasons, and perhaps also because of their traditions,¹² these countries have not found it expedient to accept any far-reaching jurisdiction of the Court.. Note that however, African representation has been increased to 3

¹¹⁰ *ibid*



This most controversial decision or lack of decision frustrated and enraged politically conscious Africans, undermined the confidence of newly independent countries in the Court and its capacity to do justice and thrust the Court into an acute crisis.

The African states, in particular, adopted "the cynical view that the ICJ was a white man's Court, dispensing white man's justice." It also evoked an extended and critical debate on the role of the Court in the General Assembly, leading to readjustment in the composition of the Court to make it more representative of the various parts of the international community.¹¹¹

However, the court tried to reassess itself in attempt to gain the confidence of states. While earlier the Court was reserved in its relations with the UN, after this crisis the Court missed no opportunity to emphasize that it was part of the United Nations and its principal judicial organ, and put forward the law and principles of the Charter. The Court also revised its rules of procedure twice to make itself more efficient.

In 1971 the Court gave its Advisory Opinion in the Namibia Case declaring illegal the continued occupation of Namibia by the Republic of South Africa following the termination of its mandate. The Court's stock further rose in the eyes of African countries when in 1975 it gave its Advisory Opinion in the Western Sahara Case.³¹ In this case the Court had occasion to discuss further the principles of decolonization and self-determination and made an important pronouncement on the concept of occupation as a means of acquiring title to territory in Africa.

With such decisions, The Court was beginning to regain its confidence, especially the trust of the African countries. The confidence in the ICJ reached its high water mark after its final judgement on the merits on 27 June 1986 in the Nicaragua Case. Nicaragua appeared before the Court on the basis of its own and US declarations under the optional clause and charged that the United States was "using military force against Nicaragua and intervening in Nicaragua's internal affairs in violation of Nicaragua's sovereignty, territorial integrity and political independence and of the most fundamental and universally accepted principles of international law."

The Court unanimously rejected United States objections and boldly held that it had jurisdiction to entertain the case on merits. Over the strongest objections of the United States, which withdrew from the case and cancelled its optional clause jurisdiction, the Court gave a decision on merits holding the United States responsible for its actions, as charged by Nicaragua.

This was indeed a bold decision and the Court was well aware of the political risk it was taking in deciding the dispute against a Super Power and leader of the Western group of states even if it was "upholding the basic principles of contemporary international law and the Charter in the way it did in its judgement, and which it could not help doing as a court of law."

This led to what was supposed to be a new crisis. Earlier it was said that the Third World had no confidence in the Court. But with this judgement, some people "started to contend that it is now the Western world that no longer has confidence in the Court, where it risks systematically being put into the minority." France had already withdrawn its jurisdiction under the optional clause after the Nuclear Test Cases. The United Kingdom was the only permanent member of the Security

¹¹¹ *ibid*



Council which had accepted optional clause jurisdiction which itself was full of gaps and reservations. The Court had, therefore, decided the Nicaragua Case at a very high cost, it was feared.

But these fears proved to be short-lived and unnecessary panic. The Court had indeed given proof of its impartiality, objectivity and independence. Even if, therefore, it would suffer in the volume of its work in the short run, it was bound to increase its credibility.

The Court is now overloaded with judicial work. Judge Jennings, President of the Court, said to the General Assembly in his 1991 address: "Glancing at this list of cases, we can say one thing with assurance: this is indeed now a World Court, exhibiting in its daily work that quality of universality which is also a feature of the General Assembly. I think there is every reason to believe that this new buoyancy of the Hague Court, which has been developing now for some time, is set to continue. A reason for that belief is that there is perhaps now a greater understanding among Governments of the role that an international Court can and should play in their relations with one another.

A Legal Aid Fund was established by the Secretary-General of the United Nations in 1989 to help the poor countries pursue their cases before the Court. This is an excellent move and can help some countries seek justice at the international level which many a time is beyond their reach.¹¹²

There are arguments that international dispute settlement law does not take into account the unique nature of the third world (Africa). Chimni argues that there has been a proliferation of international tribunals that subordinate the role of national legal systems in resolving disputes. These range from international criminal courts to international commercial arbitration to the WTO dispute settlement system (DSS). It is not the greater internationalisation of interpretation and enforcement of rules that is problematic but its differential meaning for, and impact on, third world States and peoples. The neglect of the views and legal systems of societies visited by internal conflict in the setting up of ad hoc international criminal tribunals, even as the United States refuses to ratify the Rome Statute, is an instance of such practices.¹¹³ He further concludes that International law has always served the interests of dominant social forces and States in international relations.

However, analyzing the above, the ICJ though faced with numerous challenges as explained below, serves the interests of Africans. Firstly, it is a judicial organ of the UN and as such all members of the UN have a right to access it. Secondly, it has no compulsory jurisdiction, it can only hear matters based on the consent of the parties. Though initially it was seen as whiteman's court, its subsequent decisions in the Nicaragua case and the Nuclear tests cases, gave Africans the confidence of the

universality and impartiality nature of the court.

¹¹² Anand, Supra

¹¹³ B.S. CHIMNI ; *Third World Approaches to International Law: A Manifesto*; *International Community Law Review* **8**: 3–27, 2006. 3 © 2006 Koninklijke Brill NV. Printed in the Netherlands



Further Africans were able to demand for the readjustment in the composition of the court, and this was granted to the effect that today the court is representative globally. For example; the court is usually comprised of 5 judges from Western states, 3 from Asia, 3 from Africa, 2 from Eastern Europe and 2 from Latin America. In addition, the practice is for all 5 permanent members of the UN Security Council to be represented on the court although this is not provided for or required under the ICJ Statute. Also if a party to the dispute before the court has no national on the court, he is allowed to appoint a judge ad hoc to sit on the court in respect of that particular case. Article 13 ICJ. For example in the 1960-66 South-West Africa cases, South Africa used this power to appoint Mr. Justice van Wike as its judge ad hoc.

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At other times, however, the court has avoided certain politically charged cases, mainly through dismissing them on preliminary grounds for example, South-West Africa cases of 1966, the Nuclear Tests cases (Australia and New Zealand v France) 1974, and the East Timor case 1995 (occupation of East Timor.)

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